FOR THE BAR · FOR THE BENCH · FOR THE LAW STUDENT

NDPS Act, 1985

Drafting, Pleadings, Forms & Formats

A practitioner's compendium of model drafts, court pleadings and departmental forms in matters under the Narcotic Drugs and Psychotropic Substances Act, 1985 — with statutory basis, drafting notes and leading authorities for every format.

Bail · Anticipatory Bail · Default Bail · Discharge · Immunity · Probation · Appeal

Seizure · Sampling · Section 52-A Disposal · Remand · Charge-sheet · Forfeiture

Particulars	Details
Title	NDPS Act, 1985 — Drafting, Pleadings, Forms & Formats
Coverage	30 model drafts and forms (Parts B and C) + 7 practice notes (Part A) + 6 annexures (Part D)
Statutory position	NDPS Act, 1985 (Act 61 of 1985) as amended up to the NDPS (Amendment) Act, 2021; NDPS (Seizure, Storage, Sampling and Disposal) Rules, 2022 (GSR 899(E) dated 23-12-2022); BNSS, 2023 (w.e.f. 01-07-2024)
Court style	Generic all-India headings with Delhi-style illustrations — substitute the name of the Court, District and State as applicable
Prepared for	Publication on a legal information website; free use by advocates, law students, law-enforcement officers and litigants
Last revised	October 2026

About this compendium

This compendium contains **model formats only**. Every draft is a template: the blanks in square brackets `[ ]`, the dotted spaces and the italic instructions must be replaced or deleted before filing. No format is a substitute for reading the statute, the Rules and the latest judicial pronouncements applicable to the facts of the individual case, or for the professional judgment of the advocate conducting it.

The pack is arranged so that each entry contains:

- **Purpose** — when the format is used and by whom.
- **Statutory basis** — the provisions of the NDPS Act, the 2022 Rules, the BNSS, 2023 and related statutes.
- **Leading authorities** — the decisions that govern the format, with the proposition each decides.
- **Model draft** — the format itself, in a bordered panel, ready to be adapted.
- **Drafting notes, annexures and checklists** — practical steps, common errors and the documents to be annexed.

How to use it

- **Advocates.** Part B carries the defence-side drafts; Part C carries the forms an investigating officer, prosecutor or departmental officer must draw. In an NDPS trial the outcome is frequently decided by the paperwork, so Part A (Practice Notes) should be read before any draft is filed.
- **Law students.** Part A is a structured revision of the special procedure under the Act; the drafts demonstrate how the statutory phrases in sections 37, 42, 50, 52-A and 57 are actually deployed in pleadings.
- **Departments.** Part C reproduces the sequence of the NDPS (Seizure, Storage, Sampling and Disposal) Rules, 2022 — Form-1 to Form-11 — in working format, together with the section 50 and section 42 records that the courts insist upon.

Important cautions

- **Court headings and designations** differ from State to State: Special Courts constituted under section 36 of the Act may be designated as "Special Judge (NDPS)", "Special Court (NDPS)" or as the Sessions Judge exercising such jurisdiction. Verify the correct designation with the local court registry.
- **Local language versions.** The records that must be shown to the person searched or arrested (sections 50, 52(1)) must be in a language understood by him. The statutory notices should therefore be printed bilingually — an English draft is given in this compendium and must be read with the local-language version.
- **The CrPC–BNSS transition.** References to the Code of Criminal Procedure, 1973 in the NDPS Act and in the 2022 Rules are, for proceedings on or after 01-07-2024, to be read as references to the corresponding provisions of the BNSS, 2023. Annexure D-3 gives the cross-reference table.
- **Quantity and notifications change.** The small and commercial quantities notified under section 2(viia) and 2(xxiiia) are amended from time to time. Verify the operative notification before computing a quantity band.
- **This is not legal advice.** Nothing here creates a lawyer–client relationship. Every format must be adapted to the facts, the State, and the court.

Abbreviations used in the compendium

Abbreviation	Full form
Act / NDPS Act	The Narcotic Drugs and Psychotropic Substances Act, 1985 (Act 61 of 1985)
2022 Rules	The NDPS (Seizure, Storage, Sampling and Disposal) Rules, 2022, GSR 899(E) dated 23-12-2022
NDPS Rules, 1985	The Narcotic Drugs and Psychotropic Substances Rules, 1985 (licensing, cultivation, manufacture)
BNSS / BSA / BNS	Bharatiya Nagarik Suraksha Sanhita, 2023 / Bharatiya Sakshya Adhiniyam, 2023 / Bharatiya Nyaya Sanhita, 2023
CrPC	Code of Criminal Procedure, 1973 (in force before 01-07-2024; still referred to by the Act)
NCB / DLEA / DDC	Narcotics Control Bureau / Drug Law Enforcement Agency / Drug Disposal Committee
FSL / CFSL / CRCL	Forensic Science Laboratory / Central FSL / Central Revenue Control Laboratory
IO / SHO / PP	Investigating Officer / Station House Officer / Public Prosecutor
SO	Standing Order (Standing Order No. 1/1989 and its amendments were superseded by the 2022 Rules)
SQ / IQ / CQ	Small quantity / Intermediate quantity / Commercial quantity

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PART A — PRACTICE NOTES

A-1. The Act in Outline: Scheme, Chapters and Key Amendments

Purpose

To place the formats that follow in their statutory setting, and to identify the provisions that generate the documents an NDPS case produces.

1. The scheme

The Narcotic Drugs and Psychotropic Substances Act, 1985 (Act 61 of 1985), in force from 14 November 1985, consolidates the law relating to narcotic drugs and psychotropic substances, makes stringent provision for the control and regulation of operations relating to them, and provides for forfeiture of property derived from, or used in, illicit traffic. It was enacted to give effect to India's obligations under the **Single Convention on Narcotic Drugs, 1961**, the **Convention on Psychotropic Substances, 1971**, and the **United Nations Convention against Illicit Traffic in Narcotic Drugs and Psychotropic Substances, 1988**, and to discharge the mandate of **Article 47** of the Constitution.

Chapter	Sections	Subject
Chapter I	1–3	Preliminary: title, definitions, power to amend the Schedule of psychotropic substances
Chapter II	4–7	Authorities and officers — Central Government's measures (s. 4), Narcotics Commissioner (s. 5), Consultative Committee (s. 6), State officers (s. 7)
Chapter II-A	7-A, 7-B	National Fund for Control of Drug Abuse
Chapter III	8–14	Prohibition, control and regulation — the core prohibition in s. 8, licensing powers in ss. 9, 9-A, 10, and special provisions for coca (s. 13) and cannabis (s. 14)
Chapter IV	15–40	Offences and penalties, the sentencing code (ss. 15–31-A), presumptions (ss. 35, 54), special courts and bail (ss. 36–37), offences by companies (s. 38), probation, publication of names
Chapter V	41–68	Procedure — entry, search, seizure and arrest (ss. 41–50), application of the Code (s. 51), disposal of arrested persons and articles (ss. 52, 52-A), custody and reports (ss. 55–57), vexatious search and allied offences (ss. 58–59), confiscation (ss. 60–63), tender of immunity (s. 64), immunity to addicts (s. 64-A), evidence provisions (ss. 66–68)
Chapter V-A	68-A to 68-Y	Forfeiture of property derived from, or used in, illicit traffic
Chapter VI	69–83	Miscellaneous — protection of action taken in good faith, rule-making (s. 76), repeal of the Opium Acts and the Dangerous Drugs Act, 1930 (s. 82)

2. Amendment timeline that matters for drafting

- **1989 (Act 2 of 1989)** — inserted **section 52-A** (disposal of seized drugs), Chapter V-A (forfeiture of illegally acquired property) and section 7-A (National Fund). Section 52-A came into force on 29-05-1989.
- **2001 (Act 9 of 2001)** — introduced the **quantity-based sentencing scheme** (small / intermediate / commercial) now in ss. 15–22 and 27, re-wrote **section 37(1)(b)** so that the twin conditions apply only to

offences under sections 19, 24 and 27-A and to offences **involving commercial quantity**, and re-cast sections 41, 42 and 50.

- **2014 (Act 16 of 2014)** — the amendment that produced the present text of **section 52-A** — the inventory, photographs and list of samples certified by a Magistrate are to be treated as **primary evidence** under sub-section (4); it also inserted **section 31-A** (death penalty for repeat offenders in specified cases) and **section 64-A** (immunity from prosecution to addicts volunteering for treatment), and introduced the "essential narcotic drugs" category for medical and scientific use.
- **2021** — a corrective amendment to **section 27-A** (financing illicit traffic and harbouring offenders), substituting the reference to the clause defining "illicit traffic" so that the provision operates as the legislature intended.

3. Procedure after 01-07-2024

The BNSS, 2023 replaced the Code of Criminal Procedure, 1973 with effect from 01 July 2024. The NDPS Act continues to refer to the Code of 1973 (for example, in sections 36-A(1) and 37(1)) and the 2022 Rules refer to it as well. For proceedings on or after that date the references are construed as references to the corresponding provisions of the BNSS — see **Annexure D-3**. In drafting, the safe practice is to cite the NDPS provision as the source of power and the BNSS provision as the procedural vehicle, e.g. *"Application under section 483 of the BNSS, 2023 read with section 37 of the NDPS Act, 1985"*.

Standing Order No. 1/2014 is no longer the governing instrument

The NCB's Standing Order No. 1/2014 (as amended in 2015) on sampling, storage and disposal was **superseded** by the **NDPS (Seizure, Storage, Sampling and Disposal) Rules, 2022**, notified by GSR 899(E) dated 23-12-2022 under section 76 read with section 52-A. Formats filed after 23-12-2022 must track the Rules of 2022 — Form-1 (forwarding memorandum) through Form-11 (quarterly report to the NCB). The Supreme Court has continued to test compliance against this scheme; see **Bharat Aambale v. State of Chhattisgarh** (2025).

A-2. Quantity Thresholds and Punishment Structure

Purpose

Quantity fixes (i) the offence, (ii) the punishment band, and (iii) whether the twin conditions of section 37 apply to bail. It is the first thing to check in every NDPS file.

1. The three bands

- **Small quantity (SQ)** — a quantity lesser than the notified small quantity: section 2(xxiiia).
- **Intermediate quantity (IQ)** — more than small but less than commercial (the statute does not define it in terms; the punishment clauses capture it as "quantity lesser than commercial quantity but greater than small quantity").
- **Commercial quantity (CQ)** — a quantity greater than the notified commercial quantity: section 2(viia).

The quantities are notified under **S.O. 1055(E) dated 19-10-2001**, as amended, and apply, by virtue of the notes to the notification, to the **preparation, mixture or solution containing the substance**, and not merely to the pure content. That rule was upheld by the Supreme Court in **Hira Singh v. Union of India** (2020): the quantity of the entire mixture, by whatever name called, containing the narcotic drug or psychotropic substance is to be taken for the purpose of determining whether it is small or commercial quantity.

2. Punishment bands (ss. 15–22, 27)

Quantity	Punishment
Small quantity	Rigorous imprisonment up to 6 months, or fine up to ₹10,000, or both — a higher maximum of **one year** is provided in certain clauses, e.g. section 20(b)(ii)(A) (cannabis)
More than small but less than commercial	Rigorous imprisonment up to 10 years and fine up to ₹1,00,000
Commercial quantity	Rigorous imprisonment from 10 to 20 years and fine from ₹1,00,000 to ₹2,00,000
Sections 19, 24, 27-A	Punishment as for commercial quantity (10–20 years), irrespective of quantity
Attempt (s. 28), abetment and conspiracy (s. 29)	Same punishment as the offence
Preparation (s. 30)	Up to one-half of the punishment for the offence
Repeat conviction (s. 31)	One and a half times the maximum punishment; s. 31-A provides for death penalty in specified repeat commercial cases (see the note below)
Consumption / possession for personal consumption (s. 27)	Up to 1 year and fine up to ₹20,000, or both, for cocaine, morphine, diacetylmorphine and specified drugs; up to 6 months and fine up to ₹10,000 for other narcotic drugs and psychotropic substances
Release of an addict for treatment (s. 39)	A court convicting an addict under s. 27 may, with his consent, release him on bond for de-toxification or de-addiction instead of sentencing him at once

Section 31-A — the death penalty provision

Section 31-A (inserted in 2014) provides that where a person is convicted a second time for specified offences involving specified (commercial) quantities, the court **shall** impose death. In **Indian Harm Reduction Network v. Union of India** (Bombay High Court, 2011) the provision — brought in by the 1989 amendment as it then stood — was struck down as unconstitutional, being a mandatory death penalty provision. Section 31-A as it stands today is a comparable provision. Any matter touching it requires a considered challenge on the anvil of *Mithu v. State of Punjab* and later authority; it must not be treated as a settled sentencing option.

3. How the quantity band is determined on the record

The quantity band is determined by the **weight of the substance seized** as found by the chemical analysis report, and by the weight as recorded in the seizure documents. Litigation under section 52-A and on the *Hira Singh*

mixture rule is, in substance, litigation about quantity. A defence file should always carry: (i) the seizure/panchnama weight, (ii) the inventory weight, (iii) the FSL report weight of the analysed sample, and (iv) the weight of the lot from which the sample was drawn. Discrepancies between these four figures are the single most productive area of cross-examination.

A-3. Investigation and Trial: Statutory Timelines at a Glance

Purpose

NDPS litigation is fought on clocks. The table below collects every deadline that generates a document, an objection or a right.

Event	Time limit	Provision
Production of the arrested person before a Judicial Magistrate	Within 24 hours, excluding journey time	Article 22(2); BNSS s. 58
Information / grounds of belief to be reduced to writing, when the officer acts on prior information	At the time of acting	s. 42(1) NDPS
Copy of that information / grounds to be sent to the immediate official superior	"Forthwith"	s. 42(2) NDPS
Grounds of arrest to be informed to the arrested person	"As soon as may be"	s. 52(1) NDPS
Arrested person and seized article forwarded to the officer-in-charge of the nearest police station or an officer empowered under s. 53	"Without unnecessary delay"	s. 52(2)–(3) NDPS
Deposit of the seized material in the designated godown with the forwarding memorandum (Form-1)	Within 48 hours of seizure; relaxable by 24 hours on recorded justification	2022 Rules r. 5(1)
Report of arrest and seizure to the immediate official superior	Within 48 hours	s. 57 NDPS
Application to the Magistrate for certification of the inventory, photographs and drawing of samples (Form-5)	"At the earliest" after forwarding	s. 52-A(2); 2022 Rules r. 8
Despatch of samples to the jurisdictional laboratory with the Test Memo (Form-6)	Without delay after certification	2022 Rules r. 13
Chemical examiner's report to the court, with a copy to the IO	Within 15 days of receipt of the sample (quantitative analysis, if required, within a further 15 days on the duplicate Test Memo)	2022 Rules r. 14
Return of remnants of samples to the office from which they were received	Within 3 months after analysis	2022 Rules r. 15(1)
Deposit of the duplicate sample with the godown after the test report is accepted	Immediately	2022 Rules r. 15(2)
Initiation of proceedings for disposal after receipt of the chemical analysis report	Within 30 days	2022 Rules rr. 17–18
Authorisation of detention by a Judicial Magistrate pending production before the Special Court	Up to 15 days in the whole	s. 36-A(1)(b) NDPS
Default bail — where the investigation is not concluded and the report is not filed (offences punishable with 10 years or more)	90 days (60 days in other cases); in NDPS cases read with the outer limit below	BNSS s. 187(3)
Outer limit for investigation in an NDPS case triable by a Special Court	180 days, extendable up to 1 year on the report of the Public Prosecutor	s. 36-A(4) NDPS
Under-trial release — first-time offender who has served one-half of the maximum sentence	Upon application; subject to the exceptions in the provision	BNSS s. 479
Appeal from conviction to the High Court	60 days from the date of sentence (period taken for obtaining a certified copy is excluded)	Limitation Act, 1963, Article 115 (read with BNSS s. 415)

The sequence in one line

Seizure → panchnama and inventory (Form-4) → deposit in the godown with Form-1/Form-2/Form-3 → application to the Magistrate in Form-5 → certification of inventory, photographs and samples under section 52-A(2)–(3) → despatch with Test Memo (Form-6) → chemical analysis report → reference to the Drug Disposal Committee → certificate of destruction (Form-7) or disposal (Form-10) → quarterly report to the NCB (Form-11) — and, in parallel, **arrest → grounds of arrest → production within 24 hours → remand → final report under section 193 BNSS → trial before the Special Court**.

A-4. Mandatory Procedure: The Compliance Matrix

Purpose

The courts test the prosecution's case against this matrix. Defence counsel looks for the gap; the investigating officer must be able to show the record. Both should work from the same table.

#	Provision	What must exist on the record	Effect of non-compliance
1	s. 41 — warrant and authorisation	Written authorisation of the empowered officer, or the warrant of the Magistrate specifying the place and the thing; the officer must be satisfied of the necessity of the search	An unauthorised search is illegal; the recovery becomes vulnerable
2	s. 42 — entry, search and seizure without warrant	Grounds of the officer's belief, personal knowledge or the information received, **taken down in writing**; entry between sunrise and sunset; for a night search, the grounds of belief recorded and a copy sent forthwith to the superior officer	Section 42(1) and (2) are mandatory. In **Karnail Singh v. State of Haryana** (2009) the Supreme Court held that where the officer acts on prior information he must reduce it to writing, that the requirement applies with rigour, and that the compliance is to be tested on the record. The effect on the trial is judged on the prejudice caused
3	s. 43 — public place	Recovery from a public place stands on a different footing from a search of a building; the officer's power is exercisable on reasonable belief, without the section 42 record	An unjustified resort to section 43 for what is in truth a search of premises invites challenge
4	s. 49 — stop and search of a conveyance	A record of the action taken against the conveyance, and the grounds for searching it	The conveyance is exposed to confiscation (s. 60(3))
5	s. 50 — search of a person	The person to be searched must be **informed of his right** to be taken before a Gazetted Officer or a Magistrate; on his requisition he must be taken without unnecessary delay; the notice and the person's response must be on record	Section 50 is mandatory and the information is the very foundation of the accused's right. **Vijaysinh Chandubha Jadeja v. State of Gujarat** (2011). The right applies to a **personal search**; it does not extend to the search of a bag or a vehicle — **Ranjan Kumar Chadha v. State of Himachal Pradesh** (2023)
6	s. 51 and s. 105 BNSS	The provisions of the Code as to warrants, arrests, searches and seizures apply, including the preparation of the search memo/panchnama and its attestation	A defective panchnama weakens the substratum of the recovery
7	s. 52(1) — grounds of arrest	The grounds informed to the arrested person, recorded contemporaneously	Non-compliance goes to Article 22(1)
8	s. 52(2)–(3) — forwarding	Forwarding of the person and the articles without unnecessary delay	Delay invites the inference of tampering

9	s. 52-A and the 2022 Rules	Inventory (Form-4); application to the Magistrate (Form-5); photographs; samples drawn **in the presence of the Magistrate** and the list certified; forwarding in Form-1; Test Memo (Form-6)	Section 52-A is a **mandatory rule of evidence**: only the certified inventory, photographs and list of samples are primary evidence under s. 52-A(4). **Union of India v. Mohanlal** (2016); **Bharat Aambale v. State of Chhattisgarh** (2025)
10	s. 55 — custody of the seized article	The officer-in-charge of the police station takes charge and keeps the article in safe custody	Unexplained custody invites doubt; the prosecution must explain the chain
11	s. 57 — report to the superior	A full report of the particulars of the arrest and seizure within 48 hours	The report is a check on the field officer; its absence is a legitimate line of cross-examination
12	ss. 9, 9-A and the NDPS Rules, 1985	For commercial transactions, licences, permits and the records of lawful possession	Absence of a licence displaces the "lawful possession" defence

Two propositions that decide most NDPS appeals

- **Section 52-A is mandatory.** In *Mohanlal* the Court held that the procedure under section 52-A(2)–(4) and the Standing Order then in force is mandatory, that the inventory, photographs and samples become primary evidence only when certified by a Magistrate, and that destruction of the contraband without following the procedure dents the prosecution's case. In *Bharat Aambale* (2025) the Court restated the scheme under the **2022 Rules**: substantial compliance is what is required; section 52-A does not require sampling at the spot; only samples drawn before and certified by the Magistrate are primary evidence; and section 52-A governs **disposal**, not the search of a person.
- **Section 50 is mandatory, but only for a personal search.** *Jadeja* (2011) settled that the suspect must be told of his right before the search; *Chadha* (2023) settled that the requirement does not travel to the search of a bag, a vehicle or luggage.

A-5. Bail under Section 37: Framework, Twin Conditions and Current Trends

Purpose

To set out who bears the burden in which case, and the argument architecture of a bail application under the Act.

1. To which cases does section 37 apply?

The twin conditions in **section 37(1)(b)** apply to a person accused of an offence punishable (i) under **section 19** (embezzlement of opium by a cultivator), (ii) under **section 24** (external dealings), (iii) under **section 27-A** (financing illicit traffic and harbouring offenders), and (iv) under **any offence involving commercial quantity**. The relevant text reads:

> *"no person accused of an offence punishable for offences under section 19 or section 24 or section 27A and also for offences involving commercial quantity shall be released on bail or on his own bond unless — (i) the Public Prosecutor has been given an opportunity to oppose the application for such release, and (ii) where the Public Prosecutor opposes the application, the court is satisfied that there are reasonable grounds for believing that he is not guilty of such offence and that he is not likely to commit any offence while on bail."*

Consequences for practice:

- **Small quantity and intermediate quantity cases** (for example, 300 g of ganja under section 20(b)(ii)(A)/(B), or 10 g of heroin under section 21(b)) are **not** governed by section 37. Bail is governed by the ordinary law — **sections 480 and 483 of the BNSS, 2023** — and the considerations are those of any criminal case.
- **Commercial quantity, sections 19, 24 and 27-A** attract the twin conditions. The Public Prosecutor must be heard; and where he opposes, the court must record its satisfaction on both limbs.
- The conditions apply with equal force to **anticipatory bail** — a matter of settled practice, and the reason a section 482 BNSS application in a commercial quantity case must address section 37 on its face.

2. What "reasonable grounds" means

- The grounds must be **more than a prima facie case**: the court must be satisfied that there is a substantial and probable case for believing the accused not guilty — **Collector of Customs v. Ahmadalieva Nodira** (2004).
- The satisfaction must be **recorded**; a bald order that does not deal with section 37 is unsustainable. The Supreme Court set aside exactly such orders in **State of Punjab v. Balraj Singh @ Billa** (2026) and **State of Punjab v. Sukhwinder Singh** (2026), holding that a finding under section 37 is *sine qua non*.
- **Criminal antecedents** are squarely relevant to the second limb — a person with previous NDPS convictions cannot ordinarily show that he is unlikely to offend while on bail.
- Where the **prosecution case itself is legally deficient** it is open to the court to hold that there are reasonable grounds to believe the accused not guilty. Grounds of that nature are listed in section 3 below.

3. The architecture of a commercial quantity bail application

Ground	What to establish on the record
Non-recovery / no conscious possession	Recovery from a place or person not under the applicant's control; the applicant was a passenger, a driver, a co-tenant or a visitor; no incriminating articles on his person; *Hira Singh* concerns quantity, not possession
Section 50 — right not informed	Where the recovery is from the person, the absence of any record that he was informed of his right to be searched before a Gazetted Officer or a Magistrate (*Jadeja*)
Section 42 — prior information not recorded	Where the search was of a building or an enclosed place, no written information or grounds of belief, and no copy to the superior officer (*Karnail Singh*)
Section 52-A — sampling not before a Magistrate	Absence of the Form-5 application, of the Magistrate's certification, or of the list of samples; sampling at the police station by the IO alone (*Mohanlal*; *Bharat Aambale*)
Statements of co-accused / the applicant's own statement	Statements recorded under section 67 are not evidence and

	cannot be the foundation of a conspiracy finding — **Tofan Singh v. State of Tamil Nadu** (2021)
Recovery not proved	Contradictions between the panchnama, the inventory, the godown register and the chemical analysis report; discrepancies in weight, seals, packing and lot numbers
Delay in sampling / despatch	Delay between seizure, sampling and despatch, unexplained; a legitimate argument on the integrity of the sample
Parity	A co-accused, similarly placed, already on bail
Trial delay, undertaking, roots in society	The likelihood of tampering judged against the applicant's status; willingness to surrender the passport; sureties; the period already spent in custody

4. The competing lines on prolonged detention

- **The orthodox line.** Section 37 is a legislative embargo; delay in trial, by itself, does not dispense with the twin conditions, particularly where the prosecution case is otherwise strong — *Union of India v. Vigin K. Varghese* (2025); *State of Punjab v. Sukhwinder Singh* (2026); *State of Punjab v. Balraj Singh @ Billa* (2026). The same decisions record that there is no settled standard for what is "prolonged incarceration".
- **The Article 21 line.** A literal reading of section 37 cannot render bail impossible where the trial has stalled for reasons not attributable to the accused; the right to a speedy trial informs the section — *Mohd. Muslim @ Hussain v. State (NCT of Delhi)* (2023); *Ankur Chaudhary v. State of Madhya Pradesh* (2024). High Courts have granted bail on this ground, holding that bail on account of undue delay in trial is not fettered by section 37 (see, for example, *Kulwinder v. State of Punjab*, P&H High Court, 2025).
- **How to use both.** A commercial quantity bail application should present the statutory grounding first (non-recovery, procedural violations, parity) and keep the delay argument as a supplementary ground with the complete custody and hearing-date record annexed. A bail application that rests on delay alone is, on the current trend, the weakest form of the application.
- **Statutory under-trial release. Section 479 of the BNSS, 2023** requires the release of a first-time under-trial prisoner who has served one-half of the maximum sentence prescribed (excluding offences punishable with death or imprisonment for life). Whether the provision can be applied in an NDPS commercial quantity case, given section 37, is a developing question — but the application deserves to be made where the custody period is long.

A-6. Presumptions, Evidence and Statements

Purpose

The Act shifts burdens. Counsel must know where the burden lies at each stage.

Provision	Presumption or rule	How it operates in practice
s. 35	Presumption of culpable mental state — the court *shall* presume a culpable mental state, including intention, motive or knowledge	The accused must prove the absence of the mental state, but the presumption is available to the prosecution only after the foundational facts are proved
s. 54	Presumption from possession of illicit articles — the court may presume that the accused has committed the offence unless he accounts for the possession satisfactorily	The presumption arises **after** the prosecution proves possession; it does not dispense with proof of recovery, of conscious possession and of the identity of the substance
s. 53-A	Relevancy of statements made before an officer empowered under section 53, in the course of an enquiry or trial, in certain circumstances	Governs statements other than confessions; must be read with section 67 and with *Tofan Singh*
s. 67	Power to call for information — any officer may require a person to furnish information	Statements recorded under section 67 are not confessions and are inadmissible as such against the maker; **Tofan Singh** (2021) held that officers of the NCB (and officers invested with powers under section 53) are police officers for the purpose of the bar on confessions
s. 66	Presumption as to documents in certain cases	Documents proved to be in the custody of a court or a Government officer are presumed genuine until the contrary is proved

The two evidentiary thresholds. For a conviction the prosecution must first prove (a) recovery of the contraband from the conscious possession of the accused, and (b) that the substance recovered is the notified drug, by a legally obtained and properly accounted sample. Only then do sections 35 and 54 come to the aid of the prosecution. Where the sample chain is broken, or where the recovery itself is the product of an illegal search, the FSL report is of no assistance — as *Mohanlal* and *Bharat Aambale* demonstrate at the level of the Supreme Court.

A-7. Drafting Conventions and the BNSS Transition

Purpose

A house style for NDPS pleadings, and the substitutions that must be made in every precedent drafted before 01-07-2024.

1. The architecture of a criminal application

1. **Cause title.** The name of the court; the case number; the parties in the form prescribed — the State through the police station, or the complainant, against the accused; the FIR number, the police station and the sections.
2. **The heading of the application.** The section under which the relief is sought, and, in NDPS matters, the governing NDPS provision, e.g. *"Application under section 483 of the Bharatiya Nagarik Suraksha Sanhita, 2023 read with section 37 of the Narcotic Drugs and Psychotropic Substances Act, 1985 for grant of regular bail."*
3. **"Most Respectfully Showeth"** — the opening formula, followed by numbered paragraphs, each carrying one fact or one proposition.
4. **The facts.** Date, place and manner of arrest; the quantity stated in the FIR and the seizure documents; the applicant's role; the period in custody; the investigation status.
5. **The grounds.** Each ground as a separate paragraph, in the order of strength, with the statutory provision and the authority cited.
6. **The prayer.** Precise, and confined to what the court can grant.
7. **Verification and place/date/advocate.** An application supported by affidavit must carry the verification of the deponent; the Vakalatnama and the memo of appearance accompany the first filing.
8. **Annexures.** Listed in a separate index with the prescribed marking (Annexure A-1, A-2 ...), each page countersigned.

2. Particular to NDPS drafting

- State the **quantity and the band** (small, intermediate, commercial) and the **notified threshold** relied on; the court will check it first.
- State, in one paragraph each, the **status of compliance with ss. 42, 50 and 52-A** as appearing from the documents supplied; do not argue non-compliance in the abstract.
- Where the accused is in custody, the application must carry the **custody certificate** and the **grounds-of-arrest memo**; the Supreme Court's insistence on the grounds of arrest being furnished has become a standard preliminary objection.
- In a bail application, do not enclose the FSL report without checking its weight entry against the panchnama: the enclosure often helps the prosecution.
- Bail is not to be refused as a punishment; but in commercial quantity cases the order must show that the court applied its mind to section 37. Frame the grounds so that the record permits such a finding.

3. Substitutions for proceedings on or after 01-07-2024

Subject	CrPC, 1973	BNSS, 2023
Notice of appearance before arrest	s. 41-A	s. 35(3)
Arrest — grounds to be informed, 24-hour production	ss. 50, 57	ss. 47, 58
FIR and its recording	s. 154	s. 173
Statements during investigation	s. 161	s. 180
Magistrate directing investigation on a complaint	s. 156(3)	s. 175(3)
Remand; default bail	s. 167	s. 187 (default bail: s. 187(3))
Final report / charge-sheet	s. 173	s. 193

Supply of documents to the accused	s. 207	s. 230 (within 14 days of appearance)
Complaint to a Magistrate	s. 200	s. 223
Order for custody and disposal of property pending trial	s. 451	s. 497
Disposal of property at the conclusion of trial	s. 452	s. 498
Procedure where the police seize property	s. 457	s. 503
Discharge (sessions trial)	s. 227	s. 250
Framing of charge (sessions trial)	s. 228	s. 251
Discharge (warrant case, Magistrate)	s. 239	s. 262
Examination of the accused	s. 313	s. 351
Appeal from conviction	s. 374	s. 415
Revision	ss. 397, 399	ss. 438, 440
Anticipatory bail	s. 438	s. 482
Bail — Sessions Court and High Court	s. 439	s. 483
Bail — Magistrate	ss. 436, 437	ss. 478, 480
Inherent powers of the High Court	s. 482	s. 528
Repeal and savings (references construed)	—	s. 531

PART B — DEFENCE-SIDE DRAFTS

B-1. Vakalatnama and Memorandum of Appearance

Purpose

The first document filed in every NDPS case on the defence side: the instrument by which the advocate is engaged, followed by the memorandum of appearance and, where the accused is in custody or exempted, the application for exemption from personal appearance.

Statutory basis

Section 303 CrPC / section 340 BNSS (right of the accused to be defended by a pleader of his choice); Advocates Act, 1961; Bar Council of India Rules. In Delhi practice the Vakalatnama is filed with the memorandum of appearance and an affidavit of the pairokar identifying the accused.

Model Vakalatnama

> IN THE COURT OF THE LEARNED SPECIAL JUDGE (NDPS), [DISTRICT COURTS / SAKET COURTS], [CITY]
>
> SC No. __ of 20____
> FIR No. __ of 20____
> Police Station : _____
> Under Sections : 20 / 21 / 22 / 25 / 27-A / 29 of the NDPS Act, 1985
>
> IN THE MATTER OF:
>
> STATE (Through PS _____) .... PROSECUTION
> VERSUS
> [NAME OF ACCUSED] S/o [Father's name], R/o [Address] .... ACCUSED
>
> VAKALATNAMA
>
> I, [Name of accused], son/daughter of [name], resident of [address], the accused in the above case, do hereby appoint and retain [Name of Advocate], Advocate, [chamber address], telephone __, e-mail __, to appear, act and plead for me before this Hon'ble Court and/or before any other court, tribunal or authority in the above case, and to file applications, affidavits, documents, to receive notices, to withdraw or compromise the case, to deposit, receive and refund amounts, and generally to do all acts necessary for the conduct of the case, on my behalf and at my risk.
>
> I undertake to ratify and confirm all acts done by my Advocate in the conduct of this case.
>
> Dated: __ _____
> Place: __ (Signature / L.T.I. of the Accused)
>
> ACCEPTANCE
>
> Accepted.
> Dated: __ _____
> Place: __ (Signature of the Advocate)
>
> Identified by:
> [Name of identifier], [relation], R/o [address] _____

Drafting notes

- **Two copies.** File the original in the court record and retain an acknowledged copy. Where the accused is in judicial custody, the Vakalatnama is ordinarily got executed in jail and attested by the jail authorities; the attested copy must be filed along with the affidavit of the pairokar.
- **Pairokar.** In Delhi and several other States, the practice is to file an affidavit of a pairokar (relative or friend of the accused) verifying the contents of the bail application and the identity of the accused. Where the accused is in custody, the bail application is generally supported by the pairokar's affidavit, not by the accused's own affidavit.

- **Wording of the prayer.** A Vakalatnama is not a pleading; it confers authority. Do not import grounds into it.

Model Memorandum of Appearance

IN THE COURT OF THE LEARNED SPECIAL JUDGE (NDPS), [DISTRICT], [CITY]

SC No. __ of 20__ FIR No. __ of 20 PS ___

STATE .... PROSECUTION

VERSUS

[ACCUSED] ... ACCUSED

MEMORANDUM OF APPEARANCE

Learned Counsel for the accused named above respectfully submits that the undersigned Advocate has been engaged by the accused and enters appearance on his behalf in the above case. The Vakalatnama duly executed by the accused is filed herewith. It is prayed that the appearance of the undersigned may kindly be taken on record and the accused may be permitted to be represented through the undersigned.

_____
ADVOCATE FOR THE ACCUSED

Place: __
Date: __

Model Application for Exemption from Personal Appearance

IN THE COURT OF THE LEARNED SPECIAL JUDGE (NDPS), [DISTRICT], [CITY]
SC No. __ of 20____

STATE .... PROSECUTION

VERSUS

[ACCUSED] ... ACCUSED

APPLICATION FOR EXEMPTION FROM PERSONAL APPEARANCE ON BEHALF OF THE ACCUSED

MOST RESPECTFULLY SHOWETH:

1. That the accused is on bail in the above case granted by this Hon'ble Court vide order dated _, and has been regularly appearing before this Hon'ble Court on every date of hearing.

2. That on the last date of hearing, this Hon'ble Court was pleased to grant exemption from personal appearance to the accused, and the accused undertakes to appear before this Hon'ble Court as and when directed.

3. That the accused is employed at [place] and resides at [distance] from this Hon'ble Court; his personal presence is not necessary for today's proceedings as the matter is listed for [purpose], and the accused will be represented by his counsel.

4. That no prejudice will be caused to the prosecution if the exemption prayed for is granted.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to exempt the personal appearance of the accused on the present date, in the interest of justice.

_____
ADVOCATE FOR THE ACCUSED

Place: __ Date: __

B-2. Bail Application — Small or Intermediate Quantity

Purpose

An application for regular bail in an NDPS case where the quantity involved is **below the notified commercial quantity**. In such a case the embargo of section 37 does not operate, and the application is governed by the ordinary law of bail.

Statutory basis

Section 37(1)(b) of the NDPS Act, 1985 (embargo confined to sections 19, 24, 27-A and offences involving commercial quantity); **section 483 of the BNSS, 2023** (formerly section 439 CrPC); Article 21 of the Constitution.

Leading authorities

- **Section 37 does not apply below commercial quantity.** The 2001 amendment confined the twin conditions to sections 19, 24, 27-A and commercial quantity offences; bail in small and intermediate quantity cases is therefore decided on the ordinary considerations.
- **Bail, not jail, is the rule.** The presumption of innocence, the completion of investigation and the unlikelihood of tampering are the governing considerations; the seriousness of the allegation is not, by itself, a ground to refuse bail where the trial is likely to be long.
- **On delay:** prolonged custody without progress of the trial is a ground independent of the merits — Article 21.

Model application

> IN THE COURT OF THE LEARNED SPECIAL JUDGE (NDPS), [DISTRICT], [CITY]
>
> BAIL APPLICATION NO. ___ OF 20__
> SC No. __ of 20____
> FIR No. __ of 20_____ Police Station : ____
> Under Section 20(b)(ii)(B) / 21(b) / 22(b) of the NDPS Act, 1985
>
> IN THE MATTER OF:
>
> [NAME OF APPLICANT] S/o [Father's Name], aged about ___ years,
> R/o [complete address] .... APPLICANT/ACCUSED
>
> VERSUS
>
> STATE (Govt. of NCT of Delhi) through PS _____ .... RESPONDENT
>
> APPLICATION FOR GRANT OF REGULAR BAIL UNDER SECTION 483 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023 READ WITH SECTION 37 OF THE NARCOTIC DRUGS AND PSYCHOTROPIC SUBSTANCES ACT, 1985
>
> MOST RESPECTFULLY SHOWETH:
>
> 1. That the Applicant has been arrayed as an accused in the above case registered under Section __ of the NDPS Act, 1985 and was arrested on __; the Applicant has been in judicial custody since then and is presently lodged in [Central Jail ____].
>
> 2. That, briefly, the prosecution case as disclosed from the FIR is that on __ at about __ hours, at [place], the police party is stated to have recovered __ grams of [substance] from [the person / the vehicle / the premises] of the Applicant.
>
> 3. That the quantity allegedly recovered, namely __ grams of [substance], is a [small / intermediate] quantity within the meaning of the notification issued under Section 2(viia) and 2(xxiiia) of the Act — the notified commercial quantity of the said substance being __ grams. **The offence alleged is therefore not one to which the embargo of Section 37(1)(b) of the Act applies**, and the present application is governed by the ordinary principles of bail under Section 483 of the BNSS, 2023.

4. That the Applicant is innocent and has been falsely implicated in the present case. No contraband was recovered from the conscious possession of the Applicant. [Set out the applicant's account: he was a passenger in the vehicle / he was merely present at the spot / the recovery is shown from a place accessible to the public / the alleged recovery was planted.]

5. That the alleged recovery is contrary to the mandatory provisions of the Act:

(a) the Applicant was not informed of his right to be searched in the presence of a Gazetted Officer or a Magistrate, and no such notice or record of his option is on the file — Section 50 of the Act, as interpreted in *Vijaysinh Chandubha Jadeja v. State of Gujarat*, (2011) 1 SCC 609;
(b) the information/grounds of belief preceding the search were not reduced to writing, nor was a copy sent to the immediate official superior — Section 42 of the Act, *Karnail Singh v. State of Haryana*, (2009) 8 SCC 539;
(c) the samples were not drawn in the presence of a Magistrate, nor was the list of samples certified by a Magistrate, and no application under Section 52-A(2) appears to have been moved — Section 52-A of the Act, *Union of India v. Mohanlal*, (2016) 3 SCC 379.

6. That the Applicant is a permanent resident of [address] and has deep roots in society; he has never been involved in any offence of this nature prior to the present case; he has no criminal antecedents; he undertakes not to tamper with the prosecution evidence, not to influence the witnesses, and to appear before the Investigating Officer and this Hon'ble Court as and when directed.

7. That the investigation in the present case is complete — the Applicant was arrested on __ and the police have already [filed the Final Report under Section 193 BNSS on __ / completed the investigation]; no useful purpose will be served by keeping the Applicant in continued incarceration, which now amounts to pre-trial punishment.

8. That the Applicant is the sole bread-earner of his family and his continued detention is causing grave hardship to his [wife and minor children / aged parents]; the Applicant is [state age and medical condition, if any].

9. That the Applicant undertakes to abide by all conditions that this Hon'ble Court may be pleased to impose, including surrender of his passport, weekly reporting to the Investigating Officer, and non-tampering of evidence.

10. That the co-accused [name], similarly placed, has already been enlarged on bail by this Hon'ble Court vide order dated _____, and the Applicant stands on the same footing; on the principle of parity, the Applicant is also entitled to be released on bail.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to release the Applicant on regular bail in the above case till the conclusion of the trial, on such terms and conditions as this Hon'ble Court may deem fit and proper in the interest of justice.

_____
APPLICANT

Place: __ Through
Date: __ ADVOCATE FOR THE APPLICANT

Model Affidavit in support (pairokar)

IN THE COURT OF THE LEARNED SPECIAL JUDGE (NDPS), [DISTRICT], [CITY]
Bail Application No. __of 20__

AFFIDAVIT

I, [Name], S/o [Father's name], aged ___ years, R/o [address], do hereby solemnly affirm and declare on oath as under:

1. That I am the [father/brother/wife] of the Applicant and am fully conversant with the facts of the case; I am the deposing pairokar in the present case.

2. That I have read and understood the contents of the accompanying bail application and state that the facts stated therein are true and correct to my knowledge, information and belief, and nothing material has been concealed.

3. That the Applicant is a permanent resident of the address stated above and there is no likelihood of his absconding; he will not tamper with the evidence or influence the witnesses; the property/surety offered is unencumbered and belongs to the deponent/surety.

> 4. That the Applicant undertakes to abide by all conditions imposed by this Hon'ble Court.

> DEPONENT
> Solemnly affirmed before me on this __ day of __, 20__ at [place].

> NOTARY PUBLIC / OATH COMMISSIONER

Annexures and file checklist

- Copy of the FIR, complaint and the Final Report (if filed);
- Arrest memo, grounds of arrest memo and the custody certificate (from the jail);
- Copy of the seizure memo / panchnama and the inventory, if supplied;
- Copy of the chemical examination report, if available (read the weight entry against the seizure weight before annexing);
- Memo of parties; the Vakalatnama and the pairokar affidavit;
- Documents showing residence, employment or roots: ration card, Aadhaar, rent agreement, GST/ITR, employment certificate;
- Order of bail of the co-accused (for the parity ground), certification under the BSA, 2023 where electronic.

Practice notes

- **The first paragraph must carry the arithmetic**: the quantity recovered, the notified threshold, and the conclusion that the case falls below the commercial band. If the quantity is near the threshold, verify the weight entries in the inventory and the FSL report before asserting the band.
- **Section 27 in disguise.** Where the case is in truth one of possession of a small quantity for personal consumption, the accused may also be entitled to the protection of section 39 (release for de-addiction) and section 64-A (immunity). Consider those routes before filing a bail application on the merits.
- **Do not over-argue.** Where the quantity is small and the accused has roots, the shortest application ordinarily succeeds. Reserve the collateral attacks on the search and the sampling for the bail application in a commercial quantity case or for the stage of the trial.

B-3. Bail Application — Commercial Quantity

Purpose

An application for regular bail where the quantity is **greater than the notified commercial quantity**, or the offence is under sections 19, 24 or 27-A. Here the twin conditions of section 37 apply, and every ground must be directed at building the statutory satisfaction.

Statutory basis

Section 37(1)(b)(i)–(ii) of the NDPS Act, 1985 — the Public Prosecutor must be heard, and, where he opposes, the court must be satisfied that there are reasonable grounds for believing that the accused is not guilty and that he is not likely to commit an offence while on bail. **Section 483 BNSS, 2023**; Article 21 of the Constitution.

Leading authorities

- **Standard of satisfaction.** "Reasonable grounds" mean something more than a prima facie case — *Collector of Customs v. Ahmadalieva Nodira*, (2004) 3 SCC 549. The satisfaction must be recorded; an order silent on the twin conditions cannot stand — *State of Punjab v. Balraj Singh @ Billa* (Supreme Court, 2026); *State of Punjab v. Sukhwinder Singh* (2026).
- **Statements recorded under section 67** cannot be used as evidence against the accused — *Tofan Singh v. State of Tamil Nadu*, (2021) 4 SCC 1.
- **Procedural breach affords "reasonable grounds".** Where the search or the sampling is contrary to sections 50/52-A, there is material to believe that the accused is not guilty — *Jadeja*, *Mohanlal*, *Bharat Aambale v. State of Chhattisgarh* (2025).
- **Delay in trial.** The embargo must be read with Article 21 where the trial has stalled for reasons not attributable to the accused — *Mohd. Muslim @ Hussain* (2023); *Ankur Chaudhary v. State of Madhya Pradesh* (2024). But the contrary line (delay alone does not displace section 37) continues to be applied — *Union of India v. Vigin K. Varghese* (2025).
- **Antecedents.** Prior NDPS involvement is weighed against the applicant on the second limb.

Model application

IN THE COURT OF THE LEARNED SPECIAL JUDGE (NDPS), [DISTRICT], [CITY]

BAIL APPLICATION NO. ___ OF 20__
SC No. __ of 20____ FIR No. ___ of 20___ PS : ____
Under Sections __ of the Narcotic Drugs and Psychotropic Substances Act, 1985

[NAME OF APPLICANT] S/o [Father's Name], aged ___ years, R/o [address] .... APPLICANT

VERSUS

STATE through PS _____ .... RESPONDENT

APPLICATION FOR GRANT OF REGULAR BAIL UNDER SECTION 483 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023 READ WITH SECTION 37 OF THE NDPS ACT, 1985

MOST RESPECTFULLY SHOWETH:

1. That the Applicant was arrested on __ in the above case and has been in judicial custody since then — a period of ___ — and is presently lodged in [Central Jail __].

2. That the prosecution alleges recovery of ___ [kg] of [heroin/ganja/charas/MDMA], which is stated to be a commercial quantity, from [specify the place and the manner of the alleged recovery and the role attributed to the Applicant].

3. That the Applicant is innocent, has committed no offence, and the prosecution case suffers from defects of substance and of procedure which, taken together, furnish reasonable grounds for believing that the Applicant is not guilty of the offence alleged, and negate any apprehension that he is likely to commit an offence while on bail. These grounds are set out below.

4. **NO RECOVERY FROM THE APPLICANT — NO CONSCIOUS POSSESSION**

(a) The contraband was not recovered from the person of the Applicant. It was allegedly recovered from [a bag/the dickey of a vehicle/a room jointly occupied by several persons], to which the Applicant had no exclusive control or access;
(b) The Applicant was [a passenger/the driver; a visitor; one of several occupants; not present at the spot], and there is nothing on the record to connect him with the contraband other than his mere presence;
(c) Mere recovery from a place accessible to several persons does not amount to conscious possession; possession in law requires dominion and knowledge; the presumption under Section 54 of the Act arises only after the prosecution proves possession, which it has not.

5. **BREACH OF SECTIONS 50, 42 AND 52-A OF THE ACT**

(a) The Applicant was not informed of his right to be searched before a Gazetted Officer or a Magistrate; no notice or record of his option has been produced; the search of his person is therefore contrary to Section 50, as held in *Vijaysinh Chandubha Jadeja v. State of Gujarat*, (2011) 1 SCC 609;
(b) The prior information, if any, which formed the basis of the search of [the premises/conveyance] was not taken down in writing, nor was a copy sent to the immediate official superior — Section 42(1) and (2), *Karnail Singh v. State of Haryana*, (2009) 8 SCC 539;
(c) The samples were drawn [at the police station / by the Investigating Officer alone] and not in the presence of the Magistrate, nor was any list of samples certified by a Magistrate; no application under Section 52-A(2) was filed, and the certified inventory, photographs and samples — the only primary evidence under Section 52-A(4) — do not exist. Reference is made to *Union of India v. Mohanlal*, (2016) 3 SCC 379 and *Bharat Aambale v. State of Chhattisgarh* (Supreme Court, 2025).
(d) The failure of the above mandatory requirements goes to the root of the prosecution's case and, by itself, constitutes a reasonable ground for believing that the Applicant is not guilty.

6. **THE ALLEGED ABETMENT/CONSPIRACY RESTS ONLY ON INADMISSIBLE STATEMENTS**

That the only material against the Applicant is his own statement and/or the statements of the co-accused recorded under Section 67 of the Act. Statements recorded by an officer empowered under Section 53 are not confessions and are inadmissible; a conviction or even a finding of conspiracy cannot be founded upon them — *Tofan Singh v. State of Tamil Nadu*, (2021) 4 SCC 1. There is no independent, admissible evidence of conspiracy, financing, or conscious participation by the Applicant.

7. **INCONSISTENCIES IN THE RECORD OF RECOVERY**

That there are material inconsistencies in the contemporaneous record: [the weight disclosed in the FIR, the seizure memo, the inventory and the chemical examiner's report do not tally; the serial numbers of the packages are different; the seals have not been accounted for; the alleged recovery is shown from a place different from the one pleaded] — all of which suggest that the case property has not been handled in the manner required by law, and entitles the Applicant to bail at this stage.

8. **CUSTODY AND TRIAL**

That the Applicant has been in custody for __ and only of __ prosecution witnesses have been examined; the trial is likely to take a long time; the detention has ceased to be preventive and has become punitive, contrary to Article 21.

9. **NO LIKELIHOOD OF OFFENDING WHILE ON BAIL**

That the Applicant [has no criminal antecedents — no case under the NDPS Act or otherwise has ever been registered against him / has been in lawful employment as ___ and is the sole bread-earner of his family]; he is a permanent resident of [address] with strong family and social ties; there is no material on record to suggest that he would tamper with the evidence or repeat the offence; the apprehension of the Investigating Agency is not a substitute for material.

10. **PARITY**

That the co-accused [name], who stands on the same footing and to whom a similar role is attributed, has been released on bail by this Hon'ble Court vide order dated ____; the Applicant is entitled to the same treatment.

11. **CONDITIONS**

That the Applicant is willing to abide by any condition that this Hon'ble Court may impose, including [surrender of passport, reporting to the Investigating Officer, remaining outside the limits of the district, furnishing a local surety of ₹__].

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased, after hearing the learned Public Prosecutor in terms of Section 37(1)(b)(i) of the Act, to release the Applicant on regular bail in the above case, recording

its satisfaction on the conditions in Section 37(1)(b)(ii) of the Act, on such terms and conditions as this Hon'ble Court may deem fit and proper.

_____
APPLICANT THROUGH

Place: __ ADVOCATE
Date: __

Drafting notes

- **Address section 37 on its face.** The order must show that the court applied its mind to the twin conditions. Plead the application as being "under section 483 BNSS read with section 37 NDPS" and end the grounds with a paragraph that tracks the statutory language.
- **Build the "not guilty" limb on the record, not on argument.** The strongest materials are the absence of the section 50 notice, the absence of the Form-5 certification, and the contradictions between the FIR, the seizure memo, the inventory and the FSL report. Enclose the documents and tabulate the contradictions in an annexure — a small comparison table in the application is worth pages of argument.
- **Antecedents.** If the applicant has an antecedent, meet it in the body of the application: the nature of the earlier case, its stage, and the fact of release or acquittal. Silence invites refusal.
- **Do not rely on delay alone.** Present the delay ground last, with the complete order-sheet/custody record annexed.
- **Renewal.** A fresh application after the rejection by the Sessions Court must be made to the High Court; a second application before the same court is ordinarily maintainable only on changed circumstances (*State of Maharashtra v. Captain Buddhikota Subha Rao*), which should be pleaded and evidenced.

B-4. Anticipatory Bail Application

Purpose

Where the applicant apprehends arrest in an NDPS case. The application lies before the Court of Session or the High Court. **The rigours of section 37 apply to anticipatory bail as well** — a matter of settled practice — and must be addressed expressly in a commercial quantity case.

Statutory basis

Section 482 of the BNSS, 2023 (formerly section 438 CrPC); section 37 of the NDPS Act; Article 21.

Leading authorities

- The twin conditions of section 37 apply to an application for anticipatory bail, because the release of a person who anticipates arrest is a release on bail — *State of Madhya Pradesh v. Kajad* (2001); *Narcotics Control Bureau v. Dilip Pralhad Namade* (2004).
- Anticipatory bail is not to be granted mechanically in NDPS cases; the court must be satisfied on the same material as in regular bail.
- Where the applicant is a woman, a minor, a sick or infirm person, the court's discretion under the proviso to section 482 BNSS is wider, but the section 37 considerations are not dispensed with in commercial quantity cases.

Model application

> IN THE COURT OF THE LEARNED SPECIAL JUDGE (NDPS) / SESSIONS JUDGE, [DISTRICT], [CITY]
>
> ANTICIPATORY BAIL APPLICATION NO. ___ OF 20__
>
> IN THE MATTER OF:
> [NAME OF APPLICANT] S/o [Father's Name], aged ___ years, R/o [address] .... APPLICANT
> VERSUS
> STATE (Govt. of NCT of Delhi) .... RESPONDENT
>
> [If an FIR is registered] FIR No. __ of 20____ PS : ____
> Under Sections __ of the NDPS Act, 1985
> [If no FIR is registered] Apprehension of registration of a case under the NDPS Act, 1985 at PS _____
>
> APPLICATION FOR GRANT OF ANTICIPATORY BAIL UNDER SECTION 482 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023 READ WITH SECTION 37 OF THE NDPS ACT, 1985
>
> MOST RESPECTFULLY SHOWETH:
>
> 1. That the Applicant is a permanent resident of [address], aged ___years, and is [occupation]; he apprehends arrest in connection with [FIR No. / a case likely to be registered] under Section ____ of the NDPS Act, 1985.
>
> 2. That [set out the circumstances giving rise to the apprehension — the police visited the residence of the Applicant on __; the Applicant has been called for interrogation vide notice dated __; a co-accused has named the Applicant; a case has been registered and the police are searching for the Applicant] — Annexure A-1.
>
> 3. That the Applicant is innocent and has been falsely implicated out of [specify the motive — business rivalry, property dispute, enmity]. The Applicant has no connection with the alleged offence; the allegations are a result of [specify].
>
> 4. That the quantity alleged in the case is [state whether small, intermediate or commercial]. [For a commercial quantity case:] The Applicant is advised that the requirements of Section 37 of the Act are applicable even to an application of the present nature; the Applicant submits that there are reasonable grounds for believing that he is not guilty of the alleged offence, and that he is not likely to commit any offence while on bail, for the reasons set out below:
>
> (a) the Applicant was not present at the place of recovery and no recovery has been effected from him or from his possession;
> (b) the alleged recovery is shown from [a vehicle/place] over which the Applicant has no control;
> (c) the only material against the Applicant is the statement of a co-accused recorded under Section 67 of the Act, which is not admissible — *Tofan Singh* (2021);

(d) the Applicant has no criminal antecedents and is not a flight risk.

5. That the Applicant undertakes:
(a) to make himself available for interrogation before the Investigating Officer as and when required;
(b) not to directly or indirectly make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the court or to the police;
(c) not to leave India without the previous permission of this Hon'ble Court;
(d) not to tamper with the evidence or influence the witnesses;
(e) to surrender his passport, if directed.

6. That the custodial interrogation of the Applicant is not required; the Applicant has joined the investigation [on __] and has cooperated fully; nothing is to be recovered from his custody.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to direct that in the event of the Applicant's arrest in connection with [FIR No. __ / the case arising out of the above facts], he be released on anticipatory bail on such terms and conditions as this Hon'ble Court may deem fit, in the interest of justice.

_____
APPLICANT THROUGH

Place: __ ADVOCATE
Date: __

Drafting notes

- **Timing.** Move the application before the arrest. Once the applicant is in custody, the application becomes one for regular bail and must be filed before the proper court.
- **The notice under section 35(3) BNSS (formerly section 41-A CrPC)** may be annexed to show that the applicant is cooperating; where the applicant has not joined the investigation despite notice, the application should explain the reason.
- **Interim protection.** Always pray for interim protection till the disposal of the application; in commercial quantity cases the court may be reluctant, and the grounds for the substantive relief must be good enough for interim relief as well.
- **Conditions precedent.** The court may require the applicant to be present in court for the order, to deposit the passport, or to report to the police station; the order should be reduced to writing and read carefully before being acted upon.
- **After the order.** If the police require custody, the applicant must apply for a direction that the order is not violated; keep a certified copy of the order at hand at all times.

B-5. Default Bail Application

Purpose

Where the investigation is not concluded and the police report is not filed within the statutory period, the accused acquires an **indefeasible right** to be released on bail. In an NDPS case triable by a Special Court, the outer limit for completing the investigation is **180 days** from the date of arrest, extendable to one year on the report of the Public Prosecutor.

Statutory basis

Section 187(3) BNSS, 2023 (formerly section 167(2) CrPC) read with **section 36-A(4) of the NDPS Act, 1985**; Article 21.

Leading authorities

- **Sanjay Dutt v. State through CBI**, (1994) 5 SCC 410 — the right accrues on the expiry of the prescribed period and cannot be defeated by a belated report.
- **Hitendra Vishnu Thakur v. State of Maharashtra**, (1994) 4 SCC 602 — an application for extension of the period must be made **before** the expiry of the period, on notice to the accused; an extension granted afterwards does not defeat the right to default bail.
- **Uday Mohanlal Acharya v. State of Maharashtra**, (2001) 5 SCC 453 — the right is indefeasible; it is lost only if the challan is filed before the accused seeks release, or where the accused does not apply and the prosecution obtains extension in time.
- **Rakesh Kumar Paul v. State of Assam**, (2017) 15 SCC 67 — the period is to be computed from the date of arrest, and the benefit cannot be denied on a misreading of the punishment.

Model application

> IN THE COURT OF THE LEARNED SPECIAL JUDGE (NDPS), [DISTRICT], [CITY]
>
> SC No. __ of 20_____ FIR No. ___ of 20 ___ PS : ____
> Under Sections __ of the NDPS Act, 1985
>
> [APPLICANT] S/o [Father's Name], R/o [address] .... APPLICANT
> VERSUS
> STATE through PS _____ .... RESPONDENT
>
> APPLICATION FOR GRANT OF STATUTORY (DEFAULT) BAIL UNDER SECTION 187(3) OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023 READ WITH SECTION 36-A(4) OF THE NDPS ACT, 1985
>
> MOST RESPECTFULLY SHOWETH:
>
> 1. That the Applicant was arrested in the above case on __ and was produced before the learned Duty Magistrate on __; he has since been in judicial custody and is presently lodged in [Central Jail ____]. A copy of the arrest memo and the custody certificate are annexed as Annexure A-1 and A-2.
>
> 2. That the maximum punishment prescribed for the offence alleged against the Applicant is [imprisonment for a term of ten years or more — the offence falling under Section 20(b)(ii)(C) / 21(c) of the Act]; accordingly the investigation was required to be completed and the report under Section 193 BNSS filed within **ninety days** from the date of arrest, or within such extended period, not exceeding **one hundred and eighty days**, as may have been allowed by this Hon'ble Court under Section 36-A(4) of the Act.
>
> 3. That _____ **days** have elapsed since the date of arrest of the Applicant, and no Final Report under Section 193 BNSS has been filed till date. The Learned Public Prosecutor was pleased to seek time for filing the Final Report on _____, which shows that the investigation is not complete even as on today.
>
> 4. That no application for extension of the period of investigation was made by the prosecution before the expiry of the said period, and no extension was granted by this Hon'ble Court on any application made after due notice to the Applicant. In the absence of a subsisting order of extension, the Applicant has acquired an indefeasible right to be

released on bail under Section 187(3) BNSS read with Section 36-A(4) of the Act, as held in *Hitendra Vishnu Thakur v. State of Maharashtra*, (1994) 4 SCC 602 and *Uday Mohanlal Acharya v. State of Maharashtra*, (2001) 5 SCC 453.

5. That the Applicant is ready and willing to furnish sureties to the satisfaction of this Hon'ble Court and to abide by any condition imposed; he is a permanent resident of [address], having roots in society, and there is no apprehension that he will abscond or tamper with the evidence.

6. That the present application is being filed on the very day of the completion of the statutory period [or: immediately upon the expiry of the period], and no Final Report has been filed till the time of filing of this application. The Applicant reserves the right to press additional grounds, if any, at the time of hearing.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to release the Applicant on statutory bail under Section 187(3) of the BNSS, 2023 read with Section 36-A(4) of the NDPS Act, 1985, on such terms and conditions as this Hon'ble Court may deem fit and proper, in the interest of justice.

_____
APPLICANT THROUGH

Place: __ ADVOCATE
Date: __

Drafting notes

- **Arithmetic is the whole case.** Annex a computation sheet: date of arrest, date of production, number of days, date of expiry of 90/180 days, and whether any order of extension exists. The application must show that the report was not filed before the right was claimed.
- **Be prompt.** The right is lost if the Final Report is filed before the accused applies. File on the earliest available date and note the presentation time.
- **Anticipate the prosecution.** The usual answer is that the period had not expired because of an extension, or that the period runs from a later date, or that the offence carries a lesser punishment. Deal with each in the application if the material is available.
- **Relief is not on the merits.** Default bail is not the occasion to argue the merits; but where the prosecution case is weak, the court may also release on merits in the alternative — plead the alternative relief in a separate paragraph.
- **Order to be complied with.** Once released, the applicant must satisfy the surety conditions within the time allowed; courts are known to cancel bail on breach of even the procedural conditions of a default bail order.

B-6. Interim Bail on Medical or Humanitarian Grounds

Purpose

For temporary release of an accused or convict in custody on account of illness, the death of a close relative, the illness of a family member, or other humanitarian grounds. Interim bail is not an occasion to re-argue the merits, but the court in a commercial quantity case will still look at section 37 — hence the application is framed on Article 21 and on the medical material.

Statutory basis

Sections 483 and 485 of the BNSS, 2023 (bonds); Article 21 of the Constitution; in the case of a convict, section 430 BNSS (suspension of sentence pending appeal) read with the applicable jail manual and the rules for parole/furlough.

Model application

IN THE COURT OF THE LEARNED SPECIAL JUDGE (NDPS), [DISTRICT], [CITY]
Bail Application No. __ of 20__ SC No. __ of 20__

[APPLICANT] .... APPLICANT

VERSUS

STATE .... RESPONDENT

APPLICATION FOR GRANT OF INTERIM BAIL ON MEDICAL / HUMANITARIAN GROUNDS

MOST RESPECTFULLY SHOWETH:

1. That the Applicant is in judicial custody in the above case since __ and is presently lodged in [Central Jail ____].

2. That the Applicant is suffering from [nature of illness — e.g. chronic kidney disease, cardiac ailment, carcinoma, spinal injury]; the medical documents are annexed as Annexure A-1 (discharge summary/prescription/medical report of [hospital]) and the jail medical record is annexed as Annexure A-2.

3. That the medical facilities available at the jail hospital are inadequate for the treatment required; the treating doctor has advised [surgery / specialised treatment / a consultation at hospital] on __; the treatment cannot be carried out in custody.

4. That the Applicant is not a flight risk; he has [roots in society; family to look after him]; he undertakes to remain at [address] during the period of interim bail, to report to the police station as directed, and to surrender before this Hon'ble Court on the expiry of the period of interim bail without any demur.

5. That the health of the Applicant has deteriorated in custody [state the facts], and continued incarceration is likely to endanger his life, which would render his right under Article 21 illusory.

6. That the present application is moved bona fide and for a limited period of ____ [weeks], solely for the purpose of medical treatment; the Applicant will not misuse the liberty granted.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to release the Applicant on interim bail for a period of __ [days/weeks] on medical grounds, on such terms and conditions as this Hon'ble Court may deem fit, and to direct that the Applicant shall be [treated at hospital / admitted at hospital __] during the said period, in the interest of justice.

_____
APPLICANT THROUGH

Place: __ ADVOCATE
Date: __

Drafting notes

- **Medical evidence first.** In practice, interim bail on medical grounds succeeds or fails on the medical record: the prescription of the treating doctor, the admission advice, the report of the jail medical officer, and, where possible, the opinion that the jail medical facility cannot provide the treatment.
- **A prisoner on interim bail remains in custody in the eye of law.** The order should specify the place of residence, reporting obligations, and the date of surrender; keep a copy of the surrender application ready before the period expires.
- **For a convict:** the application should be framed as one for suspension of sentence and release on bail pending appeal under section 430 BNSS, supported by the appeal and the grounds; the medical criterion applies with greater force where the sentence is long and the appeal is likely to take years.

B-7. Discharge Application

Purpose

After the Final Report is filed and copies are supplied, the accused may ask the Special Court to be discharged if there is no sufficient ground for proceeding against him. In a Special Court, which is a Court of Session, the application is made under **section 250 BNSS** (formerly section 227 CrPC). In a case tried as a warrant case by a Magistrate, the provision is section 262 BNSS (formerly section 239 CrPC).

Statutory basis

Section 250 BNSS, 2023 read with section 36-A(1)(d) of the NDPS Act, 1985.

Leading authorities

- **Union of India v. Prafulla Kumar Samal**, (1979) 3 SCC 4 — the court must be satisfied that there are grounds for presuming that the accused committed the offence; a prima facie case, not a case beyond reasonable doubt, is the test.
- **Dilwar Basha v. State of Karnataka** and the long line of authority that the probative value of the materials must be tested by the court itself, and that suspicion cannot take the place of legal proof.
- **State of Bihar v. Ramesh Singh**, (1977) 4 SCC 39 — the court must not conduct a mini-trial but must apply its mind to the material.
- **Sanjay Gandhi v. Union of India / Century Spinning** — the court may sift the material to find out whether the facts disclosed constitute the offence.

Model application

IN THE COURT OF THE LEARNED SPECIAL JUDGE (NDPS), [DISTRICT], [CITY]
SC No. __ of 20____FIR No.___ of 20___PS : _____
Under Sections __ of the NDPS Act, 1985

[ACCUSED] .... APPLICANT

VERSUS

STATE .... RESPONDENT

APPLICATION FOR DISCHARGE UNDER SECTION 250 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023 ON BEHALF OF THE ACCUSED

MOST RESPECTFULLY SHOWETH:

1. That the Final Report under Section 193 BNSS has been filed against the Applicant and the copies of the documents have been supplied to him vide order dated __.

2. That a perusal of the record of the case and of the documents supplied discloses no sufficient ground for proceeding against the Applicant; the material, taken at its highest, does not make out the ingredients of the offences alleged, and this Hon'ble Court will be pleased to discharge the Applicant.

3. That the Applicant was not named in the FIR; his name has been introduced for the first time in the statement of [the co-accused / a police witness] recorded during the investigation, which is not admissible — *Tofan Singh* (2021).

4. That, as is apparent from the seizure memo/inventory, no recovery of any contraband was effected from the person or the conscious possession of the Applicant; the Applicant is not the owner or the occupant of the [vehicle/premises] from which the alleged recovery is shown.

5. That the alleged recovery and sampling are contrary to the mandatory provisions of Sections 42, 50 and 52-A of the Act [state the specific defect, if articulated in the Final Report or apparent from the documents], and the only primary evidence on which the prosecution can rely — the certified inventory, photographs and list of samples under Section 52-A(4) — does not exist.

6. That the chemical examination report [does not relate to the substance allegedly recovered / does not disclose the presence of any notified narcotic drug or psychotropic substance / shows a weight irreconcilable with the seizure documents], and in the absence of proof of the identity of the substance, the very foundation of the offence fails.

7. That the Applicant has been falsely implicated [state the circumstances]; the Applicant has no criminal antecedents and his continuance in the array of the accused would subject him to the rigours of a long trial for an offence he did not commit.

8. That the present application is confined to the material on record and this Hon'ble Court is not called upon to appreciate the defence of the Applicant; the Applicant reserves the right to raise all defences at trial, in the event of an order of discharge not being passed.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to discharge the Applicant of the offences alleged in the above case, in the interest of justice.

_____
APPLICANT THROUGH

Place: __ ADVOCATE
Date: __

Drafting notes

- **File within the time allowed.** Under section 262 BNSS the application for discharge in a magistrate-tried case is to be made within sixty days of the supply of documents; for a session-tried case the section does not fix a period, but delay is taken as an indication that the accused has no case for discharge.
- **Stay within the record.** The court considers the Final Report, the statements and the documents relied on. Do not annex defence documents; if a document is relied on by the prosecution, rely on it.
- **Record the grounds in the alternative.** If discharge is refused, the grounds argued at this stage become the foundation of the defence at trial — a transcript of the submissions is worth obtaining.
- **Discharge does not bar a fresh prosecution** on fresh material; do not argue the matter as if it were an acquittal.

B-8. Application for Supply of Documents and for Re-analysis of the Sample

Purpose

Two related applications: (i) to obtain, free of cost, the copies of the police report and the documents relied upon — now a statutory right enforceable within **fourteen days** of the appearance of the accused; and (ii) to have the **duplicate sample** re-tested or the seized substance re-analysed, where the report of the chemical examiner is defective, delayed, or is inconsistent with the seizure record.

Statutory basis

Sections 230 and 231 of the BNSS, 2023 (formerly sections 207 and 208 CrPC); section 52-A of the NDPS Act and Rules 9 to 15 of the 2022 Rules (duplicate sample; return of remnants; re-testing); the court's power to direct the disposal and custody of property under section 497 BNSS.

Model application (supply of documents)

> IN THE COURT OF THE LEARNED SPECIAL JUDGE (NDPS), [DISTRICT], [CITY]
> SC No. __ of 20____
>
> [ACCUSED] .... APPLICANT
>
> VERSUS
>
> STATE .... RESPONDENT
>
> APPLICATION UNDER SECTION 230 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023 FOR SUPPLY OF COPIES OF DOCUMENTS
>
> MOST RESPECTFULLY SHOWETH:
>
> 1. That the Applicant is an accused in the above case and the Final Report under Section 193 BNSS was filed on __; the Applicant appeared before this Hon'ble Court on __.
>
> 2. That under Section 230 BNSS the Applicant is entitled, free of cost and in any event within fourteen days of his appearance, to a copy of the police report and of each of the documents referred to therein, including the statements recorded under Section 180 BNSS. Certain documents essential for the conduct of his defence have not been supplied, namely:
>
> (i) the copy of the information/grounds of belief recorded under Section 42 of the NDPS Act;
> (ii) the notice/record of the option given to the Applicant under Section 50 of the Act;
> (iii) the inventory and photographs prepared under Section 52-A(2) and the list of samples certified by the Magistrate;
> (iv) the report of the chemical examiner along with the Test Memo (Form-6) and the covering letter;
> (v) the godown register entries (Form-3) and the forwarding memorandum (Form-1);
> (vi) the report of arrest and seizure submitted under Section 57 of the Act;
> (vii) [specify any other document].
>
> 3. That the documents sought are part of the record of the case and are necessary for the effective defence of the Applicant; the right to a fair trial under Article 21 includes the right to the supply of the material on which the prosecution proposes to rely.
>
> PRAYER
>
> It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to direct the prosecution to supply to the Applicant, free of cost, the copies of the documents enumerated in paragraph 2 above, and to grant such further time as may be necessary for filing an application for discharge, in the interest of justice.
>
> _____
> ACCUSED THROUGH ADVOCATE
>
> Place: __ Date: __

Model application (re-analysis / re-test of the duplicate sample)

> IN THE COURT OF THE LEARNED SPECIAL JUDGE (NDPS), [DISTRICT], [CITY]

SC No. __ of 20____

[ACCUSED] .... APPLICANT

VERSUS

STATE .... RESPONDENT

APPLICATION FOR SENDING THE DUPLICATE SAMPLE FOR RE-ANALYSIS / RE-TEST TO AN INDEPENDENT LABORATORY

MOST RESPECTFULLY SHOWETH:

1. That the prosecution alleges recovery of __[substance] from the Applicant on __; a sample was drawn and sent for chemical analysis; the report of the chemical examiner dated ____ is on record.

2. That the sample drawn was in duplicate and, under Rule 10 read with Rule 12 of the NDPS (Seizure, Storage, Sampling and Disposal) Rules, 2022, the duplicate sample is being preserved; Rule 15 requires the duplicate sample to be deposited in the godown along with the remnants after the report is accepted by the court.

3. That the report relied upon by the prosecution suffers from the following defects: [the weight of the sample as analysed differs from the weight recorded in the Test Memo / the colour and description of the substance differ / the seals of the sample have not been accounted for / the report does not disclose the percentage of the active substance / the report is on the copy of the Test Memo and not on the duplicate / the chain of custody between the godown and the laboratory has not been established].

4. That in the circumstances it is essential, in the interest of justice and to enable the Applicant to meet the case against him, that the duplicate sample be sent for analysis to [an independent laboratory — CFSL/FSL ____], and that a mirror-image copy of the laboratory record be preserved. The Applicant is prepared to abide by any condition, including deposit of the costs of the re-analysis.

5. That the Applicant has moved the present application at the earliest, before the trial has proceeded to the stage of the examination of the chemical examiner; no prejudice will be caused to the prosecution, and the re-analysis will assist this Hon'ble Court in arriving at the truth.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to direct that the duplicate sample of the seized substance be sent for chemical analysis to [laboratory], and that the report so obtained be taken on record along with the report already on the file; and further, that the remnants of the sample and the duplicate sample be preserved until the conclusion of the trial, in the interest of justice.

_____

ACCUSED THROUGH ADVOCATE

Place: __ Date: __

Drafting notes

- **The fourteen-day rule cuts both ways.** Under section 230 BNSS, the obligation is to supply copies within fourteen days of appearance. Record the date of appearance in the order sheet, and if the copies are not supplied, the objection should be taken on the record on the fifteenth day.
- **Re-analysis is a power, not a right.** The statute does not confer an absolute right to a second analysis; the application must therefore demonstrate a specific defect in the report or in the chain of custody. General dissatisfaction will not move the court.
- **Preserve the duplicate.** Where the duplicate sample is likely to be destroyed or returned, apply at once for preservation; a request in writing to the Investigating Officer and to the godown in-charge, filed in court, is a useful record.
- **The BSA, 2023.** Where the record includes electronic material (call detail records, CCTV, WhatsApp chats, e-mail), the certificate under section 63 of the Bharatiya Sakshya Adhiniyam, 2023 must accompany it; a copy supplied without the certificate is a legitimate ground of objection.

B-9. Application for Release of the Seized Vehicle / Conveyance (Supardari)

Purpose

Where a vehicle, vessel or aircraft used in, or suspected to have been used in, the alleged offence is seized and is lying in the police station or the godown, the person entitled may seek its interim custody (**supardari**) instead of leaving it to deteriorate until the conclusion of the trial.

Statutory basis

Sections 497 and 503 of the BNSS, 2023 (formerly sections 451 and 457 CrPC); sections 49, 52-A, 60(3) and 63 of the NDPS Act, 1985; Rules 16 to 23 of the 2022 Rules (conveyances are among the items liable to disposal under section 52-A).

Leading authorities

- **Sunderbhai Ambalal Desai v. State of Gujarat**, (2002) 10 SCC 283 — the Supreme Court's directions that vehicles should not be kept in the custody of the police until the conclusion of the trial; interim custody should ordinarily be given to the person entitled, against a bond and subject to conditions.
- **General Insurance Council v. State of Andhra Pradesh**, (2010) 4 SCC 354 — release of seized vehicles; the court may permit release on an indemnity bond.
- Under the NDPS scheme, the conveyance is a **case property liable to confiscation** under section 60(3); the release is therefore generally ordered on supardari, with the express condition that the vehicle will be produced before the court and the confiscating authority as and when required.

Model application

IN THE COURT OF THE LEARNED SPECIAL JUDGE (NDPS), [DISTRICT], [CITY]

SC No. __ of 20____ FIR No. ___ of 20 __ PS : _____
Under Sections __ of the NDPS Act, 1985

[APPLICANT] S/o [Father's Name], R/o [address] .... APPLICANT

VERSUS

STATE through PS _____ .... RESPONDENT

APPLICATION FOR RELEASE OF THE SEIZED VEHICLE BEARING REGISTRATION NO. __ ON SUPERDARI

MOST RESPECTFULLY SHOWETH:

1. That the Applicant is the registered owner of the vehicle bearing Registration No. __ (make/model __, Engine No. __, Chassis No. __, year of manufacture ____), and is the accused in the present case. A copy of the Registration Certificate, the insurance policy and the permit (where applicable) are annexed as Annexure A-1 (colly).

2. That the said vehicle was seized by the police on __ in connection with the above case and is lying in the case property store / godown of PS _____, exposed to the weather and to deterioration.

3. That the vehicle is the only source of livelihood of the Applicant, who is engaged in [occupation — e.g. taxi operation, transport business] and earns his living from the said vehicle; its continued detention is causing irreparable loss and hardship to the Applicant and his family.

4. That the Applicant is the lawful owner, and no other person has any claim over the vehicle. The Applicant has not been declared a proclaimed offender; he is contesting the case and will continue to do so.

5. That the vehicle is not a contraband substance; the only reason for its detention is its alleged use in the transport of the contraband. Whatever may be the outcome of the confiscation proceedings, the vehicle will not lose its identity and can be produced before this Hon'ble Court as and when directed. In *Sunderbhai Ambalal Desai v. State of Gujarat*, (2002) 10 SCC 283, the Hon'ble Supreme Court deprecated the practice of retaining vehicles in police custody till the conclusion of the trial.

6. That the Applicant undertakes:

(a) to produce the vehicle before this Hon'ble Court and before the Investigating Officer/confiscating authority as and when directed;
(b) not to transfer, sell, alienate or create any third-party interest in the vehicle, and not to change its colour, registration or identifying particulars;
(c) to get the vehicle photographed from all sides, including the engine and chassis numbers, with a certified copy of the photographs submitted to this Hon'ble Court before release;
(d) to file an undertaking/affidavit to this effect, supported by an indemnity bond of ₹__;
(e) to abide by the conditions that the vehicle shall be produced whenever the case property is required to be identified.

7. That no prejudice will be caused to the prosecution if the vehicle is released on supardari; the confiscation proceedings, if any, will be decided on the material already on record.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to release the vehicle bearing Registration No. __ on supardari to the Applicant, on such terms and conditions as this Hon'ble Court may deem fit, including the filing of an undertaking and an indemnity bond, in the interest of justice.

_____
APPLICANT THROUGH

Place: __ ADVOCATE
Date: __

Drafting notes

- **Identify the vehicle precisely** — registration number, engine number, chassis number and the colour, matching the panchnama. The court will verify identity before ordering release.
- **Photographs before release.** The uniform practice is to photograph the vehicle (with the number plate visible) and place the photographs on record before release, so that the identity of the case property is preserved. The application should offer this.
- **Supardari to the owner, not to the accused's nominee.** Where the applicant is the accused, the court may require an independent surety or the registered owner; where a financier holds a lien, the financier may be heard.
- **Confiscation is a separate proceeding.** Release on supardari does not bar confiscation under section 60(3) read with section 63; the undertaking should acknowledge this.
- **Two wheels or four, the principle is the same.** The same format serves for a truck, a taxi, a two-wheeler, a boat or a drone within the definition of "conveyance" in section 2(viii).
- **Return of the vehicle after the trial.** Section 498 BNSS (formerly section 452 CrPC) governs final disposal; the interim release on supardari does not conclude the question.

B-10. Application for Release of Seized Cash, Mobile Phone, Documents and Other Articles

Purpose

Where the seizure includes items that are not contraband (currency, a mobile phone, a laptop, documents, jewellery, a passport), the person entitled may seek their release on supardari, or, in an appropriate case, their return, where their retention serves no purpose for the trial.

Statutory basis

Sections 497 and 503 of the BNSS, 2023; section 63 of the NDPS Act (confiscation of the sale proceeds of illicit drugs, and of goods used for concealing them); sections 66 to 68 of the Act (information and documents).

Model application

IN THE COURT OF THE LEARNED SPECIAL JUDGE (NDPS), [DISTRICT], [CITY]
SC No. __ of 20____

[APPLICANT] .... APPLICANT

VERSUS

STATE .... RESPONDENT

APPLICATION FOR RELEASE OF SEIZED ARTICLES VIZ. CASH OF ₹__ / MOBILE PHONE BEARING IMEI NO. __ / DOCUMENTS (LISTED IN THE SEIZURE MEMO) ON SUPERDARI

MOST RESPECTFULLY SHOWETH:

1. That during the investigation of the above case the police seized the following articles from the Applicant, which are case property and are lying in the malkhana of PS _____:
   (i) cash amounting to ₹__;
   (ii) one mobile phone, make __, IMEI No. __, used by the Applicant;
   (iii) original documents [list them — educational certificates, driving licence, passport, registration papers];
   (iv) one [laptop / hard disk / other article].

2. That the Applicant is the lawful owner of the said articles; the cash represents [his lawful savings / the proceeds of the sale of __ / his salary withdrawn on __], and the documents are required by the Applicant for [the purpose].

3. That the seized currency and articles are not contraband and are not liable to confiscation under section 60 of the NDPS Act merely by reason of the seizure, unless the prosecution establishes that they are the proceeds of illicit traffic within the meaning of section 62, which it has not done at this stage.

4. That the mobile phone has already been subjected to forensic examination / its data has been extracted and preserved in the form of a mirror image; the memory card and the device are no longer required for investigation, whereas the Applicant requires the phone for his day-to-day communication and for his [occupation/business].

5. That the original documents in the seizure memo [if any] are required urgently by the Applicant for [specify — examination forms, KYC, renewal of licence, medical treatment] and no purpose is served by their retention; the prosecution's case can be conducted on the basis of the copies placed on record.

6. That the Applicant is ready to file an undertaking and an indemnity bond to produce the said articles before this Hon'ble Court as and when directed, and not to part with them or alter them in any manner.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to release the articles enumerated in paragraph 1 above on supardari to the Applicant, on such terms and conditions as this Hon'ble Court may deem fit, in the interest of justice.

_____
APPLICANT THROUGH

> Place: __ ADVOCATE
> Date: __

Drafting notes

- **Ask for a mirror-image preservation order for the phone.** If the data has not been extracted, the safer course is to ask the court to direct the Investigating Officer to prepare a forensic image (with the certificate under section 63 BSA, 2023) and place it on record before the phone is released. This protects the accused against later allegations of tampering.
- **Cash and "sale proceeds".** Where the prosecution alleges that the cash is the sale proceeds of drugs, the release application must meet that allegation and the conditions in section 62; in such cases, release may be refused.
- **Passport.** The prosecution often opposes the release of a passport; where the applicant has furnished the passport as a condition of bail, withdraw that ground or apply to the court to substitute an alternative condition before pressing for its release.
- **Receipts.** The order of release should specify the exact items; obtain a receipt/acknowledgment from the malkhana and file it in the court record to avoid a later allegation of non-return.

B-11. Application for Immunity under Section 64-A (Addict Volunteering for Treatment)

Purpose

Section 64-A grants immunity from prosecution to an **addict who is charged with an offence punishable under section 27, or with offences involving small quantity**, and who voluntarily undergoes de-addiction treatment at a hospital or institution maintained or recognised by the Government or a local authority. The immunity is available **once in a lifetime** and may be withdrawn if the treatment is not completed. The application is made to the court (where prosecution has begun) and a representation is made in parallel to the Investigating Officer/Government (where it has not).

Statutory basis

Section 64-A of the NDPS Act, 1985 read with section 27, section 39 (release of an addict for treatment) and the NDPS Rules, 1985; the National Fund for Control of Drug Abuse (section 7-A) and the Central Government's de-addiction programme guidelines.

The statutory text

> "64-A. Immunity from prosecution to addicts volunteering for treatment.— Any addict, who is charged with an offence punishable under section 27 or with offences involving small quantity of narcotic drugs or psychotropic substances, who voluntarily seeks to undergo medical treatment for de-addiction from a hospital or an institution maintained or recognized by the Government or a local authority and undergoes such treatment shall not be liable to prosecution under section 27 or under any other section for offences involving small quantity of narcotic drugs or psychotropic substances:
> Provided that the said immunity from prosecution may be withdrawn if the addict does not undergo the complete treatment for de-addiction."

Model application

> IN THE COURT OF THE LEARNED SPECIAL JUDGE (NDPS) / JUDICIAL MAGISTRATE, [DISTRICT], [CITY]
>
> SC/Criminal Case No. __ of 20___ FIR No. __ of 20__ PS : ___
> Under Section 27 / Section 20(b)(ii)(A) / Section 21(a) of the NDPS Act, 1985
>
> [APPLICANT/ACCUSED] .... APPLICANT
> VERSUS
> STATE .... RESPONDENT
>
> APPLICATION UNDER SECTION 64-A OF THE NARCOTIC DRUGS AND PSYCHOTROPIC SUBSTANCES ACT, 1985 FOR GRANT OF IMMUNITY FROM PROSECUTION TO AN ADDICT VOLUNTEERING FOR TREATMENT
>
> MOST RESPECTFULLY SHOWETH:
>
> 1. That the Applicant is an addict within the meaning of Section 2(ii) of the Act — his dependence on [substance] is documented in the medical record annexed herewith as Annexure A-1 [medical prescription / initial assessment report of the de-addiction centre].
>
> 2. That the Applicant is charged in the present case with an offence punishable under Section 27 of the Act [or with an offence involving a small quantity only, namely __ grams of __, the notified small quantity being _____], and with no other offence under Sections 15 to 25 or Section 27-A of the Act. The Applicant is therefore squarely within the class of persons to whom the protection of Section 64-A extends.
>
> 3. That the Applicant has **voluntarily** sought admission for de-addiction treatment at [name of hospital/institution], a [Government hospital / institution recognised by the Government / local authority], and has been admitted there on __ vide registration/case file No. __ (Annexure A-2). The said institution is maintained/recognised by the Government within the meaning of Section 64-A.
>
> 4. That the Applicant has undergone [number] days of the prescribed treatment programme and is continuing the treatment in right earnest; the medical officer in charge has certified the progress of the treatment (Annexure A-3). The Applicant undertakes to undergo the **complete** treatment programme and to produce the completion certificate before this

Hon'ble Court, and to report to this Hon'ble Court and to the Investigating Officer as directed during the period of treatment.

5. That the Applicant has never claimed or been granted the benefit of immunity under Section 64-A at any time in his life; the immunity is available to him once in a lifetime, and he has not availed of it before. A declaration to this effect is annexed as Annexure A-4.

6. That the Applicant has no other criminal case pending against him; his prosecution in the present case is confined to the offence of consumption/possession of a small quantity for personal consumption. In the circumstances, no useful purpose will be served by continuing the prosecution, which will defeat the reformative object of Section 64-A.

7. That the Applicant is not charged with any offence punishable under Sections 15 to 25 (both inclusive) or Section 27-A of the Act in relation to a quantity greater than small quantity, and the bar, if any, on the grant of immunity does not apply to him.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to grant the Applicant immunity from prosecution under Section 64-A of the NDPS Act, 1985, and to discharge/close the proceedings against the Applicant accordingly, subject to the condition that the Applicant completes the prescribed course of de-addiction treatment and produces the certificate of completion before this Hon'ble Court, in the interest of justice.

_____
APPLICANT THROUGH

Place: __ ADVOCATE
Date: __

Model representation to the Investigating Officer / Government (pre-trial stage)

To
The Station House Officer / The Superintendent of Police / The Zonal Director, Narcotics Control Bureau,
[address]

Subject: Representation on behalf of [name], an addict volunteering for de-addiction treatment, seeking the protection of Section 64-A of the NDPS Act, 1985 — FIR No. __ of 20__, PS _____ .

Sir,

1. [Name], aged ___ years, R/o [address] is an addict within the meaning of Section 2(ii) of the NDPS Act, 1985, and is the [accused/suspect] in the above case, which relates to a small quantity of [substance] / to an offence under Section 27 of the Act.

2. He has voluntarily sought admission for de-addiction treatment at [institution] and has been admitted on __; a copy of the admission record is enclosed.

3. Section 64-A of the Act provides that an addict who is charged with an offence punishable under Section 27 or with offences involving a small quantity, and who voluntarily seeks and undergoes such treatment, shall not be liable to prosecution.

4. It is therefore requested that the protection of Section 64-A be extended to the applicant, that no coercive action be taken against him during the period of treatment, and that the complete treatment record be accepted in lieu of prosecution. The applicant undertakes to abide by the rules of the institution and to complete the treatment.

Yours faithfully,
[Name] / Through Advocate

Encl.: Admission record; medical certificate; identity proof.

Drafting notes

- **Who is eligible.** The protection is confined to an addict charged under section 27 or with an offence involving a small quantity. An addict charged with a commercial quantity offence cannot claim it. Verify the quantity from the seizure documents before moving the application.

- **"Voluntarily".** The record must show that the addict sought treatment of his own volition — the admission form, the initial assessment and the attendant's certificate should say so. The immunity was introduced to encourage treatment, and courts look at the voluntariness closely.
- **Complete the treatment.** The proviso permits withdrawal of the immunity if the addict does not complete the treatment. Applications must undertake to produce the completion certificate, and the order should be worded so that compliance is monitorable.
- **Once in a lifetime.** The applicant should declare on oath that he has never availed of the immunity. A false declaration invites withdrawal.
- **Parallel track.** Where the prosecution has not yet begun, the representation route is faster than the court route; once the complaint is filed, the court application must be pressed, and the representation should be placed on the record as evidence of bona fides.
- **Section 39 is the second route.** Where the trial has concluded and the addict is convicted under section 27, section 39 permits release on bond for de-addiction instead of immediate sentencing — see B-13.

B-12. Representation for Tender of Immunity under Section 64

Purpose

Section 64 empowers the Central Government or the State Government to **tender immunity from prosecution** to a person believed to have been concerned in, or privy to, a contravention of the Act, on condition that he makes a full and true disclosure of the whole circumstances. Unlike section 64-A, this immunity is in the gift of the Government and is granted to obtain evidence — including against the principal offenders. The format below is a representation by or on behalf of a person who seeks to be considered for the tender; it is not a court application.

Statutory basis

Section 64 of the NDPS Act, 1985. The Governments may also invoke section 64 to tender immunity to a person who comes forward as a witness; the tender may be withdrawn if the person conceals anything, gives false evidence or does not comply with the conditions.

Model representation

> To
> The Secretary to the Government of [State]/[Union Territory],
> Department of [Home/Finance/Revenue], [address]
> [Copy to: The Director General, Narcotics Control Bureau, New Delhi]

> Subject: Representation seeking tender of immunity from prosecution under Section 64 of the NDPS Act, 1985 in connection with FIR No. __ of 20__, PS_____ — disclosure of the whole circumstances relating to the contravention.

> MOST RESPECTFULLY SHOWETH:

> 1. That the applicant, [Name], S/o [father], R/o [address], is [status — a licensee/importer/transporter/employee/associate] and is concerned in the subject matter of the above FIR; he has not been arrested and no prosecution has been launched against him so far [or: he is an accused in the above case and is in custody].

> 2. That the applicant is desirous of making a **full and true disclosure of the whole circumstances** relating to the contravention of the provisions of the Act and to place on record material — [documents, records, information] — which will be useful in the investigation of the offence and in the apprehension of the principal offenders, namely [names/description].

> 3. That the applicant has not been convicted of any offence and is not, by himself, the principal beneficiary of the alleged contravention; the material in his possession is not available from any other source.

> 4. That the applicant is willing, in consideration of the tender of immunity from prosecution under Section 64 of the Act, to (i) make a full and true disclosure of the whole circumstances, (ii) produce all documents and records in his possession, (iii) appear and give evidence truthfully in any proceeding under the Act, and (iv) abide by all conditions that the Government may impose.

> 5. That the applicant undertakes that, in the event of the immunity being withdrawn for non-compliance, the tender and the facts disclosed shall not be used in evidence against him except in a prosecution for the offence of giving false evidence.

> 6. That it is expedient in the public interest, in order to obtain evidence which is not otherwise available, to tender immunity to the applicant upon the conditions set out above.

> PRAYER

> It is, therefore, most respectfully prayed that the Government may kindly be pleased to consider the above representation and tender to the applicant immunity from prosecution under Section 64 of the NDPS Act, 1985, on such conditions as it may deem fit, and to record its reasons for so doing in writing, as required by the said section.

> Yours faithfully,
> [Name] / Through Advocate, [address]

Place: __ Date: __
Encl.: (1) Identity proof; (2) Statement of the proposed disclosure; (3) List of documents offered.

Format of an order of tender of immunity (for reference)

GOVERNMENT OF [STATE] — DEPARTMENT OF [HOME/REVENUE]
Order No. __ dated __

WHEREAS the Government is of the opinion that, with a view to obtaining the evidence of [name], it is necessary to tender to him immunity from prosecution for [offence(s)] under the NDPS Act, 1985 / the Indian Penal Code / [other Act] in connection with [case particulars];
AND WHEREAS the reasons for the said opinion have been recorded in writing and are set out in the file notings forming part of this order;

NOW, THEREFORE, in exercise of the powers conferred by Section 64 of the Narcotic Drugs and Psychotropic Substances Act, 1985, the Government hereby tenders to the said [name] immunity from prosecution for the said offence(s), subject to the following conditions:
(i) that he shall make a full and true disclosure of the whole circumstances relating to the said contravention on or before [date];
(ii) that he shall produce the documents/records listed in Annexure A and shall not withhold anything material;
(iii) that he shall appear and give evidence truthfully in [case/proceedings]; and
(iv) that he shall not commit any offence during the subsistence of this immunity.

This tender of immunity shall be liable to be withdrawn, in accordance with sub-section (3) of Section 64 of the said Act, if the said person fails to comply with any of the above conditions.

By order and in the name of the Governor of [State]
(Signature) Secretary to Government

Drafting notes

- **Jurisdiction.** The power is executive, not judicial. The application lies to the Central Government or the State Government, not to the Court. A copy to the Investigating Agency is desirable, and, where the person is in custody, an intimation must be given to the court so that the arrest does not foreclose the process.
- **Reduction of the reasons into writing** is a condition of the validity of the exercise of the power; the representation should expressly draw attention to the requirement, and the file should reflect the material placed by the applicant.
- **Consequences of withdrawal.** Where the immunity is withdrawn, the person may be tried for the offence in respect of which the tender was made; the conditions must therefore be drafted narrowly and performed diligently.
- **Interaction with section 64-A.** Section 64 immunity is available even in serious cases (subject to the Government's opinion), whereas section 64-A is confined to addicts charged under section 27 / small quantity. Choose the route by reference to the offence and the utility of the disclosure.

B-13. Application for Probation, Bond and De-addiction for an Addict Convict

Purpose

To seek, in an appropriate case, release on bond instead of immediate imprisonment: (i) for an addict convicted under section 27, under **section 39** (release for de-toxification or de-addiction); and (ii) the limited benefit of probation under **section 33**. The application is made at the stage of sentencing.

Statutory basis

Sections 27, 33 and 39 of the NDPS Act, 1985; section 401 BNSS, 2023 (bonds) and the corresponding provisions of the Probation of Offenders Act, 1958 — the application of which is restricted by section 33 of the NDPS Act except in the case of offenders under eighteen years of age.

The statutory texts

> "39. Power of court to release certain offenders on probation.—(1) When any addict is found guilty of an offence punishable under section 27 and if the court by which he is found guilty is of the opinion, regard being had to the age, character, antecedents or physical or mental condition of the offender, that it is expedient so to do, then, notwithstanding anything contained in this Act or any other law for the time being in force, the court may, instead of sentencing him at once to any imprisonment, with his consent, direct that he be released for undergoing medical treatment for de-toxification or de-addiction from a hospital or an institution maintained or recognized by Government and on his entering into a bond in the form prescribed by the Central Government, with or without sureties, to appear and furnish before the court within a period not exceeding one year, a report regarding the result of his medical treatment and, in the meantime, to abstain from the commission of any offence under Chapter IV.

> (2) If it appears to the court, having regard to the report regarding the result of the medical treatment furnished under sub-section (1), that it is expedient so to do, the court may direct the release of the offender after due admonition on his entering into a bond ... for abstaining from the commission of any offence under Chapter IV during such period not exceeding three years as the court may deem fit to specify ..."

Model application

> IN THE COURT OF THE LEARNED SPECIAL JUDGE (NDPS) / JUDICIAL MAGISTRATE, [DISTRICT], [CITY]
> SC/Criminal Case No. __ of 20____
> Under Section 27 of the NDPS Act, 1985
>
> STATE .... PROSECUTION
>
> VERSUS
>
> [CONVICT] .... CONVICT
>
> APPLICATION ON BEHALF OF THE CONVICT UNDER SECTION 39 OF THE NDPS ACT, 1985 PRAYING FOR RELEASE FOR UNDERGOING DE-ADDICTION TREATMENT INSTEAD OF IMMEDIATE SENTENCE
>
> MOST RESPECTFULLY SHOWETH:
>
> 1. That the convict has been found guilty by this Hon'ble Court of the offence punishable under Section 27 of the Act, the quantity involved being a small quantity meant for personal consumption.
>
> 2. That the convict is an addict within the meaning of Section 2(ii) of the Act; his dependence on [substance] is documented by [the medical record seized / his admission before the Investigating Officer / the assessment of the de-addiction centre], and the convict needs treatment rather than incarceration.
>
> 3. That regard being had to the age of the convict (____ years), his character, antecedents, family circumstances and physical and mental condition — [state briefly] — it is expedient that the convict be released for medical treatment for de-toxification/de-addiction instead of being sentenced at once to imprisonment, in terms of Section 39(1) of the Act.
>
> 4. That the convict **consents** to being released for such treatment at [name of hospital/institution], maintained or recognised by the Government, and is willing to enter into a bond, with or without sureties, to appear before this Hon'ble Court and to furnish a report of the result of his medical treatment within a period not exceeding one year, and to abstain in the meantime from the commission of any offence under Chapter IV of the Act.

5. That the convict has already been admitted/is willing to be admitted at [institution] with effect from __ vide registration No. __ (Annexure A-1).

6. That the object of the Act is not merely punitive; the object of the treatment-oriented provisions in Sections 39 and 64-A is the reformation of the addict, and the convict is a fit person for the benefit of Section 39.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased, instead of sentencing the convict at once to imprisonment, to direct that the convict be released for undergoing medical treatment for de-toxification/de-addiction from [institution] for a period of __ months, on his entering into a bond in the prescribed form, with or without sureties, to appear and furnish before this Hon'ble Court a report regarding the result of his medical treatment and to abstain in the meantime from the commission of any offence under Chapter IV of the Act, in the interest of justice.

_____
CONVICT THROUGH ADVOCATE

Place: __ Date: __

Working form of the bond

BOND UNDER SECTION 39 OF THE NARCOTIC DRUGS AND PSYCHOTROPIC SUBSTANCES ACT, 1985

Know all men by these presents that I, [name], son/wife/daughter of [name], resident of [address], the convict in the above case, and my surety [name], resident of [address], do hereby bind ourselves jointly and severally to pay to the President of India / the Governor of [State] the sum of ₹__ [or the sum fixed by the court] on the following conditions:

1. That the convict shall, on the day of __ or within such time as this Hon'ble Court may allow, be admitted to and undergo medical treatment for de-toxification/de-addiction at [institution], maintained or recognised by the Government, and shall remain under treatment there for the period of ____ months / until discharged by the medical officer in charge;

2. That the convict shall appear before this Hon'ble Court on the __ day of ____ and shall then furnish a report regarding the result of his medical treatment;

3. That the convict shall not commit any offence under Chapter IV of the Act during the period of the bond;

4. That the convict shall not leave the jurisdiction of this Hon'ble Court without its permission.

Dated: __ _____
Convict / Surety (signatures)

Witness: 1. _____ 2. ____

Drafting notes

- **Section 33 bars probation for adults.** Section 33 of the Act excludes the application of section 360 CrPC / the Probation of Offenders Act, 1958 to a person convicted under the Act except one under eighteen years of age. For an adult, therefore, the route is **section 39** (addicts convicted under section 27) or the statutory scheme of the 2014 Amendment for treatment; the ground must be framed accordingly.
- **Consent is mandatory.** Section 39 operates only with the consent of the convict. An express statement of consent on oath or from the dock should be recorded in the order.
- **Report at the end of one year.** The bond requires the convict to appear and furnish the report of treatment within one year. Diary the date, and file the medical report before the date rather than on it.
- **Anticipate the sentence hearing.** Deals under section 27 are often disposed of in a single hearing; the application should be carried to the hearing along with the admission record and the consent, not drafted afterwards.
- **Court may alternatively admonish.** Section 39(2) permits release after admonition on a bond of up to three years on the report of successful treatment — a route worth pressing where treatment has already been completed.

B-14. Complaint against Vexatious Entry, Search, Seizure or Arrest

Purpose

Section 58 of the Act makes a vexatious and unnecessary entry, search, seizure or arrest an offence, punishable with imprisonment up to six months, or fine up to ₹1,000, or both. Section 59 punishes the failure of an officer in his duty or connivance in a contravention. The aggrieved person may (i) file a criminal complaint before the Magistrate; (ii) seek an investigation under section 175(3) BNSS; and (iii) make a departmental representation to the head of the department and to the Narcotics Control Bureau.

Statutory basis

Sections 58 and 59 of the NDPS Act, 1985; sections 223 and 175(3) of the BNSS, 2023 (complaint and direction for investigation).

Model complaint

> IN THE COURT OF THE LEARNED JUDICIAL MAGISTRATE / CHIEF JUDICIAL MAGISTRATE, [DISTRICT], [CITY]
>
> CRIMINAL COMPLAINT NO. __ OF 20____
>
> [COMPLAINANT] S/o [father], R/o [address] .... COMPLAINANT
>
> VERSUS
>
> (1) [Name and designation of the officer]
> (2) The State through the Station House Officer, PS __ .... ACCUSED
>
> COMPLAINT UNDER SECTION 58 OF THE NARCOTIC DRUGS AND PSYCHOTROPIC SUBSTANCES ACT, 1985 PRAYING FOR PROSECUTION OF THE ACCUSED OFFICER FOR VEXATIOUS ENTRY, SEARCH, SEIZURE AND ARREST
>
> MOST RESPECTFULLY SHOWETH:
>
> 1. That the Complainant is a permanent resident of [address] and is [occupation]; he is not a proclaimed offender nor has he been convicted of any offence.
>
> 2. That on __ at about __ hours, the accused No. 1 and other officials of PS __ [entered the Complainant's premises at address / stopped and searched the Complainant at place] without any warrant, authorisation or lawful justification, and without any information recorded in writing or grounds of belief, contrary to Section 41 and Section 42 of the NDPS Act, 1985.
>
> 3. That nothing incriminating was recovered from the Complainant. The search was conducted in a manner that was vexatious and unnecessary, in that [set out the facts — the papers of the premises were thrown about; the Complainant's family members, including women, were humiliated; the search continued for __ hours without any record; the Complainant was arrested and kept at the police station beyond 24 hours; the Complainant was not informed of the grounds of arrest; no notice of the right under Section 50 of the Act was given; the Complainant's [property] was damaged].
>
> 4. That the Complainant was [arrested and produced before the court on __ / released on bail by order dated __]; the false implication has caused him loss of reputation, mental agony and [specify monetary loss].
>
> 5. That the conduct of the accused No. 1 amounts to a vexatious and unnecessary entry, search, seizure and arrest within the meaning of Section 58 of the NDPS Act, 1985 and is punishable thereunder. The Complainant is the person aggrieved and is entitled to maintain the present complaint.
>
> 6. That the Complainant has [filed a representation before the Superintendent of Police dated __ / the Commissioner of Police dated __] which has not resulted in any action; a copy of the representation is annexed as Annexure A-1. In the alternative, the Complainant prays that this Hon'ble Court may direct an investigation into the offence under Section 175(3) BNSS.
>
> 7. That the present complaint is being filed within the period of limitation prescribed by law and no complaint in respect of the same cause of action has been filed earlier.

8. That the Complainant is ready to produce the witnesses named in the list annexed and to prove the allegations at trial.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to take cognizance of the offence under Section 58 of the NDPS Act, 1985, to summon the accused named above, and to try and punish them in accordance with law; and, in the alternative, to direct an investigation into the offence under Section 175(3) BNSS, in the interest of justice.

_____
COMPLAINANT

Place: __ Through ADVOCATE
Date: __

Affidavit of the Complainant in support: Annexure A
List of witnesses: 1. Complainant; 2. [witnesses to the search]; 3. [neighbours]; 4. [doctor, if injury was caused]; 5. [person who produced the Complainant before the court].

Drafting notes

- **Section 58 is a petty offence.** The practical value of the complaint is often in the record it creates, and in the leverage it provides in the main case; the threshold of proof for "vexatious" conduct is high, and courts are slow to convict an officer acting in discharge of duty.
- **The parallel remedies are usually more effective.** A representation to the head of the department, to the NCB (for central agencies) and to the State Human Rights Commission, with documentation, will often produce an enquiry. Where a false case is established and the accused is acquitted, an action for malicious prosecution lies separately.
- **Preserve the record.** Photographs of the premises as left after the search, medical records of injuries, the seal of the court on the household articles recovered, and the affidavits of the independent witnesses, are the evidence that decides such complaints.
- **Limitation.** For an offence punishable with imprisonment up to six months, the period of limitation for taking cognizance is one year from the date of the offence under the BNSS; do not delay.
- **Costs and caution.** A complaint that fails may expose the complainant to an action for defamation or to costs; institute it only on material.

B-15. Objection to a Notice of Forfeiture (Chapter V-A)

Purpose

Under Chapter V-A of the Act (section 68-A onwards), the **Competent Authority** may, on a reference by the Investigating Officer, issue a **notice of forfeiture** under section 68-H in respect of **illegally acquired property** of a person held guilty of an offence under the Act. The person affected files an objection (a statement of objections), and the burden of proving that the property is not illegally acquired lies on him under **section 68-J**. The order of the Competent Authority is appealable to the Appellate Tribunal under **section 68-O**.

Statutory basis

Sections 68-A to 68-Y of the NDPS Act, 1985, in particular sections 68-C (prohibition of holding illegally acquired property), 68-E and 68-F (identification, seizure and freezing), 68-H (notice), 68-I (forfeiture), 68-J (burden of proof), 68-K (fine in lieu of forfeiture) and 68-O (appeal).

Model statement of objections

> BEFORE THE COMPETENT AUTHORITY, [NEW DELHI / JURISDICTION],
> UNDER CHAPTER V-A OF THE NARCOTIC DRUGS AND PSYCHOTROPIC SUBSTANCES ACT, 1985
>
> File No. __ of 20____
>
> IN THE MATTER OF:
> Notice under Section 68-H of the NDPS Act, 1985 dated __ addressed to [Noticee]
> AND
> [NOTICEE] S/o [father], R/o [address] .... OBJECTOR
>
> STATEMENT OF OBJECTIONS TO THE NOTICE UNDER SECTION 68-H OF THE NDPS ACT, 1985
>
> MOST RESPECTFULLY SHOWETH:
>
> 1. That the Objector has received the notice dated __ issued under Section 68-H of the Act, calling upon him to show cause why the properties described in the Schedule to the notice should not be declared to be illegally acquired properties and forfeited to the Central Government. The Objector denies each and every allegation in the notice save those expressly admitted.
>
> 2. **PRELIMINARY OBJECTIONS**
>
> (a) That the notice is bad for want of jurisdiction, inasmuch as the condition precedent for the exercise of the power — a reference by the [competent officer/Investigating Officer] under Section 68-F, and the initiation of proceedings within the period and in the manner prescribed — has not been satisfied; [set out the specific defect];
> (b) That the notice is vague and does not furnish the particulars required to enable the Objector to meet the case, contrary to Section 68-H(1);
> (c) That the Objector is not a person covered by Section 68-C; he has not been convicted of any offence under the Act, and no proceeding for such conviction is pending; the properties are not "illegally acquired properties" within the meaning of Section 68-B(1)(c);
> (d) That the properties in question belong to [the Objector's wife / a third party / the Objector's father] and are not held by the Objector.
>
> 3. **ON MERITS — SOURCE OF THE PROPERTIES**
>
> (a) That the property bearing [description] was acquired on __ for ₹__ out of [the Objector's lawful income — salary, business income, agricultural income, loan, inheritance]. The documents evidencing the source — [sale deed, bank statement, ITR, Form 16, loan sanction, gift deed, succession certificate] — are enclosed and are collectively marked as Annexure O-1;
> (b) That the property [description] was inherited from [relation] under [Will/succession] and has never been held by the Objector as an "illegally acquired property";
> (c) That the valuation of the properties assessed in the notice is exaggerated and is based on market value rather than on the cost of acquisition, which is the measure under the Act.
>
> 4. **BURDEN OF PROOF**
>
> That under Section 68-J the burden of proving that the property is not illegally acquired lies upon the person affected, but the said burden is to be discharged on the preponderance of probabilities, and it arises only after the

Competent Authority has shown that the property was acquired from the income of a person referred to in Section 68-C. The notice does not disclose any such foundational material, and the Objector has nevertheless produced the entire record of the source of the funds.

5. **RIGHT TO BE HEARD AND ALTERNATIVE**

That the Objector may be permitted to inspect the record relied upon by the Competent Authority, to cross-examine the officers whose reports have been relied on, and to adduce evidence. Without prejudice, should any defect be found in the acquisition of any one of the properties, the Objector may be allowed to pay a fine in lieu of forfeiture under Section 68-K, in respect of that property.

6. **STAY AND CONSEQUENCES**

That the Objector's properties [specify the frozen/seized assets] have been seized/frozen under Section 68-F, causing grave hardship; given the bona fide nature of the Objector's claim, the operation of the seizure may kindly be stayed pending the decision of these proceedings, and this Hon'ble Authority may be pleased to release the [property] on such terms as it deems fit.

PRAYER

It is, therefore, most respectfully prayed that the Competent Authority may kindly be pleased:
(i) to hold that the properties described in the notice are not "illegally acquired properties" within the meaning of Section 68-B(1)(c) of the Act;
(ii) to set aside the notice under Section 68-H and to release the properties from seizure/freezing forthwith; and
(iii) to permit the Objector to lead evidence and to cross-examine the witnesses relied upon by the Department,
in the interest of justice.

_____
NOTICEE / OBJECTOR THROUGH ADVOCATE

Place: __ Date: __
Verification: I, [name], the objector, verify that the facts stated above are true to my knowledge and belief.

Drafting notes

- **The burden lies on the noticee.** Section 68-J reverses the burden: the affected person must prove that the property was not illegally acquired. Complete documentary proof of the source of funds — bank statements, returns of income, sale deeds, inheritance — is indispensable, and should be filed with the objections themselves.
- **The appeal is to the Appellate Tribunal** under section 68-O, to be filed within the prescribed period of forty-five days from the date of receipt of the order of the Competent Authority. The appeal memorandum follows the same structure, with grounds against the order.
- **Freezing under section 68-F is separately vulnerable.** An order of seizure or freezing can be challenged for want of a reference or of jurisdiction; the challenge to the freeze need not await the final order of forfeiture.
- **Third-party rights.** Where the property belongs to a spouse, a parent or a company, that person may apply to be impleaded and must establish his own source of funds independently; the Act authorises forfeiture of property held "on behalf of" the delinquent, and courts examine the genuineness of the holding.
- **Do not ignore the notice.** Proceedings under Chapter V-A are summary in nature and proceed ex parte if no objections are filed within the time allowed in the notice; diary the date of appearance and file the objections within time.

B-16. Memorandum of Criminal Appeal against Conviction

Purpose

An appeal against a conviction and sentence recorded by a Special Court under the Act lies to the **High Court** under section 36-B of the NDPS Act, the appeal being governed by section 415 BNSS (formerly section 374 CrPC). The limitation for an appeal to the High Court is sixty days from the date of the sentence/order under Article 115 of the Limitation Act, 1963 (excluding the time taken to obtain a certified copy). Sentence may be suspended and the appellant released on bail pending the appeal under **section 430 BNSS** (formerly section 389 CrPC).

Statutory basis

Section 36-B of the NDPS Act, 1985; sections 415 and 430 of the BNSS, 2023; Article 115 of the Limitation Act, 1963.

Model memorandum of appeal

> IN THE HIGH COURT OF [STATE] AT [PLACE]
> CRIMINAL APPEAL NO. __ OF 20____
> (Against the judgment and order of conviction and sentence dated ___ passed by the Learned Special Judge (NDPS), [District], in SC No. ___ of 20__)

> IN THE MATTER OF:
> STATE .... PROSECUTION/RESPONDENT
>
> VERSUS
>
> [APPELLANT/CONVICT] S/o [father], R/o [address],
> presently lodged in [Central Jail ____] .... APPELLANT

> MEMORANDUM OF CRIMINAL APPEAL UNDER SECTION 36-B OF THE NARCOTIC DRUGS AND PSYCHOTROPIC SUBSTANCES ACT, 1985 READ WITH SECTION 415 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

> The Appellant above named respectfully submits as follows:

> 1. **JUDGMENT APPEALED AGAINST.** The Learned Special Judge (NDPS), [District], by judgment and order dated __ in SC No. __ of 20__, convicted the Appellant of the offence punishable under Section __ of the NDPS Act, 1985 and sentenced him to rigorous imprisonment for __ years and a fine of ₹__, in default whereof further simple imprisonment for __. The Appellant is in custody since ____.

> 2. **PROSECUTION CASE IN BRIEF.** [State the prosecution case in two or three sentences — date, time, place, police party, alleged recovery, alleged role of the appellant, quantity, and the report of the chemical examiner.]

> 3. **DEFENCE OF THE APPELLANT.** The Appellant pleaded not guilty and examined [number] witnesses in defence / did not examine any witness. The Appellant's case was that [state briefly].

> 4. **GROUNDS.**
>
> A. **THE RECOVERY IS NOT PROVED.** That the alleged recovery stands vitiated by material contradictions between the FIR, the seizure memo/panchnama, the inventory, the godown records and the deposition of the police witnesses — [specify: the place; the time; the number of packages; the weight; the presence or absence of independent witnesses; the recovery shown from a place where the public had access].
> B. **BREACH OF SECTION 50.** That the Appellant was not informed of his right to be searched before a Gazetted Officer or a Magistrate; no notice or record of his option was proved; the requirement being mandatory, the recovery from the person is illegal — *Vijaysinh Chandubha Jadeja v. State of Gujarat*, (2011) 1 SCC 609; [cite the relevant paragraph of the trial record].
> C. **BREACH OF SECTION 42.** That the information/grounds of belief that preceded the search were not taken down in writing, nor was a copy sent to the immediate official superior — *Karnail Singh v. State of Haryana*, (2009) 8 SCC 539.
> D. **BREACH OF SECTION 52-A AND THE 2022 RULES.** That the samples were not drawn in the presence of the Magistrate, nor was the list certified by the Magistrate; the application in Form-5 was not moved; there is no certified inventory or photograph; consequently the prosecution has failed to produce the only primary evidence

recognised by Section 52-A(4) — *Union of India v. Mohanlal*, (2016) 3 SCC 379; *Bharat Aambale v. State of Chhattisgarh* (2025). The destruction/disposal of the substance without an order of the Magistrate is fatal.
E. **REPORT OF THE CHEMICAL EXAMINER NOT PROVED.** That the report suffers from [defects — weight discrepancy, colour discrepancy, absence of the test memo, absence of proof of the seals, the report on a copy rather than the original/duplicate]; the author was not examined; and, in the absence of proof that the substance was the notified drug, the foundational fact of the offence is unproved.
F. **INADMISSIBLE STATEMENTS RELIED UPON.** That the conviction is founded upon the statements recorded under Section 67 of the Act and the confessions/statements of co-accused, which are inadmissible in evidence — *Tofan Singh v. State of Tamil Nadu*, (2021) 4 SCC 1.
G. **PRESUMPTIONS MISAPPLIED.** That the courts below have drawn the presumption under Section 54 of the Act without the prosecution first proving possession by the Appellant, and have applied Section 35 without a foundation; the shifting of the burden does not dispense with the proof of the ingredients of the offence.
H. **CONSCIOUS POSSESSION NOT ESTABLISHED.** That the Appellant was not the owner/occupant of the [vehicle/premises]; the contraband was not recovered from his person; and mere presence or proximity does not amount to possession in law.
I. **CHARGE.** That the charge as framed is defective in that [state the defect — no mention of the quantity or of the specific clause], and the Appellant was thereby prejudiced in his defence.
J. **SENTENCE.** That the sentence of _ years is disproportionate; the trial court failed to consider [the age of the Appellant; the time already spent in custody; the fact that the case falls in the lower part of the quantity band; parity with co-accused who received a lesser sentence]; and the default sentence is excessive.
K. **NON-CONSIDERATION OF THE MATERIAL.** That the Learned Special Judge failed to consider the material contradictions, the defence exhibits and the decisions cited, and the judgment is therefore perverse and calls for interference.

5. **LIMITATION.** The appeal is within the period of limitation prescribed by Article 115 of the Limitation Act, 1963 [or: the delay of ____ days in filing the appeal is explained in the accompanying application under Section 5 of the Limitation Act, 1963]. A certified copy of the impugned judgment and order is filed herewith.

6. **SUSPENSION OF SENTENCE.** The Appellant undertakes to abide by all conditions that may be imposed. The appeal involves substantial questions of law and fact; the sentence is likely to be suspended by this Hon'ble Court. In the meantime, the Appellant is suffering incarceration, and his appeal is not likely to be heard for years. It is, therefore, prayed that the sentence be suspended and the Appellant be released on bail pending the appeal under Section 430 BNSS, 2023.

PRAYER

In the premises it is most respectfully prayed that this Hon'ble Court may kindly be pleased to:
(i) admit this appeal;
(ii) suspend the sentence awarded by the Learned Special Judge vide judgment and order dated __ and release the Appellant on bail pending the hearing and final disposal of this appeal, on such terms and conditions as this Hon'ble Court may deem fit;
(iii) call for the trial court record;
(iv) set aside the judgment and order of conviction and sentence and acquit the Appellant; and
(v) in the alternative, reduce the sentence to the period already undergone and set aside the fine/default sentence;
and to pass such further or other orders as this Hon'ble Court may deem fit and proper.

_____
APPELLANT THROUGH ADVOCATE

Place: __ ADVOCATE
Date: __

Filed with: (1) Certified copy of the judgment and order; (2) Certified copy of the trial court record/order sheets; (3) Application for suspension of sentence; (4) Certified copies of the seizure documents, FSL report and exhibits relied upon.

Drafting notes

- **Certified copies are the appeal.** The appeal book should carry the FIR, the seizure memo, the inventory, the Form-5 application and the Magistrate's certification (or proof of its absence), the Test Memo, the FSL report, the statements of the prosecution witnesses and the order sheets. The absence of the section 52-A documents is itself the point, and should be highlighted in the index of the paper book.

- **Record the ground of non-compliance in the trial court.** For sections 42, 50 and 52-A, the objection must have been taken at the stage of the trial, or at least in the statement under section 351 BNSS; a ground raised for the first time in appeal is often met with the answer that no prejudice was pleaded.
- **Suspension of sentence.** In NDPS appeals, suspension is usually granted where the sentence is short, where the appellant has been in custody for a substantial part of the sentence, or where the appeal raises substantial questions. Where the appeal is admitted and the appellant is on bail, the conditions (surrender of passport, reporting) should be complied with meticulously; breach invites cancellation.
- **Delay in filing.** The period spent in obtaining a certified copy is excluded; the application for the certified copy must be on record. Where the judgment was pronounced in the presence of the appellant's counsel, the sixty-day period runs from the date of the order, not from the date of the supply of the copy.
- **Review/revision and the constitutional remedy.** A revision under section 438/440 BNSS lies where the appeal has been dismissed (or in the cases provided); where the appeal fails, and the point is of general importance on the construction of the Act, a petition under Article 136 of the Constitution is the remedy. Both remedies require that the grounds be preserved in the appeal itself.

PART C — INVESTIGATION, PROSECUTION & DEPARTMENTAL FORMATS

C-1. Arrest Memo, Grounds of Arrest and Notice of Appearance

Purpose

The documents that must exist at the moment of an arrest under the Act: the **grounds of arrest** informed to the arrested person under section 52(1) of the Act and Article 22(1) of the Constitution, the arrest memo itself, and, where the arrest is not immediate, the notice of appearance under section 35(3) BNSS (formerly section 41-A CrPC).

Statutory basis

Sections 41 to 44, 50 and 52(1) of the NDPS Act, 1985; sections 35(3), 47, 58 and 187 of the BNSS, 2023; Article 22(1) and (2) of the Constitution; **D.K. Basu v. State of West Bengal**, (1997) 1 SCC 416 and its codification in section 47 BNSS (arrest memo, attestation by a witness, information to a relative, medical examination, entry in the register). For the requirement that the grounds of arrest be furnished in writing, the recent pronouncements of the Supreme Court (including *Prabir Purkayastha v. State (NCT of Delhi)*, 2024) are the governing analogy.

Model — Grounds of Arrest

> POLICE STATION : ____ DISTRICT : ____
> FIR/CR No. ___ of 20__ UNDER SECTION(S) _____ NDPS Act, 1985

> GROUNDS OF ARREST
> (To be served on the arrested person, in a language understood by him, and a copy retained in the file)

> To,
> Sri/Smt. _____, S/o / W/o _____,
> R/o _____

> You are hereby informed that you have been arrested today, i.e. on __ (date) at __ hrs (time), at [place of arrest] in connection with the above case, on the following grounds:

> 1. That on __ at about __ hrs, at [place], [brief narration of the recovery — e.g. a quantity of __ grams of __ was recovered from your conscious possession / from the vehicle bearing registration no. __ in which you were travelling / from the premises in your occupation], which constitutes an offence punishable under Section __ of the NDPS Act, 1985.

> 2. That the quantity recovered, namely __, is a [small / commercial] quantity within the meaning of the notification issued under Section 2(viia)/2(xxiiia) of the Act and attracts the punishment prescribed in Section __ of the Act.

> 3. That you were found in possession / custody / control of the said contraband and there is reason to believe that you have committed an offence punishable under Chapter IV of the Act.

> 4. That your arrest is considered necessary for the purpose of [preventing the concealment or loss of evidence / preventing the commission of further offences / completing the investigation] and no less restrictive measure is adequate in the facts of the case.

> You are further informed that:
> (i) you have the right to inform a relative or friend of your arrest, and to have your arrest made known to a relative or friend, if so desired — [Name and address of the person informed: ____];
> (ii) you are entitled to consult a legal practitioner of your choice;
> (iii) you will be produced before the jurisdictional Magistrate without unnecessary delay and in any event within 24 hours of your arrest, excluding the time necessary for the journey;
> (iv) you have the right to be examined by a medical officer, and to note any injury on your person in the inspection memo.

> _____
> (Signature of the Arresting Officer)
> Name: ___ Rank: __
> Police Station: _____

Date: __ Time: __

Received the above grounds of arrest in [language]: _____
(Signature / Thumb impression of the arrested person)

Witnesses to the arrest:
1. _____ (name, address, signature)
2. _____ (name, address, signature)

Model — Arrest Memo

ARREST MEMO

1. Case / FIR No. : ____ Police Station : ____ District : ____
2. Act and Sections : Narcotic Drugs and Psychotropic Substances Act, 1985 — Section(s) ____
3. Name of the arrested person : _____
4. Father's / Husband's name : _____
5. Date of birth / Age : ____ Sex : __
6. Residential address : _____
7. Occupation : _____ Identity document relied upon : __ No. ____
8. Date and time of arrest : __ (date) at __ hrs
9. Place of arrest : _____
10. Grounds of arrest informed in writing : Yes / No — grounds of arrest annexed (serve copy, retain acknowledgment)
11. Arresting officer : Name __ Rank __ Buckle No. ____
12. Independent witnesses to arrest : (i) __ (ii) __
13. Person informed about the arrest : Name __ Relationship __ Contact ____
14. Visible injuries, if any, at the time of arrest : _____
15. Medical examination : Conducted at __ on __ at __ hrs; MLC No. ____
16. Articles, if any, taken from the person : _____
17. Handcuffs used : Yes / No (reasons, if yes: ____)
18. Produced before : Learned [Judicial Magistrate / Special Court] on __ at __ hrs
19. Entry made in the arrest register at PS __ at pages ____ : Yes / No

_____
Signature of the Arresting Officer

Signature of the arrested person : _____ Witnesses : _____

Model — Notice of Appearance (section 35(3) BNSS)

POLICE STATION : _____ DISTRICT : _____
No. ___ dated _____

To,
Sri/Smt. _____, S/o / W/o _____, R/o _____

NOTICE UNDER SECTION 35(3) OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

Whereas a case [FIR No. __ dated __ under Section __ of the NDPS Act, 1985] has been registered against you and it appears that you are required to be examined in connection with the said case and that you are a person who may be arrested;

Now, therefore, in exercise of the powers under Section 35(3) of the BNSS, 2023, you are hereby directed to appear before the undersigned at Police Station __ on __ at ____ hrs / as and when required for the purpose of investigation in the above case.

You are further informed that in the event of your compliance with this notice, you shall not be arrested in this case unless it is necessary and the officer is satisfied, for reasons to be recorded in writing, that you ought to be arrested; and that if you fail to comply with this notice, you shall be liable to be arrested for the offence alleged.

This notice is being issued with the approval of / in compliance with the directions of the competent authority.

_____
(Signature of the Officer-in-Charge /
Investigating Officer, PS _____)

> Received the above notice. I will appear on the date and time mentioned.
>
> _____
> (Signature of the noticee)

Drafting notes for the investigating officer

- **Write the grounds before the arrest, not after.** The Supreme Court has repeatedly quashed arrests made without furnishing written grounds; in NDPS matters the practice must be to prepare the grounds of arrest, serve a copy and obtain the acknowledgment at the spot, and to record the fact in the case diary.
- **The grounds must be specific.** "You have committed an offence under the NDPS Act" is not a ground; the quantity, the place, the time, the sections and the material relied upon must appear.
- **Language.** The grounds and the section 52(1) information must be in a language understood by the arrested person. Where the person does not understand English, a translation must be served and the acknowledgment taken on the translated copy (Annexure D-4 contains a Hindi version of the operative part).
- **Medical examination.** The medical examination, the inspection memo recording injuries and the entry in the arrest register are all mandatory under the *D.K. Basu* directions, now reflected in section 47 BNSS; their absence is a standard point of attack in bail applications.
- **Female accused.** A female shall be searched only by a female (section 50(4) of the Act); the arrest and custody of a woman must comply with the special provisions of the BNSS.
- **Default of 24 hours is fatal.** Where the arrested person is not produced within 24 hours, an explanation must be on the record and the delay explained in the remand application.

C-2. Notice and Record of the Option under Section 50 (English and Hindi)

Purpose

Section 50 requires that where the empowered officer is about to search a person, he must — where the person so requires — take him to the nearest Gazetted Officer or Magistrate. The courts have held that the person must be **informed of that right** before the search, and that the information and the option exercised must appear on the record. The format below is the notice and the record of the option.

Statutory basis

Section 50 of the NDPS Act, 1985; sections 41, 42 and 43 of the Act (the powers in respect of which the search is made).

Leading authorities

- **Vijaysinh Chandubha Jadeja v. State of Gujarat**, (2011) 1 SCC 609 — the empowered officer must inform the suspect of his right; the option must be exercised **before** the search; and the right is to be conveyed in a language the suspect understands. The recovery obtained in breach is not saved by the "consequences" argument.
- **State of Punjab v. Baldev Singh**, (1999) 6 SCC 172 — the consequence of non-compliance: the recovery itself is illegal and the accused is entitled to be acquitted, subject to the court's assessment of the record.
- **Ranjan Kumar Chadha v. State of Himachal Pradesh**, 2023 INSC 878 — the requirement of section 50 applies to a **search of the person**; it does not extend to the search of a bag, a vehicle or luggage. The consequence is that in recovery-from-a-bag cases the section 50 notice is not a mandatory requirement, while in personal-search cases it is indispensable.

Model notice (English)

> POLICE STATION : ____ DISTRICT : ____
> Under Section __ of the NDPS Act, 1985 CR/FIR No. __ of 20____
>
> NOTICE UNDER SECTION 50 OF THE NARCOTIC DRUGS AND PSYCHOTROPIC SUBSTANCES ACT, 1985
>
> To,
> Sri/Smt. _____, S/o / W/o ___, R/o ____
>
> You are hereby informed that you are about to be searched by me / under my authority, in the presence of the witnesses named below, in connection with the above case.
>
> **You have the right to be searched in the presence of a Gazetted Officer of any of the departments mentioned in Section 42 of the Act or before the nearest Magistrate.** If you so require, you will be taken without unnecessary delay to the nearest such Gazetted Officer or Magistrate, and your search will be conducted in his presence.
>
> You are required to state clearly whether you wish to be searched in the presence of a Gazetted Officer or a Magistrate, or whether you consent to be searched by the officer present.
>
> _____
> (Name, Rank and Designation of the Officer)
> Police Station : _____
>
> Date: __ Time: __ Place: __

Model record of the option / consent memo

> RECORD OF THE OPTION EXERCISED UNDER SECTION 50 NDPS ACT, 1985
>
> 1. Name of the person about to be searched : _____
> 2. Date, time and place of the notice : __, ___ hrs, ____
> 3. The contents of the notice were explained to him / read over to him in [language] : ____
> 4. The person stated on being asked (tick as applicable):
>
> ( ) "I require that my search be conducted in the presence of a Gazetted Officer."
> ( ) "I require that my search be conducted before the nearest Magistrate."

( ) "I have no objection to being searched by the officer present, in the presence of the witnesses."

5. [Where the person required a Gazetted Officer/Magistrate] The person was taken to [name and designation of the Gazetted Officer / Court of the Magistrate] at __ hrs and the search was conducted in his presence, and the proceedings recorded and attested by him at __ hrs.

6. [Where the person consented to be searched] The search was conducted at __ hrs in the presence of the witnesses and the panic. The consent was voluntary, and was not obtained by any threat, inducement or promise.

7. Witnesses to the notice and to the search :

(i) Name _____ Address _____ Signature __

(ii) Name _____ Address _____ Signature __

Signature of the person searched : ____ (or thumb impression)

Signature of the Officer : ____ Name, Rank, Designation : ____

Countersignature of the Gazetted Officer / Magistrate, where applicable : ____

नोटिस का हिन्दी रूप (समझने के लिए — कानूनी रूप से अंग्रेजी पाठ ही मान्य है)

धारा 50, नार्कोटिक ड्रग्स एंड साइकोट्रोपिक सब्सटेंस एक्ट, 1985 के अंतर्गत सूचना

श्री/श्रीमती _____ पुत्र/पत्नी श्री _____ निवासी _____

आपको सूचित किया जाता है कि आपकी तलाशी मेरे द्वारा / मेरे अधीनस्थ अधिकारी द्वारा, नीचे उल्लिखित गवाहों की उपस्थिति में, उपरोक्त मुकदमे के संबंध में ली जाने वाली है।

आपको अधिकार है कि आपकी तलाशी धारा 42 में उल्लिखित किसी विभाग के राजपत्रित अधिकारी अथवा निकटतम मजिस्ट्रेट की उपस्थिति में ली जाए। यदि आप ऐसा चाहें, तो आपको बिना अनावश्यक विलंब के निकटतम राजपत्रित अधिकारी अथवा मजिस्ट्रेट के समक्ष ले जाया जाएगा और आपकी तलाशी उनकी उपस्थिति में ली जाएगी।

कृपया स्पष्ट रूप से बताएं कि आप राजपत्रित अधिकारी अथवा मजिस्ट्रेट की उपस्थिति में तलाशी चाहते हैं, अथवा उपस्थित अधिकारी द्वारा तलाशी लिए जाने पर आपकी कोई आपत्ति नहीं है।

दिनांक: __ समय: __ स्थान: __

(हस्ताक्षर) तलाशी लेने वाला अधिकारी — नाम, पद, थाना

Drafting notes for the investigating officer

- **Timing.** The notice must precede the search. A notice produced after the recovery, or a consent recorded after the search, is of no value and, worse, invites the inference that the right was never communicated.
- **Substance.** The notice must communicate the *right* — not merely ask for consent. A form that reads "Do you consent to be searched?" without informing the person of his right to be produced before a Gazetted Officer/Magistrate does not comply with section 50 (*Jadeja*).
- **Language.** Where the person does not understand English, the Hindi (or local language) text must be read over and the person's acknowledgment obtained on the version read to him. A bald note that "contents explained" without particulars is vulnerable.
- **Personal search only.** The notice is unnecessary in a search of a bag or a vehicle (a panchnama to that effect should be recorded, describing what was searched). Do not, however, omit it where any personal search is involved in the same operation — for example, when the officer frisks the occupant and then searches the bag.
- **Females.** Section 50(4) requires that no female shall be searched by anyone except a female; record the identity of the woman officer who conducted the search.
- **Consequence of breach.** Where the personal search is in breach of section 50, the recovery is vitiated; the officer's record on the point is the first document the defence will call for.

C-3. Authorisation under Section 41(2) and Search Warrant under Section 41(1)

Purpose

Two distinct instruments: (i) a **warrant** issued by a Magistrate on an application by an empowered officer under section 41(1); and (ii) an **authorisation** issued by a Gazetted Officer empowered in that behalf under section 41(2), permitting a subordinate officer to exercise the powers of entry, search, seizure and arrest.

Statutory basis

Section 41(1) and (2) of the NDPS Act, 1985; sections 96 to 105 and section 185 of the BNSS, 2023 (execution of warrants and the procedure for searches, including the audio-video recording of the search).

Model — Order of authorisation under section 41(2)

> OFFICE OF THE [SUPERINTENDENT OF POLICE / ZONAL DIRECTOR, NCB / DEPUTY COMMISSIONER, STATE GOODS AND SERVICES TAX / ASSISTANT DRUGS CONTROLLER — as the case may be], [place]
>
> No. __ dated __
>
> AUTHORISATION UNDER SECTION 41(2) OF THE NDPS ACT, 1985
>
> Whereas information has been received by the undersigned that [brief substance of the information — e.g. that a consignment of heroin is likely to be moved from __ to __ on __ in a __vehicle], and the said information requires to be verified by a search of [the vehicle / the premises at ____];
>
> And whereas the undersigned, being a Gazetted Officer empowered in this behalf by [general/special order No. __ dated __ of the Government of __], is satisfied that the information is credible and that there is reason to believe that a narcotic drug/psychotropic substance/controlled substance in respect of which an offence punishable under Chapter IV of the Act has been committed is kept or concealed at the place aforesaid;
>
> Now, therefore, in exercise of the powers conferred by section 41(2) of the Narcotic Drugs and Psychotropic Substances Act, 1985, the undersigned hereby authorises Sri ____, [designation and police station/department], to enter and search [the place/vehicle described], to seize such drug, substance or article and any document or thing which may furnish evidence of the commission of an offence, and to detain, search and, if necessary, arrest any person reasonably believed to be concerned in the offence.
>
> This authorisation is subject to the following conditions:
> (i) the search shall be conducted between sunrise and sunset, unless the officer records the grounds of belief enabling a night search under the proviso to section 42(1);
> (ii) the officer shall comply with sections 50, 52, 52-A, 55 and 57 of the Act and the Rules of 2022;
> (iii) the officer shall prepare the search and seizure memo, and shall record the proceedings through audio-video electronic means under section 105 of the BNSS, 2023;
> (iv) the officer shall send a report of the search and seizure to the undersigned immediately, and in any event within 48 hours, under section 57 of the Act.
>
> _____
> (Signature and designation of the authorised officer)
>
> Copy to : [Superior officer / case file]

Model — Application for a search warrant under section 41(1)

> IN THE COURT OF THE LEARNED JUDICIAL MAGISTRATE / CHIEF JUDICIAL MAGISTRATE, [DISTRICT], [CITY]
>
> APPLICATION UNDER SECTION 41(1) OF THE NDPS ACT, 1985 FOR ISSUE OF A SEARCH WARRANT
>
> Most respectfully showeth:
>
> 1. That the applicant is an officer empowered under section 42 of the Narcotic Drugs and Psychotropic Substances Act, 1985 and is [designation], presently investigating [case/FIR No. __].

2. That information has been received from [source] to the effect that [the substance] is being kept/concealed at [precise description of the building, conveyance or place], and that the said information has been reduced to writing and placed on the file of the case.

3. That the applicant has reason to believe, from personal knowledge and from the information received, that a narcotic drug / psychotropic substance / controlled substance in respect of which an offence punishable under Chapter IV of the Act has been committed, and/or documents and things which may furnish evidence of the commission of such offence, are kept or concealed at the said place.

4. That the place to be searched is in the occupation of / under the control of [name], and that the applicant is informed that the place [has more than one exit / is guarded / is likely to be vacated], and it is expedient in the public interest that a warrant should issue.

5. That the applicant undertakes to comply with the provisions of the Act, the Rules of 2022 and sections 96 to 105 BNSS in the execution of the warrant, and to produce the articles seized before this Hon'ble Court.

PRAYER

It is, therefore, respectfully prayed that a warrant under section 41(1) of the NDPS Act, 1985 may kindly be issued authorising the applicant to enter and search [description of the place] and to seize the articles referred to above, and to take such further action as is warranted by law.

_____
(Signature and designation of the applicant)

Place: __ Date: __

Drafting notes

- **Section 41(2) is a power of authorisation, not of search.** The Gazetted Officer authorises; the authorised officer acts. The order of authorisation must identify the officer, the place and the purpose, and should be contemporaneous.
- **Section 42 is the alternative route.** Where a person empowered under section 42 has reason to believe, on personal knowledge or on information taken down in writing, that the contraband is kept or concealed in a building, conveyance or enclosed place, he may act without a warrant, between sunrise and sunset (and at night only after recording the grounds of belief). See C-4.
- **Execution.** Under section 103 BNSS (formerly section 100 CrPC) the occupant must be allowed to witness the search, two independent and respectable inhabitants of the locality must be called, and the search must now be **recorded through audio-video electronic means**, preferably a mobile phone, under section 105 BNSS. The recording must be forwarded without delay to the District Magistrate, the Sub-Divisional Magistrate or the Judicial Magistrate First Class.
- **Copy of the warrant to the occupant.** The officer executing the warrant must supply a copy of the warrant and of the search list to the occupant; the practice of leaving the place without handing over a copy has been repeatedly criticised.
- **Video recording is now the strongest corroboration.** A compliant audio-video record of the search and seizure defeats most allegations of planting: it should be preserved in the case file, with a hash/certificate under section 63 of the BSA, 2023.

C-4. Prior Information, Grounds of Belief and Report to the Superior Officer

Purpose

The record that section 42 requires: (i) the **information or personal knowledge reduced to writing** where the officer acts under section 42(1); (ii) the **grounds of belief** recorded in writing where the search is to be conducted between sunset and sunrise under the proviso; and (iii) the **report to the immediate official superior** under section 42(2).

Statutory basis

Section 42(1) and its proviso, and section 42(2) of the NDPS Act, 1985; section 57 of the Act (report of arrest and seizure within 48 hours); section 185 BNSS, 2023 (record of the reasons for a search by a police officer in the case diary, with a copy to the Magistrate within 48 hours).

Leading authorities

Karnail Singh v. State of Haryana, (2009) 8 SCC 539 — the information received must be taken down in writing; the compliance is to be judged on the record; and the officer's failure to comply with section 42 is not to be glossed over. The distinction between a prior information-based search (section 42 applies) and a search conducted on the spot in a public place (section 43) is critical to the defence and to the prosecution alike.

Model — Record of prior information

> POLICE STATION : ____ DISTRICT : ____
> No. __ of 20____ FIR/CR No. __ of 20____

> RECORD OF INFORMATION REDUCED TO WRITING UNDER SECTION 42(1) OF THE NDPS ACT, 1985

> 1. Date and time of receipt of information : __ at____ hrs
> 2. Source of the information : [personal knowledge / information received from a person, whose particulars are set out below / secret information, the source being not disclosed for the reasons recorded separately]
> 3. Substance of the information (in the words of the informant, as far as possible) : "_____ _____"
> 4. Particulars of the informant (where disclosed) : Name ____ Address ____ Contact ____
> 5. Place in respect of which the information is received : _____ (building / conveyance / enclosed place, with description)
> 6. Person(s) concerned, as disclosed : _____
> 7. Substance and probable quantity involved : _____
> 8. Action proposed to be taken : [search between sunrise and sunset under section 42(1)(a) / night search under the proviso to section 42(1) after recording grounds of belief / information passed to the officer authorised under section 41(2)]
> 9. The information has been entered in the case diary / register at page ____ by the undersigned.

> _____
> (Signature, name, rank of the Officer)
> Police Station : _____

Model — Grounds of belief for a sunset-to-sunrise search (proviso to section 42(1))

> RECORD OF GROUNDS OF BELIEF FOR A NIGHT SEARCH UNDER THE PROVISO TO SECTION 42(1) OF THE NDPS ACT, 1985

> I, ____, [designation], Police Station ____, have reason to believe, from [personal knowledge / information received and recorded in writing at pages __ of the case diary], that a narcotic drug / psychotropic substance, in respect of which an offence punishable under Chapter IV of the Act has been committed, is kept or concealed in [description of the building/conveyance/enclosed place];

> And I have further reason to believe that a search warrant or an authorisation under section 41 cannot be obtained without affording [an opportunity for the concealment of the evidence / a facility for the escape of the offender], inasmuch as [set out the specific reasons — e.g. the information is that the consignment is to be moved before sunrise; the distance of the court; the place is being watched; the accused is likely to be alerted];

I therefore record the following grounds of my belief, and shall conduct the search between sunset and sunrise, in accordance with the proviso to section 42(1) of the Act:
(i) _____;
(ii) _____;
(iii) _____.

A copy of this record, and of the information recorded under section 42(1), shall be sent forthwith to my immediate official superior under section 42(2) of the Act.

Dated: __ Time: __ _____
Place: __ (Signature, name, rank)

Model — Report to the immediate official superior under section 42(2)

POLICE STATION : _____ To,
No. __ dated __ The [Deputy Commissioner of Police / Sub-Divisional Police Officer / Assistant Commissioner, Narcotics Control Bureau / Assistant Commissioner of Customs], [place]

CONFIDENTIAL REPORT UNDER SECTION 42(2) OF THE NDPS ACT, 1985

Sub : Report of information recorded under section 42(1) / grounds of belief recorded under the proviso thereto — FIR/CR No. __ of 20__, PS____.

Sir/Madam,

A copy of the information taken down in writing under section 42(1) of the NDPS Act, 1985 [and of the grounds of belief recorded for a night search under the proviso thereto] is enclosed herewith, as required by section 42(2) of the said Act.

2. The information discloses that [briefly set out the substance, without compromising the source]. The action taken/proposed to be taken is as under: [search of the premises/vehicle; constitution of the raiding party; the officer authorised; expected time of the operation].

3. A report of the arrest and seizure, if any, shall be submitted under section 57 of the Act within 48 hours.

Encl. : As above.

Yours faithfully,

_____
(Signature, name, rank)
Police Station : _____

Acknowledgment / receipt stamp of the superior officer : ____

Drafting notes

- **Time is the essence.** The information must be recorded *before* the search. A record prepared afterwards, or prepared in the handwriting of another officer and signed later, is exposed in cross-examination.
- **Substance, not conclusions.** The record must state what was told and by whom, or what the officer himself knew; a record that merely says "I had information" or repeats the language of the section is not compliance.
- **The "taken down in writing" requirement.** It applies where the officer proceeds on prior information. Where the recovery is made on the spot in a public place on the officer's own suspicion, section 43 applies and the requirement of a written record does not arise — an important distinction in the defence of such cases (see **Karnail Singh**, above).
- **Section 42(2) is mandatory.** The copy must be sent *forthwith* — not with the case diary at the end of the investigation. The dispatch register and the acknowledgments should be preserved; the absence of the acknowledgment is a common gap in the record.
- **Overlap with section 185 BNSS.** Where the search is conducted by a police officer in the course of investigation, the reasons for the search must also be recorded in the case diary under section 185(1) BNSS and a copy sent to the nearest Magistrate within 48 hours under section 185(5). Where both statutes apply, both records should be prepared.

C-5. Search and Seizure Memo (Panchnama)

Purpose

The contemporaneous record of the search and of what was seized. It is the foundation of the prosecution's case and the document most often attacked at trial.

Statutory basis

Sections 42, 43 and 44 of the NDPS Act, 1985; sections 103 and 105 of the BNSS, 2023 (procedure for searches; two independent witnesses; audio-video recording; the list of things seized to be signed by the witnesses); rules 3 and 8 of the 2022 Rules (classification, weighing, packaging, numbering and inventory in the presence of the panchas and of the person from whom the recovery is made).

Model panchnama

SEARCH AND SEIZURE MEMO / PANCHNAMA

Police Station : _____ District : ____
FIR/CR No. ___ of 20 __ Under Section(s) ___ of the NDPS Act, 1985
Date of search : __ Commenced at __ hrs Concluded at __ hrs

A. PARTICULARS OF THE SEARCH

1. Place of search : _____ [with sufficient description — house number, floor, landmark; in the case of a vehicle, its number and location]
2. Nature of the place : [residential / commercial / open public place / vehicle / premises of a third party]
3. Whether the search was under a warrant under section 41(1) : Yes/No — Warrant No. __ dated __
4. Whether under an authorisation under section 41(2) : Yes/No — Authorisation No. __ dated __
5. Whether under section 42/43 of the Act : Yes/No — [where section 42, the information/grounds of belief recorded at pages ____ of the case diary]
6. Grounds of belief, in brief : _____

B. PERSONS PRESENT

7. Officer(s) conducting the search : (i) ____ [name, rank, buckle no.]; (ii) ____
8. Person(s) in occupation/present at the place : (i) ____ [name, address, relationship to the premises]; (ii) ____
9. Independent witnesses (panchas) : (i) Name ____ S/o ____ Address ____ ; (ii) Name ____ S/o ____ Address ____

   [The witnesses were called from the locality and had no connection with the police; their identity documents were verified : Yes/No]

10. Whether the person present was given the option of being searched before a Gazetted Officer/Magistrate under section 50 : Yes/No — see separate record (C-2)
11. Whether the search was recorded through audio-video electronic means under section 105 BNSS : Yes/No — device used __ ; the recording has been forwarded to [District Magistrate/SDM/JMFC] on ____

C. CONDUCT OF THE SEARCH

12. Before the search, the officer offered the person(s) present the opportunity to have the search conducted in their presence; the offer was accepted/the person absented himself deliberately, in which case a notice was served and witnessed.
13. The search was conducted in the presence of the witnesses and of the person from whose possession the recovery was made.
14. Nothing was planted. Nothing was removed from the place otherwise than as recorded below.
15. The place was left in a condition as close to its original state as possible; the search list was read over to the witnesses and to the person present, and copies were delivered to them.

D. RECOVERY AND SEIZURE

16. The following contraband was recovered and seized :

Sl.	Description of the substance	Quantity/weight recovered	Mode of packing	Marks and serial numbers of the package	Whether weighed in the presence of witnesses
1					
2					

17. The recovered substance was classified, weighed, packed and serially numbered in the presence of the witnesses and of the person from whose possession it was recovered, in accordance with rule 3 of the NDPS (Seizure, Storage, Sampling and Disposal) Rules, 2022, and the detailed inventory in Form-4 has been prepared and attached to this memo.
18. The following other articles/documents were also seized :

Sl.	Description of the article/document	Quantity/particulars	Reason for seizure
1			
2			

19. Vehicle(s) seized, if any : Registration No. __Make/Model __ Engine No. __Chassis No. __ Name of the person in possession ____
20. The seized articles were sealed with the seal of the officer, bearing the impression "_____", and the seal has been handed over / retained in the custody of [name] and shall be produced before the court as required.

E. ARREST (if any)
21. Person arrested : ____ [name, parentage, address]; grounds of arrest served in writing in [language]; informed of the right to be searched before a Gazetted Officer/Magistrate under section 50; handed over to [officer-in-charge of the police station] at __ hrs.
22. Particulars of the person to be informed of the arrest : ____

F. DECLARATION
23. The above memo has been prepared at the spot, read over to the witnesses and to the person(s) concerned in [language], who have signed it. A copy of the seizure list has been delivered to [name] on __ at __ hrs.

Signature of the person from whom the recovery was made : ____
Witness (panch) 1 : _____
Witness (panch) 2 : _____
Search Officer : ____ [name, rank, buckle no.]
Countersigned by the Officer-in-Charge / Senior Officer present : ____

Attachments : (i) Inventory in Form-4; (ii) Notice and record under section 50; (iii) Grounds of arrest; (iv) Photographs/audio-video record; (v) Copy of the seizure list delivered to the occupant.

Drafting notes

- **Two independent witnesses.** The law requires respectable inhabitants of the locality. Their names, addresses and signatures must appear; witnesses who are police officials or habitual police witnesses are readily discredited.
- **Serial numbers, weights and seals.** Each package must be serially numbered, weighed separately and the weight recorded. The seals used at the spot must be accounted for in the memo and later in the godown register; an unaccounted seal is a standard defence argument.
- **Rule 3 compliance.** The classification, weighing, packaging and numbering must be recorded as having been done in the presence of the panchas and of the person from whose possession the recovery was made — a statement to that effect in the panchnama is what the Rule requires.
- **Audio-video recording.** Under section 105 BNSS the search and the preparation of the list of seized articles must be recorded, preferably on a mobile phone, and the recording forwarded without delay. Where the recording exists, a certificate under section 63 of the BSA, 2023 should accompany it; where it does not, the reason must be recorded in the memo.
- **A copy to the occupant.** The failure to deliver a copy of the seizure list at the spot is a breach of section 103(5) BNSS and is regularly commented upon by the courts.

C-6. Seizure List and Inventory of Contraband (Form-4)

Purpose

The inventory required by rule 8 of the 2022 Rules, in **Form-4**, together with the seizure list. The inventory is the document on which the section 52-A(2) application is founded, and it is the reference document for the weight and identity of the substance at every subsequent stage.

Statutory basis

Rule 3 and rule 8 of the NDPS (Seizure, Storage, Sampling and Disposal) Rules, 2022; section 52-A(2) of the Act.

Model — seizure list (spot)

SEIZURE LIST

Police Station : _____ FIR/CR No. __ of 20__ Date : _____

Sl.	Description of the property seized	Quantity/weight	Condition (sealed/unsealed)	Marks/serial no.	Where found
1					
2					

Sealed with the seal bearing the impression "____" in the presence of the witnesses.
Delivered a copy of this list to : [name] on __ at __ hrs — Signature : __
Witnesses : 1. _____ 2. _____ Officer : _____

Model — inventory in Form-4 (rule 8, 2022 Rules)

FORM-4

[See rule 8 of the NDPS (Seizure, Storage, Sampling and Disposal) Rules, 2022]

INVENTORY OF SEIZED NARCOTIC DRUGS / PSYCHOTROPIC SUBSTANCES / CONTROLLED SUBSTANCES / CONVEYANCES

1. Case / FIR No. : ____ Police Station / Agency : ____
2. Date and time of seizure : __ at __ hrs
3. Place of seizure : _____
4. Seized by : Name ____ Rank/Designation ____
5. Witnesses : (i) ____ (ii) ____
6. Accused/person from whom seized : ____

A. Details of the seized substances

Sl.	Description of the substance	Field test result (drug detection kit)	Quantity (gross/net)	Mode of packing	Marks & serial no. of the package	Country of origin	Other identifying particulars
1							
2							

B. Details of the conveyances seized

Sl.	Type of conveyance	Registration / Identification No.	Engine No.	Chassis No.	Name of person in possession	Approx. value
1						

C. Details of the other articles seized

Sl.	Description	Quantity	Remarks
1			

D. Certification
I, ____, [designation], do hereby certify that the above inventory has been prepared on the spot in the presence of the witnesses and of the person from whose possession the substances/articles were recovered, that the same has been read over and explained to them in [language], and that the entries above are true to the best of my knowledge and belief.

_____
Signature of the Seizing Officer

Signature of the accused/person : ____
Witnesses : 1. ____ 2. ____
Date : __ Place : __

Drafting notes

- **The inventory feeds the section 52-A application.** Rule 8 requires the officer to prepare the inventory in Form-4 and then apply to the Magistrate in Form-5. The Form-4 entries must match the panchnama and the later godown register; discrepancies between the three are cross-examination gold.
- **Weight must be specific.** Gross weight, net weight, and the weight of the packing material should be recorded where practicable; a single unqualified "quantity" entry is a common defect. Note that for the purpose of the quantity band, it is the weight of the seized material (the mixture) that counts — *Hira Singh v. Union of India* (2020).
- **Bunching in lots.** Under rule 10 of the 2022 Rules, where the packages are identical in size, weight and markings and give identical colour test results, they may be bunched in lots of not more than ten packages (forty, in the case of ganja, poppy straw and hashish), and one sample in duplicate drawn from each lot; a composite sample is prepared by taking an equal quantity from each package of the lot. The bunching and the drawing of the composite sample must be recorded in the inventory/lot-wise sheet.
- **Concealing material.** Trolley bags, backpacks and other concealing materials must be sealed separately (rule 3(3), second proviso) — a frequent omission.

C-7. Forwarding Memorandum (Form-1), Acknowledgement (Form-2) and Godown Register (Form-3)

Purpose

The chain of custody after seizure: the seizing officer deposits the seized material in the designated godown within 48 hours with a forwarding memorandum in Form-1; the godown in-charge verifies and acknowledges receipt in Form-2; and the godown maintains a register of the material received in Form-3.

Statutory basis

Rules 4, 5, 6 and 7 of the 2022 Rules (designation of godowns; deposit within 48 hours, relaxable by 24 hours on recorded justification; acknowledgement in Form-2; register in Form-3; quarterly inspection of the godown).

Model — forwarding memorandum in Form-1

FORM-1

[See rule 5(1) of the NDPS (Seizure, Storage, Sampling and Disposal) Rules, 2022]

FORWARDING MEMORANDUM TO GODOWN BY THE SEIZING OFFICER

To,
The Officer-in-charge, Godown No. __, [designation and address]

1. I am forwarding herewith the seized narcotic drugs/psychotropic substances/controlled substances/conveyance/articles, details of which are given below, for deposit in the godown, in terms of rule 5(1) of the NDPS (Seizure, Storage, Sampling and Disposal) Rules, 2022.

2. Details of the case and the seized material :

Case/FIR No.	Date of seizure	Place of seizure	Seizing officer	Description of substance/articles	Quantity/ weight	Condition of packing/seals

3. The seizure was made following due compliance with the provisions of sections 41/42/43 of the Act, section 50 of the Act (where applicable), and rules 3 and 8 of the said Rules; the inventory in Form-4 is enclosed.

4. The material is being deposited within 48 hours of the seizure. / The time period is being availed of with a further relaxation of 24 hours on the following recorded justification : _____.

5. The seal used for sealing the packages bears the impression "__" and is [handed over to / retained with] ____.

Enclosures : (i) Inventory in Form-4; (ii) Seizure list/panchnama copy; (iii) Copy of the FSL/analysis requisition, if any.

_____
(Signature of the Seizing Officer)
Name, rank, designation : _____

Dated : __ Place : __

Model — acknowledgement in Form-2

FORM-2

[See rule 5(2) of the NDPS (Seizure, Storage, Sampling and Disposal) Rules, 2022]

ACKNOWLEDGEMENT BY THE OFFICER-IN-CHARGE OF THE GODOWN

Received from Sri ____, [designation], Police Station/Agency ____, in connection with Case/FIR No. __ of 20__, the following seized material, forwarded vide Form-1 No. ___ dated ____ :

Sl.	Description	Quantity/weight	Number of packages/containers	Condition of seals	Remarks
1					

I have satisfied myself, before giving this acknowledgement, that the seized material received by me is properly packed and sealed and is in conformity with the details mentioned in Form-1 (rule 5(2) of the said Rules).

Godown entry number : __ dated __ (registered in Form-3 at page ____)

_____
(Officer-in-charge, Godown No. __)

Dated : __ Place : __

Model — register entries in Form-3 (extract)

FORM-3
[See rule 6(2) of the NDPS (Seizure, Storage, Sampling and Disposal) Rules, 2022]
REGISTER OF MATERIAL RECEIVED IN THE GODOWN

Sl.	Date of receipt	Case/ FIR No., PS/Agency	Form-1 No. & date	Description of material	Quantity /weight	No. of packages	Condition of seals	Rack/ locker location	Date and particulars of issue (sampling/disposal/court)	Signature of officer
1										

[Remarks of the Inspecting Officer on the periodical inspection under rule 7(2) : _____]

Drafting notes

- **48 hours is the outer limit.** Rule 5(1) requires the seized material to be deposited in the nearest designated godown within 48 hours, relaxable by a further 24 hours only upon a recorded justification. The date of deposit and the justification are among the first entries examined in a bail application.
- **Double-locked storage.** Rule 6(3) requires all seized material, excluding conveyances, to be stored in safes and vaults with double locks; rule 7 requires the appointment of an inspecting officer senior to the godown in-charge and a quarterly inspection, with remarks in the Form-3 register. A godown without a double-lock or inspection record is itself a defensible point.
- **Custody chain.** The godown register is the bridge between the seizure and the sample sent for analysis. Every movement — despatch of the sample, return of the remnants, deposit of the duplicate, transfer for disposal — must appear in Form-3, with the signature of the officer.
- **Seal accounting.** The impression of the seal, the person who retains it and the entries of its use should all be reconcilable. Where the seal is retained by the IO and also used at the laboratory, the record must make the sequence clear.

C-8. Application to the Magistrate under Section 52-A(2) — Form-5

Purpose

The pivotal step in the NDPS procedure. The officer in charge of the police station, or the officer empowered under section 53, must prepare the inventory and apply to **any Magistrate** for (a) certification of the correctness of the inventory; (b) permission to take photographs of the seized items in the Magistrate's presence and certification of the photographs as true; and (c) permission to draw representative samples in the presence of the Magistrate, with certification of the list of samples drawn. The inventory, photographs and the certified list of samples then constitute the **primary evidence** under section 52-A(4).

Statutory basis

Section 52-A(2), (3) and (4) of the NDPS Act, 1985; rule 8 read with rule 9 of the 2022 Rules (**Form-5**); rule 10 (drawing of samples), rule 11 (quantity of samples), rule 12 (storage of samples).

Leading authorities

- **Union of India v. Mohanlal**, (2016) 3 SCC 379 — the procedure under section 52-A(2) to (4) is mandatory; the inventory, photographs and samples drawn before the Magistrate and certified by him are the primary evidence; the disposal or destruction of the contraband without following that procedure vitiates the evidentiary foundation.
- **Bharat Aambale v. State of Chhattisgarh** (Supreme Court, 2025) — restating the scheme under the 2022 Rules: the process of drawing of samples must be in the presence and under the supervision of the Magistrate and certified by him; section 52-A does **not** require the drawing of samples at the very time of seizure or at the spot; only the certified inventory, photographs and the list of samples are primary evidence; section 52-A governs disposal and does not prescribe the manner of search of a person; and the prosecution bears the onus of proving compliance.

Model — application in Form-5

> FORM-5
>
> [See rules 8 and 18(1) of the NDPS (Seizure, Storage, Sampling and Disposal) Rules, 2022]
>
> APPLICATION FOR CERTIFICATION OF THE CORRECTNESS OF THE INVENTORY, FOR TAKING PHOTOGRAPHS AND FOR DRAWING OF REPRESENTATIVE SAMPLES UNDER SECTION 52-A OF THE NDPS ACT, 1985

> To,
> The Learned Magistrate, [Court of the Judicial Magistrate First Class / Duty Magistrate], [place]

> Sub : Application under section 52-A(2) of the NDPS Act, 1985 in respect of case/FIR No. __ of 20__, PS ____ — certification of inventory, photographs and drawing of representative samples.

> 1. All narcotic drugs, psychotropic substances, controlled substances and conveyances have been identified by the Central Government under section 52-A of the Narcotic Drugs and Psychotropic Substances Act, 1985 as vulnerable to theft, substitution and degradation, and as requiring early disposal.

> 2. As required by sub-section (2) of section 52-A of the said Act, I submit the enclosed inventory (prepared in Form-4) of the seized narcotic drugs, psychotropic substances, controlled substances and/or conveyances, and request your good office to :—
>
> > (a) **certify the correctness of the inventory** so prepared;
> > (b) **permit the taking, in your presence, of photographs** of the seized items in the inventory and certify such photographs as true; and
> > (c) **allow the drawing of representative samples in your presence** and certify the correctness of the list of samples so drawn.

> 3. The seized material, the inventory, and the necessary arrangements for taking photographs and drawing samples have been brought/are being brought before your good office. The details of the seized material are as under :

Sl.	Description	Quantity/weight	No. of packages	Marks/serial numbers	Remarks

1					

4. In respect of the drawing of samples, the requirements of rules 10, 11 and 12 of the NDPS (Seizure, Storage, Sampling and Disposal) Rules, 2022 have been kept in view : one sample in duplicate from each package/container, or from each lot where the packages are identical and are lawfully bunched, of a quantity of not less than twenty-four grams each in the case of opium, ganja and charas (hashish) and not less than five grams in other cases, to be kept in heat-sealed plastic bags/bottles and marked "Original" and "Duplicate".

5. I therefore request your good office to allow this application under sub-section (3) of section 52-A of the said Act, so that the seized material may thereafter be disposed of in the manner determined under sub-section (1) of section 52-A, retaining the certificate, photographs and samples as primary evidence as provided by sub-section (4) of section 52-A.

Yours faithfully,

_____
(Signature of the Officer-in-charge of the Police Station /
Officer empowered under section 53)
Name, rank, designation : _____

Dated : __ Place : __
Enclosures : (i) Inventory in Form-4; (ii) Copy of the panchnama/seizure memo; (iii) Details of the samples to be drawn.

Model — endorsement/certification by the Magistrate

CERTIFICATION UNDER SECTION 52-A(2) AND (3) OF THE NDPS ACT, 1985

Case/FIR No. __ of 20____ Police Station : ____
Application No. __ dated __ presented by ____

On today, i.e. __ , the applicant produced before me the seized material detailed in the enclosed inventory, together with the inventory. In my presence and under my supervision :
(a) the correctness of the enclosed inventory has been verified, and the inventory is hereby certified as correct;
(b) photographs of the seized items were taken in my presence and are hereby certified as true, and are appended to the inventory as Annexure P-1 (colly); and
(c) representative samples were drawn from the seized material in my presence, and the list of samples drawn, containing ____ samples in duplicate (Original and Duplicate), bearing the serial numbers of the packages/containers from which they were drawn and the seals thereof, is hereby certified as correct and is appended hereto as Annexure S-1.

The sealed samples shall be despatched to the jurisdictional laboratory under the cover of the Test Memo in Form-6 without delay.

The application is allowed under section 52-A(3) of the said Act.

_____
(Signature of the Magistrate)
Court : ____ District : ____

Dated : __ Place : __

Drafting notes

- **Structural, not formal.** Section 52-A is a "mandatory rule of evidence". Where the samples are drawn at the police station, or at the spot, and are later sent to the laboratory without any certification by a Magistrate, the report is not the primary evidence the Act requires, and the prosecution case on identity is left with nothing — the point the defence can press from the stage of framing of charge.
- **Substantial compliance.** *Bharat Aambale* (2025) clarifies that substantial compliance with section 52-A and the 2022 Rules is the requirement, and that the scheme does not insist on sampling at the moment of seizure. The defence should therefore focus on the absence of **the Magistrate's certification** and of the **list of samples**, rather than on the timing of the sampling in itself.
- **Photographs.** The purpose of photographs is to preserve the identity of the material (including the mode of concealment and the conveyance). Where photographs exist but are unaccompanied by the certificate, their evidentiary value is lost.
- **Honest mistakes are still mistakes.** Where the sample has been drawn before the application was allowed, but was produced before the Magistrate and certified, some courts have upheld the procedure on the ground

of substantial compliance; the safe course — for the officer and for the record — is to obtain the certification before despatching the sample.

- **Bunching and composite samples.** Where the packages are bunched, the lot-wise details (bunch numbers, the packages included in each lot, and the serial numbers of the samples drawn from each lot) must appear in the Annexure S-1 list certified by the Magistrate; a sample drawn from a composite without any record of the lot is a defect.

C-9. Test Memo (Form-6), Covering Letter to the Laboratory and Report of Analysis

Purpose

The documents that connect the sample to the laboratory: the **Test Memo in Form-6** (prepared in triplicate; the original and duplicate travel with the samples, the triplicate is retained in the case file), the covering letter, and the analyst's report which returns to the court with a copy to the investigating officer.

Statutory basis

Rules 12, 13, 14 and 15 of the 2022 Rules; section 52-A(4) of the Act (the sample list is primary evidence).

Model — Test Memo in Form-6

FORM-6

[See rule 13(2) of the NDPS (Seizure, Storage, Sampling and Disposal) Rules, 2022]

TEST MEMO

1. Case/FIR No. : _____ Police Station/Agency : ____
2. Date of seizure : __ Date of drawing of samples : __
3. Name and address of the accused/person from whom seized : _____
4. Details of the samples sent :

Sl.	Sample No.	Original / Duplicate	Description	Quantity of sample	Package serial no. from which drawn	Seal impression	Date of despatch
1							

5. Details of the case property from which the samples were drawn : quantity __; number of packages/containers __ ; lot-wise details, where applicable ____.
6. Whether the samples were drawn in the presence of the Magistrate and got certified under section 52-A : Yes/No — Certification dated __.
7. Purpose of the test required : (i) identification of the substance; (ii) percentage of the active substance (quantitative analysis), where required.
8. Instructions : The laboratory is requested to submit its report to the court of the Magistrate, with a copy to the investigating officer, **within fifteen days** from the date of receipt of the sample (rule 14). Where quantitative analysis requires longer, the qualitative result should be dispatched within the said period on the original Test Memo, and the quantitative result within the next fifteen days on the duplicate Test Memo.

_____

(Signature of the Investigating / Despatching Officer)

Name, rank, designation : _____

Dated : __ Place : __

Model — covering letter to the laboratory

No. __ dated __

To,

The Director / Assistant Director,

Forensic Science Laboratory / Central Forensic Science Laboratory / Central Revenue Control Laboratory,

[address]

Sub : Despatch of samples for chemical analysis in case/FIR No. __ of 20__, PS __, under section ____ of the NDPS Act, 1985.

Sir/Madam,

The samples detailed below, drawn in the presence of and certified by the Learned Magistrate under section 52-A of the NDPS Act, 1985, are forwarded herewith for chemical analysis under the cover of the Test Memo in Form-6 (original and duplicate). The triplicate of the Test Memo is retained in the case file.

Sl.	Sample No.	Description	Quantity	Seal impression	Remarks
1					

2. The result of the analysis may kindly be communicated to the court of the Learned Magistrate, [place], with a copy to the undersigned, within fifteen days from the date of receipt of the sample, as required by rule 14 of the NDPS (Seizure, Storage, Sampling and Disposal) Rules, 2022. The remnants of the sample may kindly be returned within three months after the analysis, with reference to the Test Memo, as required by rule 15(1).

3. The questioned sample may kindly be preserved until the conclusion of the trial.

Yours faithfully,

_____

(Signature of the Investigating Officer)

Encl. : Samples (sealed) — as above; Test Memo in Form-6 — original and duplicate.

Model — report of analysis (format in which the report should be prepared and scrutinised)

GOVERNMENT OF __ — [STATE / CENTRAL] FORENSIC SCIENCE LABORATORY, [place]

FSL Case No. ____ Police Station/Agency : __ Case/FIR No. ____
Date of receipt of the sample : __ Date of analysis : __ Date of report : __

CHEMICAL EXAMINATION REPORT

1. Sample received : [description, quantity, condition of the seals, and whether the seals were intact and tallied with the specimen impression].
2. Physical examination : [colour, form, odour; weight of the sample as received — which must be compared with the weight recorded in the Test Memo].
3. Preliminary/colour test : [the result with the reagent used].
4. Instrumental analysis : [TLC/GLC/HPLC/GC-MS, as applicable].
5. **Result** : The sample is found to contain __ [name of the narcotic drug/psychotropic substance/controlled substance]; the percentage of the active substance is __ % (where quantitative analysis is done).
6. Opinion : The sample forwarded in case/FIR No. __ is of __.
7. Remarks : (i) the remnants of the sample are returned herewith / retained as provided in the rules; (ii) the duplicate sample, if any, is returned to the despatching officer.

_____

(Signature, name and designation of the Chemical Examiner
/ Assistant Chemical Examiner)

Seal of the Laboratory

Drafting notes

- **Four weights.** In every file compare (i) the weight in the seizure memo, (ii) the weight in the Form-4 inventory, (iii) the weight in the Test Memo, and (iv) the weight of the sample as recorded in the report. Any unexplained difference goes to the identity of the substance and to the quantity band.
- **Seals.** The report must record that the seals were intact and that they tallied with the specimen impression. Where the seals are not accounted for — or where the container was changed in the godown — the report is exposed (*Bharat Aambale* rested in part on exactly such discrepancies).
- **The report is not a "waste paper" as of course.** The courts have held that a report on a sample whose chain of custody is broken — or which was not drawn/certified as section 52-A requires — is of no assistance to the prosecution; that is the argument, and it must be built on the record.
- **Quantitative analysis.** The quantity band depends on the weight of the mixture, not on the percentage of the active substance; where the charge is of a commercial quantity, the sample's percentage is not, by itself, a defence. An argument that the pure content in the whole consignment was below the notified quantity runs counter to *Hira Singh* and is not to be taken without careful thought.
- **Despatch record.** The godown register (Form-3) entry of the despatch, the postal/courier receipt, the laboratory's inward register and the report's acknowledgment together constitute the chain; the IO must be able to produce each link on demand.

C-10. Report of Arrest and Seizure to the Superior Officer (Section 57)

Purpose

The statutory check on the field officer: a full report of all the particulars of every arrest and seizure, to be made to the immediate official superior **within forty-eight hours**.

Statutory basis

Section 57 of the NDPS Act, 1985; rule 5(1) of the 2022 Rules (deposit in the godown within 48 hours).

Model report

> POLICE STATION : _____ To,
> No. __ dated __ The [Deputy Commissioner of Police / Sub-Divisional Police Officer],
> [Zone/District], [place]
> [Through the Station House Officer]
>
> REPORT UNDER SECTION 57 OF THE NDPS ACT, 1985
>
> Sub : Report of arrest and seizure — CR/FIR No. __ of 20__, PS __, under Section(s) ____ of the NDPS Act, 1985.
>
> Ref : This office report under section 42(2) of the Act dated __ [where applicable].
>
> Sir/Madam,
>
> 1. **PARTICULARS OF THE CASE.** FIR/CR No. __ dated __ was registered at PS __ under Section(s) __ of the NDPS Act, 1985, on the complaint/report of ____.
>
> 2. **PARTICULARS OF THE SEIZURE.**
> (a) Date and time of seizure : __ at __ hrs;
> (b) Place of seizure : _____;
> (c) Description and quantity of the substance seized : _____;
> (d) Number of packages/containers and the serial numbers : _____;
> (e) Approximate value : ₹__ ;
> (f) Other articles/conveyances seized : _____ ;
> (g) Independent witnesses : (i) __ (ii) __ ;
> (h) Whether the search was recorded through audio-video electronic means under section 105 BNSS : Yes/No;
> (i) Whether action under sections 41/42/43 of the Act was taken in compliance with the provisions thereof, including the recording of information/grounds of belief : Yes/No — details _____.
>
> 3. **PARTICULARS OF THE ARREST.**
> (a) Name(s), parentage and address of the person(s) arrested : _____ ;
> (b) Date and time of arrest : __ at __ hrs ;
> (c) Grounds of arrest informed in writing : Yes/No ;
> (d) Whether the person was informed of his right under section 50 of the Act (where a personal search was involved) : Yes/No ;
> (e) Person informed of the arrest : ____ ;
> (f) Date and time of production before the Magistrate : __ at __ hrs ;
> (g) Present custody of the arrested person(s) : [judicial custody in Central Jail __ / police custody vide order dated __ / released on bail vide order dated __].
>
> 4. **CUSTODY OF THE CASE PROPERTY.** The seized material has been deposited in the godown at __ on __ at __ hrs under Form-1 No. __ and Form-2 acknowledgment No. __ [or: the material is being produced before the Learned Magistrate for certification under section 52-A on ____].
>
> 5. **STAGE OF INVESTIGATION.** [Briefly state the further investigation proposed — collection of the FSL report; examination of witnesses; tracing the source; whether any other accused is to be traced.]
>
> 6. **REMARKS.** The case property is intact and sealed; the godown entries are up to date; the sample has been despatched to the laboratory on __. No untoward incident occurred during the operation.

> Yours faithfully,
>
> _____
>
> (Signature of the Investigating / Seizing Officer)
>
> Name, rank, designation : _____

Acknowledgment of the superior officer : ____ dated : __

Drafting notes

- **48 hours, no extension.** Section 57 admits of no relaxation, and the report is the record of what was seized and arrested. Delay is regularly put to the IO in cross-examination.
- **The report must be "full".** The particulars of the arrest, the seizure, the place, the witnesses, the custody of the property and the grounds of belief are all to be included; a cyclostyled form with the facts left to the case diary does not satisfy the section.
- **The report supplements sections 42(2) and 52(2)–(3).** Under section 42(2) the copy of the information goes to the superior *forthwith*; under section 57 the report of the arrest and seizure goes within 48 hours; under section 52(2)–(3) the person and the articles are forwarded without unnecessary delay to the officer-in-charge of the police station or an officer empowered under section 53. All three should be able to stand together in the file.
- **Defence use of the report.** In cross-examination, the report is used to test the time of the seizure, the time of the deposit in the godown, the identity of the witnesses and the consistency of the narrative with the FIR and the panchnama.

C-11. Remand, Police Custody and Extension of Investigation

Purpose

Three recurring applications of the investigating agency: (i) **judicial custody remand** of the arrested person; (ii) **police custody remand**, where custodial interrogation is required; and (iii) **extension of the period for completing the investigation** under section 36-A(4) of the Act, which, in an NDPS case triable by a Special Court, may extend the period to one hundred and eighty days, and on the report of the Public Prosecutor up to one year.

Statutory basis

Section 187 of the BNSS, 2023 (formerly section 167 CrPC); sections 36-A(1)(b) and 36-A(4) of the NDPS Act, 1985; section 57 of the Act (report within 48 hours).

Model — application for remand (judicial custody)

> IN THE COURT OF THE LEARNED [DUTY MAGISTRATE / SPECIAL JUDGE (NDPS)], [DISTRICT], [CITY]
>
> APPLICATION FOR REMAND OF THE ACCUSED IN JUDICIAL CUSTODY UNDER SECTION 187 OF THE BNSS, 2023
>
> Police Station : _____ FIR/CR No. ___ of 20 __
> Under Section(s) __ of the NDPS Act, 1985
>
> Most respectfully showeth:
>
> 1. That the accused named below was arrested on __ at __ hrs in the above case and is being produced before this Hon'ble Court today at __ hrs, within 24 hours of arrest, in compliance with Article 22(2) of the Constitution and section 58 BNSS, 2023 [in the case of the Special Court : in compliance with section 36-A(1)(b) of the Act and the order of the learned Duty Magistrate forwarding the accused to this Hon'ble Court].
>
> 2. That the accused was informed of the grounds of his arrest in writing in [language] and a copy of the grounds of arrest was served upon him (Annexure R-1); a copy has been forwarded to the Superintendent, Central Jail, __.
>
> 3. That the investigation is at an early stage and the following steps remain to be completed : (i) collection of the report of the chemical analysis of the samples despatched on __; (ii) examination of the witnesses named in the list; (iii) [tracing the source/co-accused]; (iv) [collection of the call detail records, bank records].
>
> 4. That the presence of the accused in judicial custody is necessary for the investigation; the accused is not required for the purpose of custodial interrogation [where police custody is sought, use the alternative application below].
>
> 5. That the accused has been medically examined; the medical report is annexed as Annexure R-2; there are no injuries on his person [or : the injuries noted in the medical report are explained in the accompanying memo].
>
> 6. That the offence alleged is punishable with imprisonment of [____ years]; the accused may be remanded to judicial custody as provided by law.
>
> PRAYER
>
> It is, therefore, most respectfully prayed that the accused named below may kindly be remanded to judicial custody for a period of __ days, and be produced before this Hon'ble Court on the next date fixed, in the interest of justice.

Name of the accused	Father's name	Address	Date/time of arrest	Sections

> _____
> (Investigating Officer / Station House Officer)
>
> Dated : __ Place : __

Model — application for police custody remand

IN THE COURT OF THE LEARNED [DUTY MAGISTRATE / SPECIAL JUDGE (NDPS)], [DISTRICT], [CITY]

APPLICATION FOR GRANT OF POLICE CUSTODY REMAND UNDER SECTION 187 OF THE BNSS, 2023

Police Station : _____ FIR/CR No. __ of 20__ Under Section(s) _____ of the NDPS Act, 1985

Most respectfully showeth:

1. That the accused _____ was arrested on __ and was remanded to judicial custody on __; he is presently lodged in Central Jail __.

2. That the custodial interrogation of the accused is necessary for the following specific purposes, namely :
(i) to recover [the mobile phone used in the commission of the offence / the balance quantity of the contraband / the vehicle used in the transportation / the documents of the premises];
(ii) to identify and apprehend the co-accused/principal offender, namely [name/description];
(iii) to verify the disclosures made by the accused and to confront him with the record recovered so far; and
(iv) to complete the [test identification / fingerprint/forensic] formalities.

3. That the investigation cannot be completed without the custodial interrogation of the accused; the materials sought to be recovered are within the special knowledge of the accused and are not traceable without his cooperation.

4. That the accused is physically fit for custodial interrogation; the medical examination report is annexed as Annexure R-3.

5. That the police custody is sought for a period of __ days, and the accused will be produced before this Hon'ble Court immediately upon the expiry of the period or earlier, as directed.

PRAYER

It is, therefore, most respectfully prayed that the accused named above may kindly be remanded to police custody for a period of __ days, subject to such conditions as this Hon'ble Court may deem fit, in the interest of justice.

_____
(Investigating Officer)

Dated : __ Place : __

Model — application for extension of the period of investigation under section 36-A(4)

IN THE COURT OF THE LEARNED SPECIAL JUDGE (NDPS), [DISTRICT], [CITY]

APPLICATION UNDER SECTION 36-A(4) OF THE NDPS ACT, 1985 READ WITH SECTION 187 OF THE BNSS, 2023 FOR EXTENSION OF THE PERIOD FOR COMPLETION OF INVESTIGATION

Case/FIR No. __ of 20____ Police Station : _____ Under Section(s) _____ of the Act
Accused : _____ [in custody since __]

Most respectfully showeth:

1. That the accused was arrested on __ and has been in custody since then; _____ **days** have elapsed since the date of arrest.

2. That the investigation could not be completed within the period of ninety days/one hundred and eighty days for the reasons beyond the control of the investigating agency, namely :
(i) the report of the chemical analysis of the samples despatched on __ is awaited; the laboratory has been reminded on __;
(ii) the co-accused [name] is absconding and efforts to trace him [through the call detail records/property verification] are continuing;
(iii) the records of [bank/telecom/hotel] have been requisitioned on __ and are awaited; and
(iv) [state any other reason with particulars].

3. That the accused is not being detained merely on account of the pendency of the investigation; the detention is necessary having regard to the nature and gravity of the offence and the material recovered.

4. That the Learned Public Prosecutor has, in the accompanying report, indicated the progress of the investigation and the specific reasons for the detention of the accused beyond the period of one hundred and eighty days, as required by section 36-A(4) of the Act.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to extend the period for the completion of the investigation under section 36-A(4) of the NDPS Act, 1985 for a period of __ days [not exceeding one year from the date of arrest of the accused in the aggregate], and to authorise the detention of the accused during the said period, in the interest of justice.

_____
(Investigating Officer / Public Prosecutor on behalf of the State)

Dated : __ Place : __

ACCOMPANYING REPORT OF THE PUBLIC PROSECUTOR
I, ____, Learned Public Prosecutor/Additional Public Prosecutor for the State, do hereby report that the investigation in the above case is in progress, that the progress of the investigation is as stated in paragraph 2 above, and that for the specific reasons set out therein the detention of the accused beyond the period of one hundred and eighty days is necessary. I have perused the case diary and the material placed on record.

_____
(Public Prosecutor)

Drafting notes

- **Apply before the period expires.** The leading authority — *Hitendra Vishnu Thakur v. State of Maharashtra*, (1994) 4 SCC 602 — requires the application for extension to be made **before** the expiry of the period, on notice to the accused. An application made afterwards does not defeat the accused's right to default bail, and may itself be the ground on which the accused is released.
- **The Public Prosecutor's report is a condition precedent.** Section 36-A(4) requires a report of the Public Prosecutor indicating the progress of the investigation and the specific reasons for the detention of the accused beyond the period of one hundred and eighty days. A bald endorsement on the letter of the investigating officer does not satisfy the provision.
- **Decide on the application on the same day or before the expiry of the period.** The court's order, and not the application, is what keeps the detention lawful; the order must be on record before the statutory period runs out.
- **Delivery of the order to the jail.** In practice, a copy of every remand order must be sent to the jail superintendent under section 187(6)–(7) BNSS (formerly section 167(6)–(7) CrPC); the absence of the order in the jail record is a serious irregularity.
- **240/ 60/ 90 days.** Where the investigation relates to an offence punishable with imprisonment of less than ten years, the period is sixty or ninety days, and default bail follows under section 187(3) BNSS. The ninety-day period applies to offences punishable with death, imprisonment for life or imprisonment for not less than ten years.

C-12. Final Report / Charge-sheet

Purpose

The report of the police officer on completion of the investigation, filed before the Special Court, which may take cognizance of the offence under section 36-A(1)(d) of the Act without the accused being committed for trial.

Statutory basis

Section 193 of the BNSS, 2023 (formerly section 173 CrPC) read with sections 36-A(1)(d) and 36-A(4) of the Act; section 230 BNSS (supply of copies to the accused within fourteen days of appearance).

Model final report

> IN THE COURT OF THE LEARNED SPECIAL JUDGE (NDPS), [DISTRICT], [CITY]
> [Or, where cognizance is taken on the report of an officer of the Central Government : IN THE COURT OF THE LEARNED SPECIAL JUDGE (NDPS), __]

> FINAL REPORT UNDER SECTION 193 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023 (CHARGE-SHEET)

> 1. Police Station / Agency : _____ District : ____
> 2. FIR/CR No. : __ dated __ Act & Sections : NDPS Act, 1985 — Section(s) __
> 3. Date of occurrence : __ Date of registration of FIR : __
> 4. Name of the complainant/informant : ____
> 5. Accused persons :

Sl.	Name	Father's/ Husband's name	Address	Role attributed	Date of arrest	Custody/Bail status
1						

> 6. **BRIEF STATEMENT OF FACTS.** On __ at about __ hrs, at [place], the [police party] under the leadership of [officer] [received information that __ / while on patrol observed __]. [Narrate the search, the recovery, the quantity, the seizure, the arrest, the drawing of samples before the learned Magistrate under section 52-A, and the deposit of the case property in the godown.]

> 7. **PROPERTY SEIZED.** The details of the property seized, the godown in which it has been deposited, the Form-1/Form-2/Form-3 entries and the Court/Magistrate before whom the inventory, photographs and samples were certified under section 52-A are set out below :

Sl.	Property	Quantity/weight	Godown entry	Section 52-A certification	Custody
1					

> 8. **REPORT OF ANALYSIS.** The samples were despatched to [laboratory] on __ under Test Memo (Form-6) No. __; the report of the chemical examiner dated __ discloses that the sample is of [substance] of __ % purity — Annexure FSL-1.

> 9. **EVIDENCE COLLECTED.** (a) Oral : the statements of the witnesses named in the list below, examined under section 180 BNSS; (b) Documentary : the documents listed in the annexure to this report; (c) Physical/electronic : the case property, the audio-video record of the search, the photographs, the call detail records and the electronic record with the certificate under section 63 of the BSA, 2023.

> 10. **COMPLIANCE WITH PROCEDURE.** The case is based on [the information reduced to writing under section 42(1) of the Act / the search conducted under section 43 of the Act]. The provisions of section 50 of the Act were complied with in respect of the search of the person [where applicable — the notice and the record of the option are at Annexure S-1]. The provisions of section 52-A and the NDPS (Seizure, Storage, Sampling and Disposal) Rules, 2022 were complied with as detailed in paragraph 7. The reports under sections 42(2) and 57 of the Act were submitted on __ and __ respectively.

> 11. **PLACES OF INVESTIGATION.** [List the places visited and the action taken.]

12. **WHETHER THE ACCUSED IS IN CUSTODY OR ON BAIL.** [State the position of each accused, with the order of the court.]

13. **TIME TAKEN FOR THE INVESTIGATION.** The accused was arrested on __; this report is being filed on __, within the period prescribed by section 187 BNSS / section 36-A(4) of the Act. [Where an extension was granted, state the order.]

14. **WHETHER ANY FURTHER INVESTIGATION IS PENDING.** [State whether a supplementary report will be filed; where the investigation is concluded, say so.]

15. **OFFENCES MADE OUT.** On the basis of the material collected, the following offences are made out : [set out the specific clauses and quantity bands — e.g. Section 20(b)(ii)(C) of the NDPS Act, 1985, the quantity being a commercial quantity; Section 29 read with Section 20(b)(ii)(C); Section 25 (allowing premises to be used)].

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to take cognizance of the above offences, to summon the accused to face trial and to try and punish them in accordance with law, in the interest of justice.

_____
(Investigating Officer — Name, Rank, Buckle No.)
Police Station / Agency : _____

Dated : __ Place : __

LIST OF WITNESSES

1. ____ [complainant/informant] 2. ____ [raiding party member] 3. ____ [independent witness — panch] 4. ____ [independent witness] 5. ____ [chemical examiner/proof of report] 6. ____ [godown in-charge] 7. ____ [Magistrate/court official, if required] 8. ____ [photographer/electronic record custodian] 9. ____ [other]

LIST OF DOCUMENTS RELIED UPON

(i) FIR/complaint; (ii) information under section 42(1) and report under section 42(2) of the Act; (iii) search and seizure memo/panchnama; (iv) notice and record under section 50 of the Act; (v) grounds of arrest and arrest memo; (vi) inventory in Form-4 and the section 52-A certification by the learned Magistrate; (vii) Form-1/Form-2/Form-3 godown records; (viii) Test Memo in Form-6 and the report of the chemical analysis; (ix) report under section 57 of the Act; (x) statement of witnesses under section 180 BNSS; (xi) seizure of the conveyance and its documents; (xii) audio-video record of the search with the certificate under section 63 BSA, 2023; (xiii) [call detail records/bank statements/other].

Drafting notes

- **Cognizance.** The Special Court may take cognizance on the police report under section 36-A(1)(d) without committal; the report is therefore the pleading of the prosecution, and every defect on the face of the record — a missing section 50 notice, a missing 52-A certification — is visible to the court at that stage.
- **Sanction.** No sanction is required for a prosecution under the Act where the complaint is made by an authorised officer of the Central Government or a State Government under section 36-A(1)(d); where a complaint is filed by such an officer, the authorisation should be annexed.
- **Supplementary report.** Where the chemical analysis report or the co-accused is awaited, the report may be filed with a prayer to file a supplementary report; but the right to default bail must be considered — if the time has run out, the accused is entitled to be released, and the option of a partial report is not to be used to defeat the right.
- **The fourteen-day supply rule.** Under section 230 BNSS the copies of the report and the documents must be furnished to the accused (and to the victim if represented) within fourteen days of appearance; the practice of withholding documents until the accused moves an application is contrary to the provision.

C-13. Drug Disposal Committee — Reference and Certificates (Forms 7, 10 and 11)

Purpose

The machinery for the disposal of the seized material after the chemical analysis report: the reference by the officer to the Chairman of the **Drug Disposal Committee**, the certificate of **destruction** (Form-7), the certificate by the Government Opium and Alkaloid Works (Form-8) and its register (Form-9), the certificate of **disposal** (Form-10), and the **quarterly report to the Narcotics Control Bureau** (Form-11).

Statutory basis

Rules 16 to 28 of the NDPS (Seizure, Storage, Sampling and Disposal) Rules, 2022, in particular rule 17 (officers to initiate action after receipt of the chemical analysis report), rule 18 (application to the Magistrate), rule 19 (constitution of the Drug Disposal Committee), rule 21 (procedure of the Committee), rule 22 (the Committee's power to order disposal, subject to the monetary and quantity limits in the Table), rule 23 (mode of disposal), rule 25 (certificate of destruction in Form-7), rule 26 (certificate in Form-8 and register in Form-9), rule 27 (certificate of disposal in Form-10) and rule 28 (quarterly report in Form-11).

Model — reference to the Drug Disposal Committee

> POLICE STATION / AGENCY : _____ To,
> No. __ dated __ The Chairman, Drug Disposal Committee,
> [Office of the __], [place]
>
> Sub : Reference for disposal of the seized narcotic drugs/psychotropic substances/controlled substances/conveyance in case/FIR No. __ of 20__, PS_____ — under section 52-A of the NDPS Act, 1985 and rules 17 to 22 of the NDPS (Seizure, Storage, Sampling and Disposal) Rules, 2022.
>
> Sir,
>
> 1. The seized material in the above case was deposited in Godown No. __ vide Form-1 No. __ dated __ and is entered in the godown register (Form-3) at page __. The chemical analysis report dated __ has been received and the report has been accepted by the court of the Learned Magistrate on __.
>
> 2. The certified inventory, photographs and the list of samples drawn in the presence of the Learned Magistrate under section 52-A have been preserved as the primary evidence in the case file; the details are as under :

Sl.	Description	Quantity/ weight	No. of packages	Court/ Magistrate certifying under s. 52-A	Date of certification	Quantity of sample retained as primary evidence
1						

> 3. The material is ready for disposal. The quantity/value of the consignment is [within / beyond] the limits specified in the Table under rule 22 of the said Rules. [Where the consignment exceeds the limits, it is recommended that the Head of the Department may order disposal through a high-level Drug Disposal Committee specially constituted for the purpose.]
>
> 4. The details of the godown, the seal impressions and the latest inspection report of the Inspecting Officer are enclosed for the consideration of the Committee.
>
> Yours faithfully,
> _____
> (Officer-in-charge of the police station / officer empowered under section 53)
>
> Encl. : (i) Chemical analysis report; (ii) Section 52-A certification; (iii) Godown register extract (Form-3); (iv) Form-1/Form-2.

Model — certificate of destruction (Form-7)

> FORM-7
> [See rule 25 of the NDPS (Seizure, Storage, Sampling and Disposal) Rules, 2022]

CERTIFICATE OF DESTRUCTION

This is to certify that the following narcotic drugs/psychotropic substances/controlled substances were destroyed in our presence by incineration in the incinerator at [place] on __ between __ hrs and __ hrs, in accordance with rule 23(7) of the said Rules, after compliance with section 52-A of the Act :

Sl.	Case/FIR No.	Description of the substance	Quantity/ weight destroyed	Godown entry no.	Date of the order	Mode of destruction
1						

The destruction was carried out in the presence of the members of the Drug Disposal Committee; the incineration facility complies with the standards of the State Pollution Control Board; the Head of the Department was intimated of the programme at least fifteen days in advance under rule 24.

This certificate is prepared in triplicate: the original is pasted in the godown register after making the necessary entries, the duplicate is retained in the seizure case file, and the triplicate is kept by the Drug Disposal Committee.

_____
Chairman and Members, Drug Disposal Committee
(Names and designations)

Dated : __ Place : __

Model — certificate of disposal (Form-10)

FORM-10
[See rule 27 of the NDPS (Seizure, Storage, Sampling and Disposal) Rules, 2022]
CERTIFICATE OF DISPOSAL

This is to certify that the following narcotic drugs, psychotropic substances, controlled substances and conveyances were disposed of in the manner indicated below :

1. Case No. : ____ 2. Seizing agency : ___ 3. Seizing officer : ____
4. Date of seizure : ____ 5. Place of seizure : ___ 6. Godown entry number : ____

Sl.	Description	Quantity/weight	Mode of disposal (transfer to GOAW / sale by tender or auction / destruction)	Reference (Form-8 / Form-7 / auction proceedings)	Sale proceeds, if any
1					

This certificate is prepared in triplicate: the original is pasted in the godown register, the duplicate is retained in the seizure case file and the triplicate is kept by the Drug Disposal Committee.

_____
Chairman and Members, Drug Disposal Committee

Dated : __ Place : __

Model — quarterly report (Form-11)

FORM-11
[See rule 28 of the NDPS (Seizure, Storage, Sampling and Disposal) Rules, 2022]
QUARTERLY REPORT TO BE SUBMITTED BY THE HEAD OF DEPARTMENT OF THE CENTRAL/STATE DRUG LAW ENFORCEMENT AGENCY TO THE NARCOTICS CONTROL BUREAU

Report for the quarter ending ____ Date : __
Name and address of the law enforcement agency : _____

1. Number of cases at the beginning of the quarter : ____
2. Number of cases in which seizure was made during the quarter : ____
3. Number of cases in which the seized material was disposed of during the quarter : ____
4. Details of the disposal :

Sl.	Case/ FIR No.	Substance	Quantity seized	Date of FSL report	Date of s. 52-A certification	Date of disposal order	Mode of disposal	Quantity disposed	Quantity retained as primary evidence	Balance in godown
1										

5. Number of cases in which the disposal of the seized material is pending beyond one year from the date of seizure, with reasons : _____
6. Number of conveyances disposed of, with the mode and the sale proceeds : ____
7. Remarks : _____

_____
(Head of the Department)
Name, designation : _____

Drafting notes

- **Disposal needs the order of the Drug Disposal Committee, within its monetary limits.** Under rule 22, the Committee may order disposal of consignments up to the limits specified in the Table (for example, 5 kg of heroin, 1,000 kg of ganja, 2 kg of cocaine, 10 metric tonnes of poppy straw and conveyances up to ₹50 lakh). Larger consignments go to a high-level Committee through the Head of the Department.
- **What must be retained.** The certified inventory, photographs and the list of samples constitute the primary evidence under section 52-A(4). They are to be preserved for the trial; the destruction of the bulk does not dispense with their production.
- **Opium and its alkaloids take a special route.** Opium, morphine, codeine and thebaine are transferred to the Government Opium and Alkaloid Works, which issues a certificate in Form-8 and maintains a register in Form-9 under rule 26.
- **Destruction protocol.** Destruction is by incineration in a facility that complies with the emission standards, in the presence of the Committee, with prior intimation of at least fifteen days to the Head of the Department under rule 24, and with the consent of the State Pollution Control Board where required.
- **The quarterly report is examined by the NCB.** The Head of the Department of each Central and State drug law enforcement agency must send the report in Form-11 to the Narcotics Control Bureau; delays and the reasons for them are visible at this level and should be recorded accurately.

C-14. Confiscation under Section 63 and Forfeiture Reference (Chapter V-A)

Purpose

Two distinct proceedings: (i) **confiscation** under sections 60 to 63 of the Act, of the illicit drugs, substances, articles and conveyances used in the offence, for which the officer reports to the court for an order of confiscation; and (ii) **forfeiture of illegally acquired property** under Chapter V-A, for which the Investigating Officer/Agency makes a reference under section 68-F to the **Competent Authority**, which, if satisfied, may issue a notice of forfeiture under section 68-H.

Statutory basis

Sections 60, 61, 62 and 63 of the NDPS Act, 1985; sections 68-E, 68-F, 68-H and 68-I of the Act.

Model — report/application for confiscation under section 63

IN THE COURT OF THE LEARNED SPECIAL JUDGE (NDPS) / [Court of the Magistrate], [DISTRICT], [CITY]

APPLICATION/REPORT FOR CONFISCATION OF THE SEIZED ARTICLES AND CONVEYANCE UNDER SECTIONS 60 TO 63 OF THE NDPS ACT, 1985

Case/FIR No. __ of 20___ Police Station : ___ Under Section(s) ____ of the Act

Most respectfully showeth:

1. That the following articles/conveyance were seized in the above case as liable to confiscation under section 60 of the Act :—

Sl.	Description of the article/conveyance	Registration/ identification no.	Name of the person from whom seized	Ground of confiscation
1				

2. That the said conveyance was used for the transport of the contraband [state the manner — the contraband was found concealed in the dickey; the vehicle was intercepted while carrying the consignment]; the contraband itself is liable to confiscation under section 60(1) and the concealing material under section 61.

3. That the notice of the proposed confiscation has been given to the person from whom the article was seized and to the owner/registered owner of the conveyance, as required by section 63 [state the notice number and date and the mode of service]; objections, if any, have been received/filed.

4. That the proceedings for confiscation are independent of the trial for the offence (section 63(4)–(5)), and the seized articles are in the custody of the court/godown.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to (i) issue notice of the proposed confiscation to the person(s) entitled and to the owner(s) of the conveyance, calling upon them to show cause why the articles shall not be confiscated; and (ii) after hearing them, order the confiscation of the articles/conveyance to the Government under sections 60 to 63 of the Act, in the interest of justice.

_____
(Investigating Officer / Authorised Officer)

Dated : __ Place : __

Model — reference to the Competent Authority for forfeiture (Chapter V-A)

OFFICE OF THE [DEPUTY COMMISSIONER OF POLICE / ZONAL DIRECTOR, NCB / COMMISSIONER OF CUSTOMS], [place]
No. __ dated __
To,
The Competent Authority & Administrator,
\[Smugglers and Foreign Exchange Manipulators (Forfeiture of Property) Act, 1976 / NDPS Chapter V-A\], [address]

Sub : Reference under section 68-F of the NDPS Act, 1985 for identification/forfeiture of illegally acquired property of [name] — in connection with FIR/CR No. __ of 20__, PS____.

Sir/Madam,

1. That [name], S/o __, R/o __, is an accused/convict in the above case, which relates to trafficking in __ of a commercial quantity; the case is pending/has ended in conviction vide judgment dated __.

2. That the investigation has disclosed that the said person [is holding / is in possession of / has acquired] the following properties, which appear to be illegally acquired properties within the meaning of section 68-B(1)(c) of the Act :—

Sl.	Description of the property	Location	Approximate value	Source as claimed	Material to show it is illegally acquired
1					

3. That the material placed on record — [the statements of the witnesses, the bank records, the transfer of funds, the seizure of the sale proceeds, the statement of the co-accused, the absence of any lawful source matching the acquisitions] — discloses that the said properties have been acquired out of the income from the illicit traffic in narcotic drugs and psychotropic substances.

4. That a freezing/seizure order in respect of the said properties is warranted, and a notice under section 68-H of the Act may be issued to the person concerned, calling upon him to show cause why the said properties should not be declared illegally acquired and forfeited to the Central Government.

5. That the complaint/report in respect of the said properties is being forwarded herewith, together with the material collected during the investigation, for the consideration of the Competent Authority.

Yours faithfully,

_____

(Authorised Officer)

Encl. : (i) Copy of the FIR and the final report; (ii) Property particulars with documents; (iii) Material evidencing illicit acquisition; (iv) Seizure/freezing proposals.

Drafting notes

- **Confiscation and forfeiture are different proceedings.** Sections 60 to 63 deal with the case property (the drugs, the substances, the articles, the conveyances) and are decided by the court trying the offence; Chapter V-A deals with the offender's **property**, and is decided by the **Competent Authority** on a reference, subject to appeal to the Appellate Tribunal under section 68-O.
- **Independent of conviction.** A proceeding under section 63 is not a trial for an offence and may be conducted even where the accused is acquitted, though the court must be satisfied of the grounds of confiscation — *confiscation proceedings are penal in nature but are not a "prosecution"*.
- **The owner's right to be heard.** Section 63(2) requires notice to the person concerned, including the owner of the conveyance; where the vehicle is subject to a hire-purchase or lease agreement, the financier's interest should be intimated and heard, and the order should be passed after considering the objections.
- **Burden in Chapter V-A.** Under section 68-J, once the Competent Authority has the foundational material, the burden of proving that the property is not illegally acquired lies on the person affected — see **B-15** for the format of the objections that must be adapted to the reference.
- **Do not mix the two prayers.** Applications that seek confiscation of the conveyance before the trial court and also freeze the offender's other properties in the same pleading are procedurally defective; the reference under section 68-F goes to the Competent Authority, not to the Special Court.

PART D — ANNEXURES

D-1. Case-Law Digest

Purpose

The propositions that recur in NDPS pleadings, with the decision that carries each. Cite the proposition and verify the citation against the report before filing.

Decision	Proposition	Where used
Vijaysinh Chandubha Jadeja v. State of Gujarat, (2011) 1 SCC 609	Section 50 is mandatory: the suspect must be **informed of his right** to be searched before a Gazetted Officer or a Magistrate, before the search, in a language understood by him; the option must be exercised before the search	Bail (B-2, B-3), discharge (B-7), appeal (B-16), the section 50 record (C-2)
State of Punjab v. Baldev Singh, (1999) 6 SCC 172	The consequence of a breach of section 50: the recovery is illegal and the accused is entitled to be acquitted	Defence pleadings and grounds of appeal
Ranjan Kumar Chadha v. State of Himachal Pradesh, 2023 INSC 878 (and the decisions following it in 2024)	Section 50 applies to the search of a **person**; it does not extend to the search of a bag, a vehicle or luggage	Opposing a section 50 ground where the recovery is from a bag/vehicle; framing the ground where the search was personal
Karnail Singh v. State of Haryana, (2009) 8 SCC 539	Section 42(1) and (2) are mandatory where the officer acts on prior information — it must be reduced to writing; the distinction between a section 42 search and a section 43 public-place recovery	Bail, discharge, appeal; the record under sections 42(2) (C-4)
Union of India v. Mohanlal, (2016) 3 SCC 379	Section 52-A(2)–(4) is a **mandatory rule of evidence**; the inventory, photographs and samples certified by the Magistrate are the primary evidence; disposal without that procedure dents the prosecution's case	Bail, discharge, appeal; the Form-5 application (C-8)
Bharat Aambale v. State of Chhattisgarh, Criminal Appeal No. 250 of 2025 (Supreme Court, 06-01-2025)	Restates section 52-A under the **2022 Rules**: substantial compliance; no requirement of sampling at the spot; only the certified inventory, photographs and list of samples are primary evidence; section 52-A governs disposal, not the search of a person; the onus of proving compliance is on the prosecution	The single most useful recent authority on sampling and disposal
Tofan Singh v. State of Tamil Nadu, (2021) 4 SCC 1	Statements recorded under section 67 are **not confessions** and are inadmissible against the maker; officers invested with section 53 powers are police officers for the purposes of the bar on confessions	Bail, discharge, appeal where the case rests on the accused's or the co-accused's statements
Hira Singh v. Union of India, (2020)	The quantity of the **entire mixture**, by whatever name called, containing the narcotic drug or psychotropic substance, determines whether it is a small or a commercial quantity	The quantity band; opposing an argument based on the pure content
Union of India v. Rattan Mallik, (2009) 2 SCC 624	The court must record its satisfaction on the section 37 conditions; the section is a legislative embargo that cannot be diluted	Bail (B-3)
Collector of Customs v. Ahmadalieva Nodira, (2004) 3 SCC 549	"Reasonable grounds" under section 37 mean something more than a prima facie case	Bail (B-3)
State (NCT of Delhi) v. Lokesh Chadha, (2021) 5 SCC 724	Bail under the Act may be refused where the statutory conditions are not met; the reasons must appear in the order	Bail (B-3)

State of Punjab v. Balraj Singh @ Billa (Supreme Court, 2026); **State of Punjab v. Sukhwinder Singh**, 2026 INSC 411; **Union of India v. Vigin K. Varghese**, 2025 INSC 1316	The twin conditions of section 37 are mandatory and must be considered and recorded; delay in trial alone will not displace them where the prosecution case is strong; there is as yet no settled standard of "prolonged incarceration"	Bail (B-3); opposing a bail application
Mohd. Muslim @ Hussain v. State (NCT of Delhi), (2023); **Ankur Chaudhary v. State of Madhya Pradesh** (2024)	Article 21 and the right to a speedy trial inform the reading of section 37; prolonged incarceration on a stalled trial can justify bail in a commercial quantity case	Bail (B-3), interim bail (B-6)
Sunderbhai Ambalal Desai v. State of Gujarat, (2002) 10 SCC 283	Vehicles and articles seized should not be retained in police custody until the conclusion of the trial; interim custody should be given to the person entitled on a bond	Release of the vehicle/conveyance (B-9) and articles (B-10)
Sanjay Dutt v. State through CBI, (1994) 5 SCC 410; **Uday Mohanlal Acharya v. State of Maharashtra**, (2001) 5 SCC 453; **Rakesh Kumar Paul v. State of Assam**, (2017) 15 SCC 67	The right to default bail is **indefeasible**, accruing on the expiry of the statutory period; it is defeated only where the report is filed before the accused applies	Default bail (B-5)
Hitendra Vishnu Thakur v. State of Maharashtra, (1994) 4 SCC 602	An application for extension of the period of investigation must be made **before** the expiry of the period and on notice to the accused; a belated extension does not defeat the right to default bail	Default bail (B-5); extension applications (C-11)
Union of India v. Prafulla Kumar Samal, (1979) 3 SCC 4; **State of Bihar v. Ramesh Singh**, (1977) 4 SCC 39	The test at the stage of charge/discharge: whether there are grounds for presuming that the accused committed the offence; no mini-trial, but the material must be sifted	Discharge (B-7)
D.K. Basu v. State of West Bengal, (1997) 1 SCC 416	The arrest memo, the grounds of arrest, the information to a relative, the medical examination and the entry in the register are mandatory; now reflected in section 47 BNSS	The arrest documents (C-1); bail and discharge pleadings
Prabir Purkayastha v. State (NCT of Delhi) (2024)	The grounds of arrest must be furnished **in writing**; an arrest without compliance is illegal	The grounds-of-arrest memo (C-1); bail applications
Mithu v. State of Punjab, (1983) 2 SCC 277; **Indian Harm Reduction Network v. Union of India** (Bombay High Court, 2011)	A mandatory death penalty is unconstitutional; section 31-A of the Act was struck down on that basis by the Bombay High Court in 2011	Where a repeat-offence charge under sections 31/31-A is made
Line of authority on sections 27, 39 and 64-A	Section 27 covers consumption, and possession of a small quantity for personal consumption; sections 39 and 64-A are treatment-oriented provisions confined to addicts, and the benefit of section 64-A is available once in a lifetime and only where no offence under ss. 15 to 25 or 27-A is charged	Sections 27/39/64-A pleadings (B-11, B-13)
Prabir Purkayastha v. State (NCT of Delhi) (2024) (and the line of authority on the supply of material under Article 21, including *V.K. Sasikala v. State*)	The right to a fair trial includes the supply of the material on which the prosecution relies; in the context of special statutes the grounds of arrest are to be furnished in writing	Supply of documents (B-8); the grounds-of-arrest memo (C-1)

A note on citations

The decisions of the Supreme Court and of the High Courts cited in this compendium are referred to by the citation most commonly used in practice. Where a decision is recent, the neutral citation (for example, "2025 INSC 1316") or the date is

given, so that the report can be traced. **Before filing, verify the citation and read the decision.** Judgments are reversed, distinguished and clarified, and the trends noted in Part A above are, as the Supreme Court itself has recorded, not settled.

D-2. Notified Small and Commercial Quantities

Source

Notification **S.O. 1055(E) dated 19-10-2001** (as amended), issued under sections 2(viia) and 2(xxiiia) of the Act, which notifies the quantities for 239 narcotic drugs, psychotropic substances and preparations. The extract below covers the substances that occur most frequently in practice. **Verify the operative notification before relying on any figure.**

Substance	Small quantity	Commercial quantity
Amphetamine	2 g	50 g
Alprazolam	5 g	100 g
Buprenorphine	1 g	20 g
Charas / Hashish	100 g	1 kg
Cocaine	2 g	100 g
Codeine	10 g	1 kg
Ganja	1 kg	20 kg
Heroin (diacetylmorphine)	5 g	250 g
LSD	0.002 g	100 g
MDMA	0.5 g	10 g
Methamphetamine	2 g	50 g
Methaqualone	20 g	500 g
Morphine	5 g	250 g
Opium	25 g	2.5 kg
Poppy straw	1 kg	50 kg

Three rules that govern the table

1. **The mixture rule.** By the notes to the notification, the quantity applies to the **preparation, mixture or solution** of the substance, and not to the pure content — upheld in *Hira Singh v. Union of India* (2020). A consignment of, say, 400 g of powder containing heroin is therefore weighed as 400 g and not by reference to the heroin content.
2. **Preparations are included.** Where a substance listed is contained in a preparation, the entry for the substance applies to the preparation; the older view that only the pure drug counted was displaced by *Hira Singh*.
3. **Cultivation is separate.** Small and commercial quantities are not specified for the cultivation of the opium poppy or the cannabis plant; those offences are covered by sections 18(c) and 20(a) and attract the punishment provided for them.

D-3. BNSS, CrPC and NDPS — Cross-Reference Table

Purpose

A working table for pleadings and for the record: the NDPS provision, the corresponding procedural provision before and after 01-07-2024, and the document it generates.

Subject	CrPC, 1973	BNSS, 2023	NDPS / document
Arrest — grounds and information	ss. 50, 57	ss. 47, 58	s. 52(1) — grounds of arrest (C-1)
Notice of appearance	s. 41-A	s. 35(3)	— (C-1)
FIR	s. 154	s. 173	FIR/complaint
Search by a police officer — reasons in the case diary	s. 165	s. 185	ss. 41–42 — information/grounds of belief (C-4)
Procedure for searches — witnesses and the list of things seized; audio-video recording	ss. 100, 165	ss. 103, 105	Search and seizure memo/panchnama (C-5)
Remand and default bail (60/90 days)	s. 167	s. 187	s. 36-A(1)(b), (4) — remand and extension (C-11); default bail (B-5)
Statements during investigation	s. 161	s. 180	—
Statements to officers — inadmissibility as confessions	Evidence Act s. 25	BSA, 2023 s. 23	s. 67 NDPS — *Tofan Singh*
Final report / charge-sheet	s. 173	s. 193	s. 36-A(1)(d) — final report (C-12)
Supply of documents to the accused (14 days)	s. 207	s. 230	Supply of documents (B-8)
Examination of the accused	s. 313	s. 351	Defence at trial
Discharge (sessions trial)	s. 227	s. 250	Discharge (B-7)
Framing of charge (sessions trial)	s. 228	s. 251	—
Discharge (warrant case, Magistrate)	s. 239	s. 262	Discharge (B-7)
Order for custody and disposal of property pending trial	s. 451	s. 497	Release of the vehicle/articles (B-9, B-10); s. 63 confiscation (C-14)
Disposal of property at the conclusion of trial	s. 452	s. 498	Final disposal of case property
Procedure where the police seize property	s. 457	s. 503	Release/supardari of case property
Complaint to a Magistrate	s. 200	s. 223	Complaint under s. 58 NDPS (B-14)
Magistrate directing investigation	s. 156(3)	s. 175(3)	Complaint under s. 58 NDPS (B-14)
Bail — Magistrate	ss. 436, 437	ss. 478, 480	Small quantity cases
Bail — Sessions Court and High Court	s. 439	s. 483	s. 37 NDPS (B-2, B-3)
Anticipatory bail	s. 438	s. 482	s. 37 NDPS (B-4)
Release of a first-time under-trial after half the sentence	s. 436-A	s. 479	Long custody in NDPS cases
Suspension of sentence pending appeal	s. 389	s. 430	Appeal under s. 36-B (B-16)
Appeal from conviction	s. 374	s. 415	s. 36-B NDPS (B-16)
Revision	ss. 397, 399	ss. 438, 440	Against interlocutory orders

Inherent powers of the High Court	s. 482	s. 528	Quashing of proceedings
Reference to the Code in other laws	—	s. 531	NDPS ss. 36-A, 37, 51 and the 2022 Rules

D-4. Glossary

Term	Meaning in the context of the Act
Addict	A person "dependent on any narcotic drug or psychotropic substance" (s. 2(ii)) — the entry point for the protections in ss. 39 and 64-A
Bunching	Grouping of identical packages (up to ten, or forty in the case of ganja, poppy straw and hashish) for the purpose of drawing one composite sample in duplicate from each lot — rule 10 of the 2022 Rules
Commercial quantity	Any quantity greater than the quantity notified under s. 2(viia) — the trigger for the punishment band in ss. 15–22 and for the twin conditions in s. 37
Controlled substance	A substance used in the manufacture of a narcotic drug or psychotropic substance, notified under s. 2(viid) and regulated by s. 9-A
Conveyance	Any aircraft, vehicle or vessel (s. 2(viii)) — liable to search, confiscation and disposal under s. 52-A
Drug Disposal Committee	The three-member committee constituted under rule 19 of the 2022 Rules to order the disposal of seized material within the limits in rule 22
Essential narcotic drug	A narcotic drug notified by the Central Government for medical and scientific use (s. 2(viiia))
Illegally acquired property	Property acquired from or out of the income from illicit traffic — the subject of forfeiture under Chapter V-A (s. 68-B(1)(c))
Illicit traffic	The activities catalogued in s. 2(viiib) — production, manufacture, possession, transport, import/export, financing, abetment, harbouring and letting premises for such activities
Intermediate quantity	Quantity between small and commercial — the middle punishment band in ss. 15–22
Manufactured drug	Includes heroin and other drugs produced from narcotic raw material (s. 2(xi))
Narcotic drug	Coca leaf, cannabis, opium poppy, poppy straw, and all manufactured drugs and preparations (s. 2(xiv))
Panchnama	The contemporaneous record of the search and seizure, signed by the independent witnesses
Pairokar	A relative or associate of the accused who verifies the bail application by affidavit, in the practice of the Delhi courts
Poppy straw	The husk and other parts (except seeds) of the opium poppy after harvesting (s. 2(xviii) and (xvviii))
Preparation	Any solution or mixture, in whatever physical state, containing a narcotic drug or psychotropic substance (s. 2(xx)) — central to the mixture rule
Psychotropic substance	A substance listed in the Schedule to the Act, including the salts and preparations thereof (s. 2(xxiii))
Small quantity	A quantity lesser than the quantity notified under s. 2(xxiiia)
Supardari / Supurdnama	Interim custody of seized property (usually a vehicle or article) entrusted to a person on a bond
Test Memo	The memorandum in Form-6 accompanying the samples to the laboratory, prepared in triplicate under rule 13 of the 2022 Rules

D-5. Mandatory Compliance Checklist (One Page)

For the field officer

- Grounds of belief/information **reduced to writing before the search** (s. 42(1)); copy to the superior **forthwith** (s. 42(2)).
- Night search only after recording the grounds of belief (proviso to s. 42(1)).
- Warrant under s. 41(1) or authorisation under s. 41(2) where the search is not under s. 42/43.
- **Search of a person:** the notice under s. 50, the option recorded, and the search conducted before the Gazetted Officer/Magistrate if so required (C-2).
- **Two independent witnesses** of the locality; the search and the list of things seized recorded through audio-video means (s. 103 and s. 105 BNSS); a copy of the search list to the occupant.
- Classification, weighing, packaging, serial numbering in the presence of the panchas and of the person involved (r. 3 of the 2022 Rules); inventory in **Form-4** attached to the panchnama.
- Grounds of arrest served in writing in a language understood by the person (s. 52(1)); medical examination; entry in the arrest register.
- Forwarding of the person and the articles without unnecessary delay (s. 52(2)–(3)).
- Deposit of the material in the designated godown within **48 hours** with the forwarding memorandum in **Form-1**; acknowledgement in **Form-2**; entry in the register in **Form-3**.
- Application to the Magistrate at the earliest in **Form-5** under s. 52-A(2) — certification of the inventory, photographs and the list of samples (C-8); despatch of the samples under the Test Memo in **Form-6**; the triplicate retained in the case file.
- Report of the arrest and seizure to the superior within **48 hours** (s. 57).
- Cause the person to be produced before the Magistrate within **24 hours**, excluding journey time.
- On receipt of the chemical analysis report: initiate action for disposal within **30 days**; reference to the Drug Disposal Committee; certificate of destruction in **Form-7** or disposal in **Form-10**; quarterly report to the NCB in **Form-11**.

For the defence counsel

- Obtain and tabulate: the FIR, the panchnama, the Form-4 inventory, the Form-1/2/3 entries, the Form-5 application, the Magistrate's certification, the Form-6 Test Memo, the FSL report, the s. 42 record, the s. 50 notice/consent, the grounds of arrest, the s. 57 report, the audio-video record and the BSA s. 63 certificate.
- Compare the four weights — seizure memo, inventory, Test Memo, FSL report — and the serial numbers, seals and lot details.
- Work out the quantity band and confirm the notified threshold; check whether s. 37 applies at all.
- Check the custody chronology: arrest, production, remand, deposit in the godown, despatch to the laboratory, receipt of the report, deposit of the duplicate sample.
- Check the statutory clocks: 90/180 days for the final report; any extension order and whether it was passed before the expiry of the period and on notice.
- Check the limitation for the appeal, and diarise the date for the section 230 BNSS documents.

D-6. Sources, References and Disclaimer

Primary sources

- The Narcotic Drugs and Psychotropic Substances Act, 1985 (Act 61 of 1985), as amended by the Acts of 1989, 2001, 2014 and 2021.
- The Narcotic Drugs and Psychotropic Substances (Seizure, Storage, Sampling and Disposal) Rules, 2022, GSR 899(E) dated 23-12-2022 (superseding the NCB Standing Order No. 1/2014 and the earlier standing orders).
- The Narcotic Drugs and Psychotropic Substances Rules, 1985 (licensing, cultivation, manufacture and the supply of samples to the Government Opium and Alkaloid Works).
- Notification S.O. 1055(E) dated 19-10-2001 (small and commercial quantities), as amended.
- The Bharatiya Nagarik Suraksha Sanhita, 2023; the Bharatiya Sakshya Adhiniyam, 2023; the Bharatiya Nyaya Sanhita, 2023 (the reference to the Indian Penal Code in section 64 of the Act continues to be construed accordingly).
- The Department of Revenue (Ministry of Finance) publications on the punishment structure, the quantity notification and the special provisions for addicts; the Narcotics Control Bureau's manuals and forms.

Secondary and academic sources consulted for structure and practice

- The prescribed case material and the study materials of the Law Faculty, University of Delhi (including the LL.B. drafting and pleadings material and the NDPS case material), used for the architecture of the pleadings and for the sequence of the forms.
- Standard commentaries on the Act and the rules made under it, and the procedural commentaries on the BNSS, 2023.

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